DEPARTMENT OF THE AIR FORCE
WASHINGTON DC

OFFICE OF THE SECRETARY

DoDMAN5200.02_DAFMAN16-1405_DAFGM2026-01
8 JANUARY 2026

MEMORANDUM FOR DISTRIBUTION C
MAJCOMs/FLDCOMs/FOAs/DRUs

FROM: SAF/OC
1720 Air Force Pentagon
Washington, DC 20330-1665

SUBJECT: *Department of the Air Force Guidance Memorandum to DoDM5200.02_DAFMAN 16-1405, Department of Air Force Personnel Security Program*

By Order of the Secretary of the Air Force, this Department of Air Force Guidance Memorandum (DAFGM) immediately implements changes to DoDM5200.02_DAFMAN 16-1405, *Department of the Air Force Personnel Security Program.* Compliance with this memorandum and enclosure is mandatory. To the extent its directions are inconsistent with other Department of Air Force publications, the information herein prevails, in accordance with Department of Air Force Instruction (DAFI) 90-160, *Publications and Forms Management* and Department of the Air Force Manual (DAFMAN) 90-161*, Publishing Processes and Procedures.*

This instruction applies to the entire DAF, including all uniformed members of the Regular Air Force, the United States Space Force (USSF), the Air Force Reserve, the Air National Guard, and all DAF civilian employees who maintain eligibility for access to classified information, hold a national security position, or otherwise perform national security duties, and those with a contractual obligation to abide by the terms of DAF publications. Contractor personnel who have been granted eligibility for access to classified information, through the National Industrial Security Program, will comply with SEAD 3 reporting requirements prescribed in Code 32 of Federal Regulations, Part 117, and Industrial Security Letter 2021-02 for reporting adverse information.

The DAFGM clarifies implementation requirements for the Security Executive Agent Directive (SEAD) 3, *Reporting Requirements for Personnel with Access to Classified Information or Who Hold a Sensitive Position*. Furthermore, it provides overarching policy guidance for the DAF Presidential Support Program Yankee White (PSP YW) as prescribed within the DoD Instruction (DoDI) 5210.87, *Selection of DoD Military and Civilian Personnel and Contractor Employees for Assignment to Presidential Support Activities (PSAs).* In addition, this guidance addresses several key areas of security management office (SMO) responsibilities, re-investigations/continuous vetting, one-time access requirements for retired general officers, and clarifies foreign travel reporting requirements.

Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction (AFI) 33-322, *Records Management and Information Governance Program*, and are disposed in accordance with the Air Force Records Disposition Schedule which is located in the Air Force Records Information Management System.

This Memorandum becomes void after one-year has lapsed from the date of this memorandum, or upon incorporation by interim change to, or re-write of DoDM 5200.02 DAFMAN 16-1405, which is earlier.

GWENDOLYN R. DEFILIPPI, SES, DAF
Director, Competitive Activities

Attachments:
1. Interim Guidance to DAFMAN 16-1405, *DAF Personnel Security Program*
2. **(Added) (DAF) Enclosure 6** – Reportable Activities

2.12.b.(4) (Added) (DAF) Information Management (SAF/OCS) in collaboration with Security, Special Program Oversight and Information Protection (SAF/OCS) is responsible for tasks listed in Section 2.12a-b. This paragraph establishes the acronym SAF/OCS as "Information Management" and Security, Specialty Program Oversight and Information Protection." Further it states that SAF/OCS collaborate with itself.

2.13.f.(6)(i) (Added) (DAF) Annually, ensure subordinate commanders revalidate investigative requirements and position attributes in MPES by May 15th. (T-1) For the purpose of this supplement, a commander has been further defined to reference the head of a DAF activity. Hereinafter, the term commander, equivalent director or authorized representative will be referred to as "commander/director". These officials may approve position upgrades and downgrades with respect to Mission Change Requests (MCR) and actions during the annual position revalidation. Reference section G.2 for the definition of a commander.

2.13.k.(4)(i) (Added) (DAF) The Defense Counterintelligence and Security Agency Memorandum, *Defense Counterintelligence and Security Agency Organizational Alignment-Adjudication and Vetting Services,* dated 22 March 2024, aligned the Consolidated Adjudication Services (CAS) and Vetting Risk Operations (VRO) functions into Adjudication and Vetting Services (AVS).

2.14. (Added) (DAF) Department of the Air Force (DAF) Presidential Support Program-Yankee White (PSP-YW)

a. (Added) (DAF) SAF/OCS is responsible for the management and oversight of the DAF PSP-YW program and nomination process. The program office will:

(1) (Added) (DAF) Evaluate and nominate DAF personnel for Presidential support duties (PSD) in accordance with DoDI 5210.87, Enclosures 3 & 4. (T-0)

(2) (Added) (DAF) Notify the Presidential Support Activity (PSA) submitting offices when nominees have been selected or non-selected by the Executive Secretary of the DoD, "The Executive Secretary". (T-0)

(3) (Added) (DAF) Submit the Quarterly Report in accordance with DoDI 5210.87, Enclosure 7 to the Executive Secretary. (T-0)

(4) (Added) (DAF) Establish and maintain an ongoing self-inspection program to evaluate and assess the effectiveness and efficiency of the DAF PSP-YW program. (T-1)

b. (Added) (DAF) The FLDCOM or MAJCOM Director, Information Protection (DIP) with a PSA is responsible for integrating PSP-YW processes into their operations. In addition to the requirements in DoDM 5200.02, *Procedures for the DoD Personnel Security Program* and DoDM 5220.22V2_AFMAN 16-1406V2, *National Industrial Security Program: Industrial Security Procedures for Government Activities*, the DIP will:

(1) (Added) (DAF) Assess program waivers and exceptions to policy and validate the accuracy prior to submission to SAF/OCS for approval. (T-1)

(2) (Added) (DAF) Ensure PSP-YW supplements are coordinated with SAF/OCS prior to publication. (T-1)

(3) (Added) (DAF) Maintain PSP-YW Information Requirements per DoDI 5210.87 guidance and submit to SAF/OCS when requested. (T-1)

(4) (Added) (DAF) Participate in and host PSP-YW forums and working groups. (T-1)

c. (Added) (DAF) At Wings and Deltas with PSAs, the Commander provides oversight of the PSP-YW program. At minimum, the Wing or Delta Commander will:

(1) (Added) (DAF) Ensure replacements are identified for PSD positions unless the requirement is discontinued. (T-0)

(2) (Added) (DAF) Ensure individuals nominated for, assigned to, or retained in the PSDs are most suitable and qualified for duty. (T-0)

(3) (Added) (DAF) Ensure PSD cleared individuals are temporarily suspended or permanently removed when information becomes available that questions continued program suitability. (T-0)

(4) (Added) (DAF) Ensure commanders recognize and discharge their special responsibility on the suitability of their subordinates for continued service in PSDs. (T-0)

(5) (Added) (DAF) Ensure PSP-YW oversight is included in unit and self-inspections. (T-1)

(6) (Added) (DAF) Ensure PSP-YW position verification is included in annual review and validation of position attributes within the Manpower Programming and Execution System (MPES). (T-1)

d. (Added) (DAF) The Wing Information Protection Offices (IPO) and PSAs are responsible for implementing the PSP-YW program by providing oversight and direction to group and squadron commanders, directors, and security specialists. The Wing Chief IPO will:

(1) (Added) (DAF) Ensure compliance with guidance for PSP-YW derogatory information reporting requirements and timelines, temporary suspensions, and removal from PSDs in accordance with DoDI 5210.87, Enclosure 3. (T-0)

(2) (Added) (DAF) Submit the Quarterly Report to SAF/OCS, in accordance with DoDI 5210.87, Enclosure 7. (T-1)

(3) (Added) (DAF) Ensure PSP-YW investigations are coded with priority processing and applicable critical population categorization. (T-0)

(4) (Added) (DAF) Follow DAF procedures for conducting pre-screening and nomination processing. (T-1)

(5) (Added) (DAF) Include PSP-YW position verification into the annual review and validation of position attributes within the MPES. (T-1)

(6) (Added) (DAF) Conduct self-inspections and assessments on the PSP-YW program. (T-1)

(7) (Added) (DAF) Participate in PSP-YW forums. (T-1)

(8) (Added) (DAF) Provide servicing medical authority/clinics with a copy of the two-part quarterly Information Requirements for the purposes of PSP-YW medical records management and reporting. (T-0)

e. (Added) (DAF) The Wing or Delta level Personnel Security Specialists perform a multitude of duties in support of the PSP-YW program. At minimum, Wing or Delta Personnel Security Specialists will:

(1) (Added) (DAF) Submit prescreening requests to SAF/OCS. (T-1)

(2) (Added) (DAF) Provide prescreening results to requestor. (T-1)

(3) (Added) (DAF) Review PSP-YW nominations for completeness and accuracy. (T-1)

(4) (Added) (DAF) Submit PSP-YW nominations that meet the standards and criteria in accordance with DoDI 5210.87 and this manual. (T-1)

(5) (Added) (DAF) Facilitate responses to requests for additional information (RFI). (T-1)

(6) (Added) (DAF) Process RFI requests for extensions to timelines when appropriately justified and if a PSP-YW nominee lacks access to the DoD network. (T-1)

f. (Added) (DAF) Commanders with PSAs will ensure individuals are properly vetted for PSD. At minimum, the commander will:

(1) (Added) (DAF) Apply prescreening methods to the fullest extent possible prior to requesting investigations for PSD candidates. (T-1)

(2) (Added) (DAF) Review all locally available records, including the records

identified in DoDI 5210.87, Enclosure 3 prior to nominating an individual for PSD. Ensure RFIs for PSP-YW nominees are answered expeditiously. (T-1)

(3) (Added) (DAF) Submit requests for extensions to timelines prior to due date with appropriate justification if a PSP-YW nominee lacks access to the DoD network. (T-1)

(4) (Added) (DAF) Review and update applicable personnel processing codes (PPCs) every 24 months or earlier if changes are required. (T-1)

(5) (Added) (DAF) Continually evaluate personnel serving in PSD positions to ensure they meet the highest standards of judgment, reliability, trustworthiness, and suitability based on DoDI 5210.87 and DoDM 5200.02 standards. (T-0)

(6) (Added) (DAF) Instruct each individual selected for PSD that the ultimate responsibility for remaining suitable rests with them. (T-1) Individuals are encouraged to seek appropriate guidance and assistance with any problem or situation which may have a possible impact on his or her suitability for utilization in PSD. (T-1)

(7) (Added) (DAF) When unfavorable information develops on personnel cleared for PSD and suitability is in question, take appropriate actions in accordance with DoDI 5210.87, Enclosure 3 to temporarily suspend or permanently remove the individual from the PSDs. If the information raises concerns under the Security Executive Agent Directive (SEAD) 4, *National Security Adjudicative Guidelines*, procedures will be initiated and reported in accordance with Section 13.7 Suspensions and Removals. (T-0)

g. (Added) (DAF) Other Roles and Responsibilities. There are key stakeholders that contribute to an effective DAF PSP-YW posture. These stakeholders include:

(1) (Added) (DAF) The Executive Secretary is the final approval and non-selection authority for the DAF PSP-YW nominees except for those who will be assigned to the Presidential Airlift Group (PAG).

(2) (Added) (DAF) The Senior DoD official detailed to the White House Military Office (WHMO), The Deputy Director, WHMO is delegated final approval, non-selection authority for all individuals who will be assigned to the PAG.

(3) (Added) (DAF) The Government Contracting Activity (GCA) and PSP-YW Program Management Office (PMO) will ensure individuals are properly vetted for PSDs. At minimum the GCA Program Management Office (PMO) will:

(a) (Added) (DAF) Apply prescreening methods to the fullest extent possible prior to requesting investigations for PSD candidates. (T-1)

(b) (Added) (DAF) Review all locally available records, including the records identified in DoDI 5210.87, Enclosure 3 prior to nominating an individual for PSDs. Ensure RFIs for PSP-YW nominees are answered expeditiously. (T-0)

(c) (Added) (DAF) Submit requests for extensions to timelines prior to due date with appropriate justification if a PSP-YW nominee lacks access to the DoD network. (T-1)

(4) (Added) (DAF) The Contracting Officer (CO) assigned to a PSP-YW contract in collaboration with the PSP-YW PMO, will ensure minimum requirements for PSP-YW nominations are included in all contracts with PSAs, in accordance with DoDI 5210.87. (T-0) In addition the CO, in collaboration with the PSP-YW PMO will:

(a) (Added) (DAF) Ensure National Industrial Security Program Operation Manual (NISPOM) requirements for all contractors assigned to Presidential support positions are included in all contracts as applicable. (T-0)

(b) (Added) (DAF) Ensure nomination prescreening procedures and requirements are included in all PSP-YW contracts and performed by the vendor. (T-1)

(c) (Added) (DAF) Ensure nomination procedures are followed. (T-1)

(d) (Added) (DAF) Review all nomination files to ensure each nominee meets the minimum standards for nomination to PSP-YW prior to forwarding to SAF/OCS for additional processing. (T-1)

(e) (Added) (DAF) Return nomination packages not meeting minimum standards without further processing or action. (T-1)

3.6. REINVESTIGATIONS

3.6.a.(1) (Added) (DAF) The DAF has fully transitioned from the traditional reinvestigation model to Continuous Vetting (CV). Periodic reinvestigations are no longer required for individuals enrolled in CV. Implementation requirements are outlined in the *Department of the Air Force Supplemental Guidance on Continuous Vetting and Transition to Trusted Workforce (TW) 2.0 Memorandum*, dated 4 October 2022. This guidance applies to all civilian and military personnel occupying a national security position to include those assigned to the Presidential Support Program, Personnel Reliability Assurance Program, Special Access Programs, and those requiring access to Sensitive Compartmented Information. The Office of the Under Secretary of Defense, Intelligence and Security (OUSD(I&S)) Memorandum, *Requirements for Department of Defense Components to Transition to Continuous Vetting and Delegation of Authority Memorandum,* dated 27 July 2022, required all Departments to implement TW 1.5 by 30 September 2022.

3.6.a.(2) (Added) (DAF) DAF civilian and military personnel will maintain current enrollment in a compliant TW CV capability. (T-1)
3.6.a.(3) (Added) (DAF) An updated SF-86 (or successor form) and authorization release forms will be collected at a five-year periodicity. (T-1) The commander will track the five-year periodicity date by the most recent CV enrollment date or SF-86 (or successor form) date, provided in DISS (or successor system). An updated form will be requested from the subject within 90 days of the five-year date. (T-1)

3.6.a.(4) (Added) (DAF) The security manager (assistant) will initiate the SF-86 (or successor form) in the National Background Investigation Services (NBIS) electronic application (eApp) (or successor system) for completion. (T-1)

3.6.a.(5) (Added) (DAF) Upon collection of the SF-86 (or successor form), the servicing IPO will verify the personally identifiable information (PII) contained in the SF-86 (or successor form), NBIS, and the Defense Information System for Security (DISS) are consistent. Additionally, the IPO will ensure DISS accurately reflects current DoD affiliation, eligibility, and an owning SMO relationship. (T-1)

3.6.a.(6) (Added) (DAF) The servicing IPO will screen SF-86 (or successor form) for newly reported information. (T-1) Derogatory information not included on previous SF-86 (or successor form) or previously reported as an incident report (IR) in DISS and adjudicated by AVS will be reported as a new incident in DISS (or successor system). (T-1) Non-derogatory information will be submitted to DCSA via a customer service report (CSR). (T-1)

3.6.a.(6)(i) (Added) (DAF) The servicing IPO will submit the updated SF-86 (or successor form) in NBIS eAPP (or successor system) to have the CV enrollment date updated. (T-1)

3.6.c.(1)(a) (Added) (DAF) The commander, through the servicing IPO, will ensure military and civilian personnel update their SF-86 (or successor form) at a five-year periodicity to ensure updated CV enrollment unless operational factors, illness, or budget constraint delay submission. (T-1)

3.6.c.(1)(b) (Added) (DAF) The security manager (assistant) will not initiate the SF-86 (or successor form) in NBIS eAPP (or successor system) for military or civilian personnel with less than 30 days retainability. (T-1)

3.6.c.(2)(b)(i) (Added) (DAF) The commander, through the servicing IPO will ensure an updated SF-86 (or successor form) is collected and submitted in NBIS eAPP (or successor system) for CV enrollment within 30 days of deployment or return to duty status. (T-1)

3.6.c.(2)(c)(i) (Added) (DAF) The commander may withdraw local access if the individual fails to complete an updated SF-86 (or successor form) without reasonable cause to cooperate with security processing. The commander will submit an IR in DISS (or successor system). (T-1)

3.6.c.(2)(d)(i) (Added) (DAF) The commander may restore local access once the SF-86 (or successor form) is updated and successfully submitted in NBIS eAPP (or successor system) for updated CV enrollment. Local access will not be restored if AVS has suspended eligibility in DISS (or successor system). (T-1)

3.6.d.(1)(a) (Added) (DAF) The commander, through the servicing IPO, will ensure an updated SF-86 (or successor form) is collected at a five-year periodicity for continued CV

enrollment. (T-1)

3.6.d.(2)(a)(i) (Added) (DAF) The commander, through the servicing IPO, will ensure an updated SF-86 (or successor form) is collected at a five-year periodicity for continued CV enrollment. (T-1)

3.6.d.(2)(b)(i) (Added) (DAF) The commander, through the servicing IPO. will ensure an updated SF-86 (or successor form) is collected at a five-year periodicity for continued CV enrollment. (T-1)

3.6.d.(2)(c) (Added) (DAF) The commander, through the servicing IPO, will ensure an updated SF-86 (or successor form) is collected at a five-year periodicity for continued CV enrollment. (T-1)

4.2. MILITARY PERSONNEL

4.2.e.(1) (Added) (DAF) The CFM must review the criteria listed in Section 4.2.e.(3) to determine whether the AFSC has a justified T5 investigative requirement. (T-1) If there is documented evidence that a T5 investigation is required, the Office of Primary Responsibility (OPR) or CFM will follow existing procedures to process the T5 code for additional, new, or upgrade requests. To request an exception, the OPR or CFM must submit valid justification for approval by the appropriate authority listed in Section 4.2.e.(4). (T-1) Requests for investigation upgrades require SAF/OCS coordination when it involves 25 or more personnel. SAF/OCS will provide coordination to verify the requirements and ability to support with the Personnel Security Investigation (PSI) budget. (T-1) For upgrade requests concerning 24 or less positions, the Wing/Delta Information Protection Office (IPO) will verify and validate the requirement, and coordinate on the request.

4.2.e.3.(k) (Added) (DAF) Air Force Office of Special Investigation (AFOSI) agents and investigative support staff designated as critical or special sensitive position.

4.2.e.(5)(a) (Added) (DAF) The Wing/Delta IPO will generate a semi-annual report on behalf of the commander. (T-1) This report will be submitted to the MAJCOM/FLDCOM IP Director and will include the number of new/upgraded T5 investigations and the number of downgrades using a one-for-one exchange. (T-1) This report will be submitted to SAF/OCS semi-annually, in January and July and will include the number of new/upgraded T5 investigations and the number of downgrades using a one-for-one exchange. (T-1)

4.8. RETIRED GENERAL OR FLAG OFFICER (GO/FO) OR CIVILIAN EQUIVALENT

4.8.a.(2) (Added) (DAF) Headquarters Air Force (HAF) Directors of Staff (DS), and HAF two letter directors will submit access requests for retired general officers, flag officers, senior executive service members or former senate confirmed presidential appointees to SAF/OC. MAJCOM/FLDCOM Deputy Commander (CD) will submit requests to SAF/OC

through the MAJCOM/FLDCOM IPO. The Requests must support a specific DAF program or mission IAW DoDM 5200.01, Volume 3, *DoD Information Security Program: Protection of Classified Information.* (T-0)

4.8.a.(2)(a) (Added) (DAF) The servicing IPO will provide guidance to the requesting organization to ensure the request meets all requirements outlined in Section 4.8 prior to submission to the cognizant MAJCOM/FLDCOM IPO. (T-1) The requesting organization will submit the name and social security number of the retired GO/FO to validate current/prior background investigation and clearance eligibility. (T-1)

4.8.a.(2)(b) (Added) (DAF) The requesting organization will provide a memorandum signed by the Wing/Delta Commander (or equivalent). (T-1) The Wing/Delta Commander's memorandum will include all information, as applicable, required by DoDM 5200.02 paragraph 4.8 and/or DoDM 5105.21 V3, Enclosure 2, to include the full name(s), date/type of the last background investigation and CV enrollment, current/prior access level held, date/level of access required, reason for access, and a compelling need statement. (T-1) See paragraph 4.a(3)(b) for additional requirements regarding documentation and treatment as unpaid DAF consultant. Coordinate with servicing staff judge advocate acknowledging the individual will be treated as an unpaid consultant and sign a non-disclosure agreement prior to being granted access to classified information. (T-1) The requesting official must use reasonable judgment to ensure individuals nominated for eligibility and access into the program will not be afforded any competitive advantage through release of classified or sensitive material. (T-1)

4.8.a.(2)(c) (Added) (DAF) The servicing IPO will submit the request to the MAJCOM/FLDCOM IP for routing to SAF/OC for approval via the designated task management system. (T-1) All requests must include the memorandum signed by the Wing/Delta Commander (or equivalent) and biography for each retired GO/FO. (T-1) Requests will be submitted to SAF/OC for approval no less than 21 business days prior to the requested access date. (T-1)

4.8.a.(3)(c) (Added) (DAF) A retired GO/FO with an updated SF-86 (or successor form) and current CE enrollment validated in DISS (or successor system), may be granted eligibility for up to one year. Access may be extended for an additional one-year period(s), provided there is a request, staffed through SAF/OC for approval, specifying a continued compelling need and the background investigation remains current. If a current clearance cannot be verified, SAF/OC may make a risk-based determination and authorize one-time access to classified information for retired GO/FOs with or without current eligibility. Access will be approved for a 90-day period at the level of classified information held at the time of retirement. (T-1) Access may be extended for 90-day increments upon receipt of a valid justification demonstrating compelling need.

4.8.(4)(a) (Added) (DAF) SAF/OC is authorized to waive the investigative requirement if continued access is required.

4.8.(5)(a) (Added) (DAF) SAF/OCS will provide coordination on retired GO/FO requests for access to classified information upon request from SAF/OC. (T-1)

4.8.(6)(a) (Added) (DAF) SAF/OCS will provide coordination on retired GO/FO requests for access to classified information and make a recommendation of approval to SAF/OC upon request. (T-1)

4.8.a.(9) (Added) (DAF) Political appointees, other than senate confirmed presidential appointees, such retired non-career senior executive service and schedule "C" employees, are not eligible for access to classified information under the provisions of this section. (T-1)

4.8.a(10) <u>Former Senior Enlisted Members</u>

4.8.a.(10)(a) (Added) (DAF) Former Senior Enlisted Members with a valid need-to-know, current security clearance eligibility, CV enrollment, and a signed non-disclosure agreement can be considered for access to classified information as prescribed in Section 8.2 of this publication.

4.8.a.(10)(b) (Added) (DAF) Former Senior Enlisted Members without current clearance eligibility can be considered for access to classified information as prescribed in DoDM 5200.01 and must meet all SEAD 8, *Temporary Eligibility* investigation requirements, prior to authorizing access.

4.8.b.(1) (Added) (DAF) AF/6UZ-CSA will approve requests for SCI access for SAF and USAF and USSF/S2-CSA will approve SCI access for Space Force. (T-1)

4.11. (Added) (DAF) SECURITY MANAGEMENT OFFICE (SMO) OWNERSHIP

a. (Added) (DAF) The commander/director, in coordination with the security manager (assistant) will ensure an owning or servicing relationship exists in DISS (or successor system) for all cleared civilian, military, and contractor personnel assigned to the unit/duty station. (T-1) A SMO relationship will enable effective management of all unit personnel and the timely processing of all AVS notifications.

(1) (Added) (DAF) All unit personnel will be owned or serviced in DISS (or successor system). The security manager (assistant) will establish an owning (military and civilian) or servicing (contractors) relationship by selecting the appropriate personnel category and confirming the unit's SMO code when adding personnel in DISS (or successor system).

(2) (Added) (DAF) The security manager (assistant) will request and review Alpha personnel rosters and Subject reports in DISS monthly (bi-monthly for the Air Reserve Component) to ensure accurate and positive ownership of covered personnel. Members no longer affiliated with the DAF will be removed. (T-1) The security manager

(assistant) will coordinate with the appropriate HR office to update MilPDS or DCPDS. (T-1)

(3) (Added) (DAF) AVS will send Continuous Vetting Reports (CVRs), IRs, and Supplemental Information Requests (SIRs)/Requests for Action (RFAs) to the collateral owning SMO identified in DISS (or successor system). The owning SMO is not responsible for processing CVRs, SIRs, or RFAs received for personnel assigned to non-sensitive public trust positions, including low, moderate and high-risk positions requiring T1/T2/T4 investigations. Instead, the owning SMO will notify the servicing CPO of the pending RFA and facilitate reassignment. (T-1) Reference DAFGM2025-36-01, *Suitability/Fitness Adjudication for Civilian Employees* for additional guidance.

(4) (Added) (DAF) The security manager (assistant) will monitor incoming RFAs via the task inbox or by running an RFA report in DISS (or successor system) on a weekly basis at minimum to process notifications or requests from AVS within the established timeframes. (T-1)

(5) (Added) (DAF) If the security manager (assistant) is notified of an IR for unit personnel with TS/SCI or SAP access, the security manager (assistant) is responsible for ensuring the information is shared with the appropriate SSO, GSSO, PSO, or CPSO. (T-1)

(6) (Added) (DAF) Upon notification of departing unit personnel, the losing SMO will contact the gaining SMO to share pending AVS actions. (T-1)

(7) (Added) (DAF) The losing SMO will maintain ownership of departing or transitioning personnel for 30 days after departure. The gaining SMO has 10 days from initial in-processing to establish DISS ownership. (T-1) The losing SMO will be responsible for managing all pending AVS actions or reports, CVRs or SIRs/RFAs for departed personnel until they are in-processed with the gaining SMO or no longer affiliated with the DAF. (T-1)

(8) (Added) (DAF) The losing SMO will then complete out-processing and transfer any open requests for action in DISS (or successor system) to the gaining SMO. (T-1)

(9) (Added) (DAF) <u>Incarcerated Personnel</u> – The losing SMO will maintain ownership with the subject until they are no longer affiliated with the DAF. (T-1) The losing SMO will be responsible for processing RFAs received from AVS. (T-1)

SECTION 11: CV AND REPORTING REQUIREMENTS

11.1.b.(1) (Added) (DAF) CV is an on-going review of an individual's background

to determine whether that individual continues to uphold requirements for cleared personnel, ensuring the DAF has a trusted workforce. Enrollment in CV does not remove an individual's responsibilities to comply with the SEAD 3.

11.1.b.(2) (Added) (DAF) All cleared individuals who have active affiliation with the DAF, have signed the 2010 or more recently dated version of the SF-86 (or successor form) and have valid eligibility to support access to classified information must be enrolled in CV. (T-1) An SF-86 (or successor form) will be submitted in NBIS eAPP (or successor system) to complete initial enrollment. (T-1) The servicing IPO is not responsible for enrolling personnel assigned to non-sensitive public trust positions into CV. Reference DAFGM2025-36-01, Suitability/Fitness Adjudication for Civilian Employees for additional guidance.

11.1.b.(3) (Added) (DAF) If the CV enrollment date in DISS (or successor system), or the last signed SF-86 (or successor form) exceeds a five-year period, the security manager (assistant) will initiate the SF-86 (or successor form) in NBIS eAPP (or successor system). (T-1) The servicing IPO will submit the SF-86 (or successor form) to update the CV enrollment date. (T-1)

11.1.b.(4) (Added) (DAF) The Office of the Under Secretary of Defense for Intelligence and Security (OUSD(I&S)), *Responding to Continuous Evaluation Alerts: New Guidance for Department of Defense Components Memorandum,* dated 18 May 2021, provides guidance for responding to validated alerts contained in CVR which are distributed in DISS (or successor system).

11.1.b.(5) (Added) (DAF) DCSA will send the RFA/SIR to the owning SMO along with an Acknowledge of Receipt (AOR) form. The AOR requires both the SMO and subject's signature and must be returned in 10 days via DISS. (T-1) The SMO will request a 10-day extension if required. (T-1)

11.1.b.(6) (Added) (DAF) The commander will follow guidance in this manual if a determination is made that the individual's local access should be suspended pending AVS adjudication of the information provided in CVR. (T-1)

11.1.b.(7) (Added) (DAF) The IPO will upload supporting information in DISS (or successor system) within 30 calendar days or request an extension. (T-1)

11.1.b.(8) (Added) (DAF) The security manager (assistant) will reference the DCSA CV Resource Guide (or successor document) for updated guidance and procedures regarding the DoD CV program, CVRs, and CV alerts. (T-1)

11.1.b.(9) (Added) (DAF) The collateral owning SMO is not responsible for processing RFAs, SIRs, CVRs, Transfer of Trust (TOT), etc. received for personnel assigned to non-sensitive public trust positions. The SMO will notify the servicing CPO of the request and facilitate reassignment to the servicing CPO. (T-1) Reference DAFGM2025-36-01, Suitability/Fitness Adjudication for Civilian Employees for additional guidance.

11.2.a.(f) (Added) (DAF) The commander will invite servicing IPO personnel to attend the installation "Cops and Robbers", "Justice Update" or equivalent meetings. (T-1)

11.2.a.(g) (Added) (DAF) The commander will provide police blotters, drug test results, court martial results or derogatory security concerns to the servicing IPO. (T-1)

11.6. (Added) (DAF) SECURITY EXECUTIVE AGENT DIRECTIVE (SEAD) 3 REPORTING REQUIREMENTS

a. (Added) (DAF) The Office of the Under Secretary of Defense, Intelligence and Security directed the implementation of the SEAD 3, Reporting Requirements in accordance with implementation (IAW) guidance memorandum dated November 02, 2020.

(1) (Added) (DAF) SEAD 3 establishes reporting requirements for all covered individuals who have access to classified information or hold a sensitive position.

(2) (Added) (DAF) Covered individuals, regardless of national security eligibility, access to classified information, or the sensitivity level of the position will report all reportable activities about themselves or other covered individuals. (T-0)

b. (Added) (DAF) SEAD 3 applies to all covered individuals, which includes DAF military and civilian personnel including contractors, consultants, volunteers, interns, grantees, and all other personnel who have access to classified information or hold a sensitive position through DAF affiliation.

(1) (Added) (DAF) Covered individuals will comply with the SEAD 3 by self-reporting changes in status to the commander/director, supervisor, or security manager (assistant). (T-0)

(2) (Added) (DAF) Contractor personnel will comply with the SEAD 3 reporting requirements prescribed in Title 32, Code of Federal Regulations, Part 117, and Industrial Security Letter 2021-02. (T-0)

(3) (Added) (DAF) Individuals indoctrinated for Top Secret/Sensitive Compartmented Information (TS/SCI) will self-report to their collateral Security manager (assistant) and Special Security Officer (SSO). (T-1)

(4) (Added) (DAF) Individuals accessed to a Special Access Program (SAP) will self-report to their collateral Security manager (assistant) and designated Government SAP Security Officer (GSSO) and/or Contractor Program Security Officer (CPSO). (T-1)

(5) (Added) (DAF) Individuals assigned to the Presidential Support Program – Yankee White (PSP-YW), will self-report through their security manager (assistant) via email to, SAF/OCSI.psp@us.af.mil. (T-1)

(6) (Added) (DAF) The commander/director through the servicing Information Protection Office (IPO) will forward reported information to the AVS via DISS (or successor system) within 5 business days. (T-0)

(7) (Added) (DAF) Non-incident reports will not be considered inherently derogatory in nature and will be provided as directed by the AVS or DoD policy guidance. (T-0)

c. (Added) (DAF) Commanders/directors, supervisors, and security managers (assistants) are not authorized to and will not mitigate potentially derogatory information that is based on credible information. (T-0) Deliberate failure to report information on other covered individuals IAW SEAD 3 may trigger an adverse security action against the individual that failed to report the information.

d. (Added) (DAF) The loss of a security manager's (assistant's) cognizance of a covered individual does not remove their responsibility to report credible information covered in SEAD 3. If the information cannot be reported in DISS, or successor system, due to lack of ownership, the Security manager (assistant) will coordinate with the servicing IPO. (T-1) The servicing IPO will contact the AVS to ensure the information is properly reported. (T-1)

e. (Added) (DAF) Foreign Travel. The commander/director in coordination with the security manager (assistant) will pre-approve foreign travel for civilian/military personnel. Foreign travel will be reported in DISS or successor system in five business days. (T-1) Reference Enclosure 6, *Reportable Activities,* for a consolidated list of unofficial/official foreign travel reporting requirements.

f. (Added) (DAF) Individuals indoctrinated for TS/SCI or SAP may have additional foreign travel reporting responsibilities as required by DoDM 5205.07, V2, *Special Access Program Security (SAP) Manual: Personnel Security* and DoDM 5105.21, V3, *Sensitive Compartmented Information (SCI) Administrative Security Manual; Administration of Personnel Security, Industrial Security, and Special Activities*.

(Added) (DAF) SECTION 13: PRESIDENTIAL SUPPORT PROGRAM-YANKEE WHITE (PSP-YW)

(Added) (DAF) 13.1. GENERAL

a. (Added) (DAF) The DAF PSP-YW program includes military members, civilian personnel, contractors, and employees of contractor firms who are assigned duties involving regular or frequent contact with the President or Presidential facilities, communications activities, equipment, or modes of transportation, including the maintenance of the Presidential retreat or Vice President's residence, communications, aircraft, or facilities. DoDI 5210.87, Enclosure 2, provides a complete list of the PSP categories. DAF personnel assigned to Category One or Category Two duties must have Top Secret or Top Secret/Sensitive Compartmented Information (TS/SCI) eligibility.

b. (Added) (DAF) Each DAF activity with a PSP-YW mission must make every effort to ensure only personnel demonstrating the absolute highest standards of judgement, reliability, trustworthiness, and suitability are recommended for PSDs. (T-0)

c. (Added) (DAF) Assignment authorities, selecting and hiring officials will make a selection determination to prequalify members for PSDs through effective prescreening methods prior to requesting investigations or nominating individuals to perform PSDs. (T-1)

d. (Added) (DAF) All persons assigned to PSDs will be volunteers for assignment to, or work in support of, the Presidential support mission. However, when volunteers are not available for enlisted support positions, qualified enlisted non-volunteers may be nominated. (T-0)

e. (Added) (DAF) The tour of duty for all military personnel selected for assignment to PSDs shall be stabilized for the maximum period allowable under the assignment policies of the DAF. At minimum, 2 years of obligated service from the date of approval is expected for personnel selected for PSDs. (T-0)

f. (Added) (DAF) All PSD determinations made by the Executive Secretary are final and may not be appealed.

(Added) (DAF) 13.2. PRE-SCREENING

a. (Added) (DAF) Initial screening must be accomplished prior to selecting an individual to proceed through the nomination process and prior to initiating a request for a T5 investigation. Local records checks will at minimum include a review of:

(1) (Added) (DAF) Unit personnel record group (UPRG), official personnel folder (OPF) and contractor employee records, if available, for the presence of information that is inconsistent with the intent of nominating the best and most suitably qualified members, i.e., letters of admonishment, counseling, and reprimand, Unfavorable Information Files (UIF), Article 15, Uniform Code of Military Justice (UCMJ), and Corrective Action Memorandums (CAM). (T-0)

(2) (Added) (DAF) Physical fitness reports, performance evaluations and performance ratings, as applicable, determine the individual has demonstrated consistently high standard of character, discretion, loyalty, and performance. (T-1)

(3) (Added) (DAF) Medical or health records. The review will be conducted by a medical officer or civilian physician, as appropriate. (T-0) In all cases, the medical officer or civilian physician must be a native born or naturalized United States citizen. (T-0) Specifically, a medical officer shall review the medical record and certify no physical or mental disorder is noted that could affect the individual's reliability or judgment. (T-0)

(4) (Added) (DAF) Local Records such as Personnel Information Files (PIFs), local police records and local security files, as applicable to determine the individual has demonstrated consistently high standards of character, discretion, loyalty, and performance. (T-0)

b. (Added) (DAF) Suitability and Security interviews may be conducted to assess an individual's attitude towards PSDs. (T-1)

(Added) (DAF) 13.3. BACKGROUND INVESTIGATION

a. (Added) (DAF) Initial T5 investigations for PSDs will be initiated by the gaining unit and will be identified, categorized, and prioritized. Submitting offices shall add the following information to the Agency Use Block (AUB): (T-0)

(1) (Added) (DAF) Position Code: Y-Yankee White.

(2) (Added) (DAF) Position Title: Category 6.

(3) (Added) (DAF) Accounting Data and/or Agency Case Number: USAF-PRT.

(4) (Added) (DAF) Block W will be completed for members who will PCS or move before the investigation is completed.

b. (Added) (DAF) DISS (or successor system) must reflect the individual is enrolled in continuous vetting within the past 36 months. (T-0)

(Added) (DAF) 13.4. NOMINATION.

a. (Added) (DAF) Following suitability and security interviews, and selection determination by the requesting PSA, a complete nomination file, including pre-screening questionnaire, unit nomination memorandums, medical certificate, SF-86 (or successor form) with signature pages with certified or electronic signature and a certification that all requirements of DoDI 5210.87 and this publication have been met, shall be forwarded using the format in Enclosure 6 to SAF/OCS. All documents must be dated within 12 months. (T-0)

b. (Added) (DAF) Continued assignment nominations will be submitted every 5 years for members currently approved for PSDs. Continued assignment nominations will be processed in the same manner as initial assignments but will include a copy of the initial PSD approval memo. (T-0)

(Added) (DAF) 13.5. CONTINUOUS VETTING (CV)

a. (Added) (DAF) In addition to the SEAD 3, used to determine an individual's

national security clearance eligibility and reporting requirements, each individual is required throughout the duration of assignment to report any of the below instances. (T-0). These include but are not limited to:

(1) (Added) (DAF) All interactions or disputes in which law enforcement officials were contacted, regardless of guilt, innocence, or the generation of a police report.

(2) (Added) (DAF) Letters of Admonishment, Counseling, Reprimand, Corrective Action Memo, verbal or written warnings, and disciplinary actions.

(3) (Added) (DAF) UIF establishment.

b. (Added) (DAF) Each individual is encouraged to seek appropriate guidance and assistance with any personal problem or situation which may have a possible impact on his or her suitability for continued utilization in PSD. (T-1)

(Added) (DAF) 13.6. SUSPENSIONS AND REMOVALS

a. (Added) (DAF) Temporary and permanent suspensions must be reported to SAF/OCS for notification to the Executive Secretary no later than the beginning of the following duty day. (T-1)

b. (Added) (DAF) In the event of permanent removal, the notification shall include an assessment as to whether or not unfavorable publicity will result. When there is possible embarrassment to the President, the Senior Agency Official (SAF/OC) shall notify the Executive Secretary during normal duty hours. Notification will be made to the Duty Officer location in the Cables Division, Correspondence and Directives Directorate. (T-0)

c. (Added) (DAF) Written follow up to include a summary of all available information, shall be forwarded within 3 working days. (T-1)

d. (Added) (DAF) If applicable, a full report of investigation shall be forwarded to the Executive Secretary through SAF/OCS within 60 days. (T-1)

G.1. ACRONYMS

AVS (Added) (DAF)	**Adjudication and Vetting Services**
CV (Added) (DAF)	**Continuous Vetting**
CVR (Added) (DAF)	**Continuous Vetting Reports**
IPO (Added) (DAF)	**Information Protection Office**
IR (Added) (DAF)	**Incident Report**
PII (Added) (DAF)	**Personally Identifiable Information**
PSP-YW (Added) (DAF)	**Presidential Support Program-Yankee White**
SIR (Added) (DAF)	**Supplemental Information Request**
TW (Added) (DAF)	**Trusted Workforce**
VRO (Added) (DAF)	**Vetting Risk Operations**

G.2. DEFINITIONS

(Added) (DAF) commander. These positions may include official heads for either military or civilian organizations, commands, and staff elements with jurisdiction over and responsibility for the execution of the organization's mission and functions. The official may carry the title of commander, commanding officer, director, Senior Material Leader, or other equivalent title.

(Added) (DAF) Covered individuals. SEAD 3 defines covered individuals. Covered individuals are not limited to government employees and include all persons who have access to classified information or who hold sensitive positions, including, but not limited to, contractors, subcontractors, licensees, certificate holders, grantees, experts, consultants, and government employees.

(Added) (DAF) PSA. A unit with duties involving regular or frequent access to the President or Vice President, or to facilities that support the same, including communications activities and modes of transportation.

(Added) (DAF) PSD. Presidential Support Duties performed once a member is approved through the PSP-YW nomination process to perform such duties, within the Presidential Support Activity (PSA).

REFERENCES

(Added) (DAF) OUSD(I&S) Memorandum, "*Implementation of Security Executive Agent Directive (SEAD) 3, Reporting Requirements for Personnel with Access to Classified Information or Who Hold a Sensitive Position,"* November 02, 2020

(Added) (DAF) ODNI/OPM, *"Transforming Federal Personnel Vetting: Continuous Vetting and Other Measures to Expedite Reform and transition to Trusted Workforce 2.0,"* January 15, 2021
(Added) (DAF) SEAD 8, "*Temporary Eligibility,"* May 10, 2020

(Added) (DAF) OUSD(I&S), "*Responding to Continuous Evaluation Alerts: New Guidance for Department of Defense Components Memorandum,"* May 18, 2021

(ADDED) (DAF) Enclosure 6

Reportable Activities

1. Reportable Actions by Others. To ensure protection of classified or other information specifically prohibited by law from disclosure, covered individuals shall alert their commander/director through the security manager (assistant) of the following reportable activities affecting themselves or other covered individuals that may be of potential security or counterintelligence concern:

a. An unwillingness to comply with rules and regulations or to cooperate with security requirements.

b. Unexplained affluence or excessive indebtedness.

c. Alcohol abuse.

d. Illegal use or misuse of drugs or drug activity.

e. Apparent or suspected mental health issues where there is reason to believe it may affect the covered individual's ability to protect classified or other information specifically prohibited by law from disclosure.

f. Criminal conduct to include all arrests.

g. Any activity that raises doubts as to whether another covered individual's continued national security eligibility is clearly consistent with the interests of national security.

h. Misuse of U.S. Government property or information systems.

i. Covered individuals who have been identified by their respective agency head in accordance with Section 1.3.(a) of Executive Order 12968, as amended, shall file a financial disclosure report, as appropriate.

2. Foreign Travel (Official/Unofficial)

a. Pre-approval is required for all unofficial travel. Covered individuals shall submit a complete itinerary including: date(s) of travel, mode of transportation, passport data, names and association of foreign national travel companions, planned contacts with foreign governments, or citizens during foreign travel and reason for contact, and emergency point of contact information to the commander/director through the security manager (assistant), when possible, at least 30 days prior to travel. Except as noted in the subparagraphs below, individuals must receive approval prior to foreign travel. Unanticipated border crossings into any foreign country not included in the traveler's approved itinerary, regardless of duration, are discouraged. All deviations from approved travel itineraries shall be reported within five business days of return. The security manager (assistant) will enter all foreign travel in DISS (or successor system) within five business days of completed travel.

b. Personal trips, in conjunction with official U.S. Government business (i.e. TDYs, deployments, etc.), must be pre-approved.

c. Travel to Puerto Rico, Guam, or other U.S. possessions and territories is not considered foreign travel and does not need to be reported.

d. Personnel stationed CONUS taking unplanned day trips to Canada or Mexico do not require pre-approval. Individuals will report travel within five business days of return.

e. As required by access, covered individuals will complete the Air Force Office of Special Investigations counterintelligence briefing prior to travel and report any anomalies within five days business days of return.

f. While emergency circumstances may preclude full compliance with pre-travel reporting requirements, covered individuals, at a minimum, shall verbally advise their

supervisor and/or security manager (assistant) prior to travel. In any event, full reporting shall be accomplished within five business days of return.

g. Less specific reporting is authorized for personnel stationed overseas in support of Department of Defense (DoD) missions taking unplanned personal day trips to foreign countries, with the exception of high risk countries listed in the Director of National Intelligence's Worldwide Threat Assessment of the U.S. Intelligence Community or U.S. Department of State-Bureau of Consular Affairs (https://travel.state.gov/content/travel/en/traveladvisories/traveladvisories.html.html). The SEAD 3 identifies additional classified and unclassified resources to help evaluate travel risks.

1) Covered collateral personnel stationed OCONUS are not required to obtain pre-approval for unplanned or planned day trips that support routine travel activities (e.g. domicile to work, childcare, medical appointments) to low-risk bordering countries. These personnel will provide an aggregated list of travel no less than once every 90 days to the security manager (assistant) for mandatory reporting in DISS or successor system. Reporting in DISS (or successor system) will occur within five business days. At a minimum, reporting should include dates of travel, countries visited, frequency, and purpose of travel. (e.g. Jan – Mar 2024, travel to Paris, France, 6x, for leisure & dining). Personnel experiencing any questionable or suspicious activities, behaviors, or contacts during travel will report these occurrences to the security manager (assistant) within 5 business days of return.

2) Commanders/directors are authorized to require that personnel provide more frequent reports or request pre-approval for additional countries at their own discretion. The SEAD 3 identifies additional classified and unclassified resources to help determine travel risk.

h. Personnel employed in the transportation industry (pilots, couriers, etc.) that routinely require non-U.S. government foreign travel do not require pre-approval for trips to foreign countries associated with their employment, with the exception of high-risk countries listed in the Director of National Intelligence's Worldwide Threat Assessment of the U.S. Intelligence Community. These personnel will report a consolidated list of their travel no less than every 90 days to the security manager (assistant) for reporting in DISS or successor system. Commanders/Directors may require their personnel to provide more frequent reports or request pre-approval for additional countries at their own discretion.

i. The Commander/Director may disapprove an unofficial foreign travel request when it is determined such travel presents an unacceptable risk, and the physical safety and security of covered individuals or classified information cannot be reasonably ensured. Sources such as the U.S. Department of State website (https://www.state.gov) can be utilized to review travel advisories. Failure to comply with such disapproval may result in administrative action including, but not limited to, revocation of national security eligibility.

j. Official foreign travel. Travel solely for U.S. Government business, or military overseas assignment on official government orders, does not need to be reported with the exception of: (1) individuals with sensitive compartmental information access may have additional reporting responsibilities and must report to their servicing Special Security Officer, in accordance with DoDM 5105.21, Volume 3. (2) individuals accessed to a special access program

(SAP) must report to the Government SAP Security Officer and/or Contractor Program Security Office, in accordance with DoDM 5205.07 and (3) DAF personnel visiting foreign government or internal organization establishments overseas will adhere to reporting requirements in accordance with DAFMAN 16-201.

3. Unofficial Foreign Contacts

a. Contact with a known or suspected foreign intelligence entity.

b. Continuing association with known foreign nationals that involve bonds of affection, personal obligation, or intimate contact or any contact with a foreign national that involves the exchange of personal information.

c. This reporting requirement is based on the nature of the relationship regardless of how or where the foreign national contact was made or how the relationship is maintained (i.e., via personal contact, telephonic, postal system, internet, etc.).

d. The reporting of limited or casual public contact with foreign nationals is not required absent any other reporting requirement in this directive.

e. Following initial reporting, updates regarding continuing unofficial association with known foreign nationals shall occur only if and when there is a significant change in the nature of the contact.

f. Foreign contacts will not be reported if:

1) Contact occurred solely as part of a covered individual's official duties and absent any bonds of affection or obligation.

2) Contact with foreign nationals is based solely on the obligations incurred as a result of a covered individual residing in a foreign country due to government employment (payment of rent, utilities, etc.) and absent any additional bonds of affection or obligation.

4. Reportable Activities for All Covered Individuals. In addition to the reporting requirements provided in section 1 (above), covered individuals shall also report the following.

a. Foreign Activities

1) Application for, and receipt of foreign citizenship;

2) Application, renewal, possession, or use of a foreign passport or identity card for travel;

3) Direct involvement in foreign business;

4) Foreign bank accounts;

5) Ownership of foreign property;

6) Voting in a foreign election; and

7) Adoption of non-U.S. citizen children;

8) Foreign Embassy Visits

b. Foreign National Roommate(s). Any foreign national(s) who co-occupies a residence for a period of more than 30 calendar days.

c. Attempted elicitation, exploitation, blackmail, coercion, or enticement to obtain classified information or other information specifically prohibited by law from disclosure regardless of means.

d. Media Contacts. Where the media seeks or shows interest in access to classified information, controlled unclassified information or other information specifically prohibited by law from disclosure, whether or not the contact results in an unauthorized disclosure. Media contacts related to the fulfillment of official duties of the position held by the covered individual need not be reported.

e. Arrests. All arrests must be reported within 72 hours of occurrence regardless of whether formal charges were filed or are pending court disposition.

f. Financial Issues and Anomalies. Including, but not limited to, bankruptcy; garnishment; over 120 days delinquent on any debt; and any unusual infusion of assets of $10,000 or greater such as an inheritance, winnings, or similar financial gain.

g. Alcohol and Drug related treatment.

h. Marriage. All civil marriages, legally recognized civil unions, and legally recognized domestic partnerships, not already listed on a covered individual's Standard Form (SF) 86 or previously reported. This includes a covered individual's spouse/partner who was born outside of the United States, and/or holds a foreign citizenship, to include dual citizenship with the United States and a foreign nation.

i. Cohabitation. Report all persons with whom a covered individual cohabitates, not already listed on a covered individual's SF 86 or previously reported. A cohabitant is defined as a person with whom a covered individual presently resides, other than a spouse or legally recognized civil union/domestic partner, with whom you share bonds of affection, obligation, or other commitments. This does not mean persons with whom a covered individual currently resides solely for reasons of convenience (e.g., a roommate). However, it does include a covered individual's cohabitant(s) who was born outside of the United States, and/or hold(s) a foreign citizenship, to include dual citizenship with the United States and a foreign nation.

j. Cryptocurrency. Ownership of foreign state-backed, hosted, or managed cryptocurrency and ownership of cryptocurrency wallets hosted by foreign exchanges must be reported. Diversified investments (e.g., index funds, mutual funds, etc.) do not need to be reported unless they are entirely composed of holdings in this sector.

k. Mental Health Treatment and Counseling. Consistent with Section 21 of the Questionnaire for National Security Positions (SF 86), mental health treatment and counseling that involves the following situations must be reported:

1) A court or administrative agency issued order declaring the covered individual to be mentally incompetent;

2) A court or administrative agency ordering the covered individual to consult with a mental health professional (e.g., psychiatrist, psychologist, licensed clinical social worker, etc.). An order by a military court would fall within the scope of this reporting requirement, but an order for a military member from a superior officer would not;

3) Hospitalization for a mental health condition;

4) Diagnosis by a mental health professional (e.g., psychiatrist, psychologist, licensed clinical social worker, etc.) with psychotic disorder, schizophrenia, schizoaffective disorder, delusional disorder, bipolar mood disorder, borderline personality disorder or antisocial personality disorder;

5) Occasions within the last seven years where the covered individual did not consult with a medical professional before altering, discontinuing, or failing to start a prescribed course of treatment for any of the above diagnoses. Include details related to any current treatment; and

6) Any mental health or other health condition that substantially and adversely affects the covered individual's judgment, reliability, or trustworthiness regardless of current symptoms.

l. Concerning Behavior and/or Conduct. Report behavior and/or conduct that may be considered to constitute a disqualifying condition under any of the national security adjudicative guidelines in Reference (c). Reports of concerning behavior or conduct must be based on credible information, not solely on rumor, innuendo, or unsubstantiated hearsay (i.e., statement of persons relating what someone else may have heard or observed that have not been independently corroborated by other facts). This information may be obtained from covered individuals or other sources including, but are not limited to:

1) Personal observation;

2) Command directed inquiries and investigations;

3) Reports of security violations and compromises of classified information;

4) Reports of investigation, to include, Law Enforcement reports, Inspector General Reports of Investigation, Equal Employment Opportunity violations; and

5) Information provided to Insider Threat programs/officials.

6) Information provided to Human Resources.

5. **This enclosure is not an inclusive list of all reporting activities or SEAD 3 Reporting Requirements**.

BY ORDER OF THE SECRETARY OF THE AIR FORCE

DEPARTMENT OF DEFENSE MANUAL 5200.02

AIR FORCEMANUAL 16-1405

1 AUGUST 2018

Operations support

AIR FORCE PERSONNEL SECURITY PROGRAM

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available for downloading or ordering on the e-Publishing web site at www.e-Publishing.af.mil

RELEASABILITY: There are no releasability restrictions on this publication

OPR: SAF/AAZ

Certified by: SAF/AAZ (Ms. Wendy Kay)

Supersedes: AFI31-501; 27 January 2005

Pages: 139

This publication implements guidance in the Air Force Policy Directive (AFPD) 16-14, *Security Enterprise Governance* and the Department of Defense Manual (DoDM) 5200.02, *Procedures for the Department of Defense Personnel Security Program*. The Department of Defense 5200.02 manual is printed word-for-word in regular font without change. The Air Force supplement material is printed in bold font and indicated by "**(Added) (AF)**." The supplement describes Air Force responsibilities under the manual and establishes the Air Force requirement to support the Department of Defense Personnel Security Program. The publication applies to Regular Air Force, the Air Force Reserve and Air National Guard, government civilian personnel and contractor personnel, who hold national security positions or perform national security duties. Refer recommended changes and questions about this publication to the Administrative Assistant to the Secretary of the Air Force using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. This publication may be supplemented at any level, but all Supplements must be routed to the OPR of this publication for coordination prior to certification and approval. Ensure that all records created as a result of processes prescribed in this publication are maintained IAW Air Force Manual 33-363, *Management of Records*, and disposed of IAW the Air Force Records Disposition Schedule (RDS) in the Air Force Records Information Management System (AFRIMS). The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See AFI 33-360, Publications and Forms Management, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the requestors commander for non-tiered compliance items. This publication requires the collection and or maintenance of information protected by the Privacy Act of 1974, DoD Directive (DoDD) 5143.01 and DoD

Instruction (DoDI) 5200.02. The applicable System of Records Notices (SORNs)- (F033 AF B, *Privacy Act Request File*~~,~~; F036 AF PCQ, *Personnel Data Systems;* and DMDC 24 DoD, *Defense Information System for Security*)

DoD Manual 5200.02

Procedures for the DoD Personnel Security Program (PSP)

Originating Component:	Office of the Under Secretary of Defense for Intelligence
Effective:	April 3, 2017
Releasability:	Cleared for public release. Available on the DoD Issuances Website at http://www.dtic.mil/whs/directives.
Incorporates and Cancels:	DoD 5200.2-R, "Personnel Security Program," January 1987 Under Secretary of Defense for Intelligence Memorandum, "Minimum Requirements for Interim Eligibility to Access Secret and Confidential Information," January 17, 2014
Approved by:	Todd R. Lowery, Performing the Duties of the Under Secretary of Defense for Intelligence **Ms. Patricia J. Zarodkiewicz, SAF/AA**

Purpose: In accordance with the authority in DoD Directive (DoDD) 5143.01 and DoD Instruction (DoDI) 5200.02, the issuance implements policy, assigns responsibilities, and provides procedures for the DoD PSP. This issuance:

- Assigns responsibilities and prescribes procedures for investigations of individuals seeking to hold national security positions or perform national security duties who are required to complete Standard Form (SF) 86, "Questionnaire for National Security Positions," for personnel security investigations (PSIs).

- Sets procedures for DoD PSP national security eligibility for access determinations; personnel security actions; continuous evaluation (CE); and security education requirements for employees seeking eligibility for access to classified information or to hold a sensitive position (referred to in this manual as "national security eligibility").

- Prescribes procedures for administrative due process for employees. Administrative due process for **contractor personnel** is governed by DoDD 5220.6.

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SECTION 1: GENERAL ISSUANCE INFORMATION

1.1. APPLICABILITY. This issuance applies to OSD, the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the National Guard Bureau, the Combatant Commands, the Office of the Inspector General of the Department of Defense, the Defense Agencies, the DoD Field Activities, and all other organizational entities within the DoD (referred to collectively in this issuance as the "DoD Components").

1.2. INFORMATION COLLECTIONS.

a. The PSP policy and procedures assessments, referred to in Paragraph 2.2.d of this manual, does not require licensing with a report control symbol in accordance with Paragraph 1b(9) of Section 3 to Volume 1 of DoD Manual 8910.01.

b. Annual DoD PSI Projections Report, referred to in Paragraph 2.10.c of this manual, has been assigned report control symbol DD-INT(A)2641 in accordance with the procedures in Volume 1 of DoD Manual 8910.01.

c. The Inspector General reports, referred to in Paragraph 2.10.q of this manual, do not require licensing with a report control symbol in accordance with Paragraph 1b(6) of Section 3 to Volume 1 of DoD Manual 8910.01.

d. The annual limited access authorization (LAA) Summary Report, referred to in Paragraph 6.1.c. of this manual, has been assigned report control symbol DD-INT(A)2642 in accordance with the procedures in Volume 1 of DoD Manual 8910.01.

e. The Bond Amendment Waiver Report, referred to in Paragraph 7B.3.e. of this manual, does not require licensing with a report control symbol in accordance with Paragraph 1b(16) of Section 3 to Volume 1 of DoD Manual 8910.01.

SECTION 2: RESPONSIBILITIES

2.1. UNDER SECRETARY OF DEFENSE FOR INTELLIGENCE (USD(I)). The USD(I):

a. Serves as the DoD Senior Security Official.

b. Develops policy, guidance, and oversight for the DoD Personnel Security Program (PSP), in accordance with DoDD 5143.01, in that capacity reviews and approves DoD Components' policy and procedures governing civilian, military, and contractor personnel PSPs within the DoD.

c. Ensures that the DoD PSP is consistent, cost effective, efficient, and balances the rights of individuals with the interests of national security.

d. Coordinates with the General Counsel of the Department of Defense (GC DoD) to ensure legal sufficiency of DoD personnel security policy and procedures, in accordance with DoDI 5145.03.

e. Oversees DoD national security investigations, adjudications, and access determinations pursuant to Executive Order (E.O.) 12968 and national security adjudicative guidelines in the August 30, 2006 USD(I) Memorandum.

f. Issues and interprets all policies governing the Joint Personnel Adjudication System (JPAS), as defined in the Glossary.

g. Oversees the implementation of PSP policy pertaining to sensitive compartmented information (SCI) pursuant to Chapter 3 of Title 5, United States Code (U.S.C.), and Intelligence Community Directive Number 704.

h. Develops and oversees administration of that portion of the DoD PSP pertaining to DoD Special Access Programs (SAPs) in accordance with DoDD 5205.07.

i. Oversees integration of PSP requirements in other DoD issuances.

j. Ensures DoD Components integrate security education and awareness into their PSPs.

k. Requires DoD Components to adequately resource their programs for military, civilian, and contractor personnel investigations and meet established personnel security policies and procedures.

l. Coordinates with investigative service providers (ISPs) on background investigation quality issues in accordance with national policy and inter-agency agreements.

m. Monitors DoD compliance with Section 3341 of Title 50, U.S.C. investigative and adjudicative timelines.

n. Approves adoption of DoD enterprise-wide personnel security systems of record.

o. Issues and interprets policy for the Adjudicator Professional Certification (APC) program.

p. Reviews and makes determinations on DoD Component requests for waivers to personnel security policy.

q. Issues policy, assigns responsibilities, and prescribes procedures for CE within the DoD Personnel Security Program, in accordance with E.O. 12968.

2.2. DIRECTOR, DEFENSE INTELLIGENCE (INTELLIGENCE AND SECURITY) (DDI&I&S)). Under the authority, direction, and control of the USD(I), the DDI(I&S):

a. Oversees DoD personnel security policy matters.

b. Provides staff assistance to the DoD Components in resolving day-to-day personnel security policy and operating problems.

c. Provides personnel security policy guidance and interpretation to the DoD Components.

d. Assesses the DoD Components for implementation and compliance with DoD PSP policy and procedures.

e. Approves, coordinates, and oversees all DoD personnel security research initiatives and activities, excluding research efforts relating to individual DoD Components.

2.3. DIRECTOR, DEFENSE SECURITY SERVICE (DSS). Under the authority, direction, and control of the USD(I), in addition to the responsibilities in Paragraph 2.10 and in accordance with DoDD 5105.42, the Director, DSS:

a. Reports to USD(I) Security Policy and Oversight Division by May 15 the annual contractor personnel PSI workload projections for the National Industrial Security Program (NISP), to include the number and type of clearances required and funding requirements in accordance with DoDI 5220.22.

b. Budgets, funds, and submits background investigation requests for contractor personnel who require access to classified information under the NISP.

c. Processes, reviews, and grants interim personnel security eligibility for contractor personnel under the NISP where DoD serves as the Cognizant Security Agency (CSA) in accordance with DoDI 5220.22.

d. Determines, after consultation with the GC DoD, when action should be taken in the interests of national security to suspend a contractor personnel clearance eligibility in accordance with the provisions of DoD 5220.22-R and the May 13, 2009 USD(I) Memorandum.

e. Establishes and administers education, training, and certification programs for the personnel security discipline and related systems (e.g., the Security Professional Education Development Program (SPēD)) in accordance with DoDI 3305.13 and JPAS.

f. Maintains certification records and related documentation in accordance with DoDI 3305.13 and DoD 3305.13-M.

g. Confirms that the applicable government contracting activity has a valid need before approving extensions of interim eligibility beyond 1 year.

2.4. GC DOD. The GC DoD, in consultation with the USD(I) and pursuant to DoDI 5145.03, establishes guidance, provides legal advice, and exercises legal oversight of the DoD PSP to ensure fair, timely, and consistent treatment of individuals and to verify that the rights of individuals are being protected in accordance with the Constitution, laws of the United States, E.O.s, and DoD policy.

2.5. DIRECTOR, DEFENSE OFFICE OF HEARINGS AND APPEALS (DOHA). Under the authority, direction, and control of the GC DoD, the Director, DOHA, conducts hearings and appeals in accordance with this manual and DoDD 5220.6 as applicable.

2.6. UNDER SECRETARY OF DEFENSE FOR PERSONNEL AND READINESS (USD(P&R)). The USD(P&R) provides applicable position designation guidance, integrating and complementing existing regulations (e.g., information assurance, information technology, Counterintelligence (CI)) to the DoD Components as established in the May 10, 2011 USD(P&R) Memorandum.

2.7. DIRECTOR, DEPARTMENT OF DEFENSE HUMAN RESOURCES ACTIVITY (DODHRA). Under the authority, direction, and control of the USD(P&R), the Director, DoDHRA, through the Director, Defense Manpower Data Center:

a. Plans, programs, executes, updates, and maintains information technology systems to support the DoD PSP as well as future initiatives and applications approved by the USD(I) (e.g., automated clean case screening and automated records checks).

b. Coordinates with the Office of the Under Secretary of Defense for Intelligence (OUSD(I)), DoD Consolidated Adjudication Facility (CAF), DoD Components, and the Office of the Deputy Chief Management Officer (DCMO) to develop, coordinate, and publish procedures and processes on the management and accessibility of data in JPAS.

c. Sustains personnel security databases, applications, and collateral operations in accordance with the February 2, 2010 Memorandum of Agreement.

d. Provides personnel security data to the OUSD(I) and to DSS as requested by OUSD(I).

e. Provides analysis, research, and development support through the Defense Personnel and Security Research Center to OUSD(I), to advance DoD personnel security policy, programs, and DoD and Executive Branch reform efforts.

2.8. UNDER SECRETARY OF DEFENSE FOR ACQUISITION, TECHNOLOGY, AND LOGISTICS (USD(AT&L)). In coordination with the Director, DSS, the USD(AT&L) establishes policies and procedures to ensure applicable personnel security requirements for classified access in contracts are enforced.

a. (Added) (AF) On February 1, 2018, USD (AT&L) was reorganized into Undersecretary of Defense for Acquisition and Sustainment (USD(A&S)) and Under Secretary of Defense for Research and Engineering (USD(R&E)).

2.9. DIRECTOR, WASHINGTON HEADQUARTERS SERVICES (WHS). Under the authority, direction, and control of the DCMO, and in addition to the responsibilities in Paragraph 2.10, the Director, WHS:

a. Conducts national security eligibility adjudications for the Department of the Army, Department of the Navy, Department of the Air Force, Joint Chiefs of Staff, contractor employees, and DoD agencies in accordance with the October 20, 2010 Deputy Secretary of Defense Memorandum, and for personnel outside the Executive Branch and for certain non-DoD Agencies pursuant to agreements.

b. Establishes policy and procedures, in conjunction with OUSD(I), for DoD Consolidated Adjudications Facility (DoD CAF operations).

c. Exercises certain head of the IC element authorities to determine Sensitive Compartmented Information (SCI) eligibility in accordance with the October 22, 2012 Director of National Intelligence (DNI) Memorandum.

d. Establishes a quality assurance program that:

(1) Determines the completeness of national security investigations and adjudicative rationales in accordance with the November 8, 2009 and August 31, 2010 USD(I) Memorandums.

(2) Evaluates incomplete national security investigations in accordance with the July 13, 2010 and March 10, 2010 USD(I) Memorandums.

2.10. DOD COMPONENT HEADS. The DoD Component heads:

a. Appoint a senior security official to be responsible for direction, overall management, functioning, and administration of the Component's PSP.

(1) (Added) (AF) SecAF has appointed the Administrative Assistant to the Secretary of the Air Force (SAF/AA), as the Air Force Senior Security Official responsible for duties described above. See HAF Mission Directive 1-6.

(2) (Added) (AF) SAF/AA is responsible for providing PSP guidance to ensure the tasks listed in Sections 2.10.a to 2.10.x are executed. Related roles and responsibilities are addressed in Section 2.13 of this manual.

b. Provide a point of contact (POC) for PSI workload projections to OUSD(I).

c. Provide annual PSI workload projections to OUSD(I) no later than May 15. PSI projections should be within 5 percent of actual submissions.

d. Commit resources to satisfy projected PSP, PSI, and reinvestigation requirements to include contractor personnel PSIs when eligibility is required for positions of trust without access to classified information.

e. Validate and ensure prompt payment of ISP bills for all investigations ordered.

f. Ensure applicable personnel security requirements are included in all contracts, agreements, memorandums of understanding, and other similar documents.

g. Establish and maintain an ongoing self-inspection program to annually evaluate and assess the effectiveness and efficiency of the Component's implementation of the DoD PSP.

h. Direct commanders and activity heads to designate, in writing, an activity personnel security manager and, as appropriate, activity assistant security managers, who are given the authority to assist in program implementation, maintenance, and local oversight to ensure personnel adhere to program requirements. The activity personnel security manager will have direct access organizationally to activity leadership and will be organizationally aligned to oversee prompt and appropriate attention to PSP requirements.

i. Provide guidance, direction, and oversight necessary to ensure an appropriate training program addressing personnel security (e.g., SPēD) is administered effectively and in accordance with DoDI 3305.13 and DoD 3305.13-M.

j. Report information of a CI or security concern to the appropriate CI, law enforcement, or security authority in accordance with law and policy. Develop, distribute, and oversee procedures to meet standard reporting requirements for issues of security concern pertaining to subjects of national security eligibility determinations in accordance with Section 11 of this manual.

k. Establish a program for employees with access to classified information to:

(1) Educate employees about individual responsibilities under the PSP.

(2) Inform employees about guidance and assistance available concerning issues that may affect their eligibility for access to classified information, including sources of assistance for employees who have questions or concerns about financial matters, mental health, or substance abuse.

l. Provide security, CI, and country awareness briefings, including applicable geographic Combatant Command force protection briefings, to individuals before foreign travel and conduct post-travel debriefings in accordance with DoDD 5240.06, DoDI 5200.39, and DoDI 2000.16.

m. Ensure that results of investigations are delivered to the DoD CAF or appropriate DoD IC central adjudication facilities for adjudication regardless of the source of the original request when requesting background investigations or reinvestigations for national security eligibility determinations.

n. Actively participate in the CE program as outlined in Section 11 of this manual.

o. Ensure personnel are trained on their security responsibilities in accordance with national security adjudicative guidelines in the August 30, 2006 USD(I) Memorandum, E.O. 13526, and the November 12, 2012 Presidential Memorandum and establish procedures to brief individuals at least annually.

p. Develop formal procedures to report misconduct, violations, or adverse information by contractor personnel to the appropriate adjudication facility.

q. Ensure inspector general investigations into misconduct by contractor personnel are recorded in the Defense Central Index of Investigations in accordance with DoDI 5505.07 and DoDI 5505.16 and are reported to DSS and the appropriate adjudication facility.

r. Submit and resource investigation requests for contractor personnel outside the NISP (i.e., investigations required for other than access to classified information).

s. Create and maintain records for contractor personnel investigations outside the NISP in the appropriate system of record.

t. Record access determinations and indoctrinations into the approved system of record and record access debriefings and separations as soon as individuals separate or terminate affiliation with the access granting authority.

u. Ensure personnel data in JPAS are valid, accurate, and current. Institute procedures to update data on a daily basis.

v. Ensure all Component actions support the opportunity for appeal and that actions required to process appeals are performed in accordance with the procedures in this manual.

w. Ensure requests for periodic reinvestigations are initiated in a timely manner, as described in Paragraph 3.6. of this manual.

x. Ensure contracts for contractor personnel in support of adjudications include requirements specified in Paragraph 4.7.b.

2.11. HEADS OF DOD IC ELEMENTS. In addition to the responsibilities in Paragraph 2.10, the heads of DoD IC elements will investigate, adjudicate, and grant eligibility for access to SCI and other controlled access program information pursuant to Title 5, U.S.C., Intelligence Community Directive 704, and Intelligence Community Policy Guidance Numbers 704.1, 704.2, 704.3, 704.4, and 704.5.

a. (Added) (AF) AF/A2 is the Head of the Intelligence Community AF Element (HICE). AF/A2 delegates the AF Cognizant Security Authority to Intelligence and Reconnaissance, Office of the Director, Future Warfare, Special Programs (AF/A2WZ-CSA).

b. (Added) (AF) The AF/A2WZ-CSA must serve as the AF authority for all aspects of security program management for the protection of national intelligence and intelligence sources, methods and Air Force activities as outlined in Intelligence Community Directive 700, *Protection of National Intelligence*. (T-0).

2.12. SECRETARY OF THE AIR FORCE. In addition to the responsibilities in Paragraph 2.10, the Secretary of the Air Force:

a. Serves as the single POC to provide information technology funding, hosting, and technical support for the Central Adjudication Security Personnel Repository or successor system to support the DoD's PSI billing responsibilities for military, civilian, and contractor personnel investigations, in accordance with the January 15, 2009 Deputy Secretary of Defense Memorandum and the August 6, 2009 Memorandum of Agreement between OUSD(I) and the Air Force.

b. Serves as the POC for military, civilian, and contractor personnel investigations to receive, manage, report on, monitor, evaluate, and resolve DoD bills for national security investigations from the U.S. Office of Personnel Management (OPM), in accordance with the August 6, 2009 Memorandum of Agreement between OUSD(I) and the Air Force. The POC:

(1) Provides copies of billing data to OUSD(I) and Defense Personnel Security and Research Center as needed.

(2) Notifies OUSD(I) of any unresolved billing issues.

(3) Conducts all financial transactions with OPM in accordance with Section 305, Chapter 3 of Volume 4 of DoD 7000.14-R.

(4) (Added) (AF) Information Management (SAF/AAI) in collaboration with Security, Special Program Oversight and Information Protection (SAF/AAZ) is responsible for tasks listed in Section 2.12a-b.

2.13. (ADDED) (AF) Air Force Personnel Security Program.

a. (Added) (AF) SAF/AA is the SecAF appointed authority responsible for oversight of Information Protection for the Air Force Security Enterprise. See HAF Mission Directive 1-6.

b. (Added) (AF) SAF/AAZ serves as the principal advisor to SAF/AA for the Information Protection. SAF/AAZ provides strategic policy and addresses the equities within the functional portfolio related to Information Protection to include the Air Force Industrial Security, Information Security and the Personnel Security Program (PSP).

c. (Added) (AF) The Security Program Executive (SPE) is appointed by the Major Command, Direct Reporting Unit, Field Operating Agency (MAJCOM, DRU, FOA) Commander IAW AFPD 16-14, *Security Enterprise Governance*. The SPE is responsible for oversight of each respective MAJCOM, DRU, FOA Information Protection. As used throughout this manual, the term MAJCOM includes DRU and FOA.

(1) (Added) (AF) The SPE provides oversight of PSP and enforces standards to ensure persons deemed eligible for national security positions remain reliable and trustworthy for the command within their area of responsibility, in addition to the requirements in AFI 16-1404, *Air Force Information Security Program* and AFI 16-1406, *Air Force Industrial Security Program*. At a minimum, the SPE will:

(a) (Added) (AF) Approve program waivers and exceptions to policy and submit them to SAF/AA, when necessary.

(b) (Added) (AF) Assess reports concerning espionage, sabotage, subversive activities, deliberate compromises of classified information and leaks of classified information. Report the information to the appropriate organizational entity for action.

(c) (Added) (AF) Ensure an annual review and validation of position attributes within the Manpower Programming and Execution System (MPES) are conducted every May 15th. (T-1). The review must be available during self-inspection, assessments or upon SAF/AAZ requests.

(d) (Added) (AF) Ensure the DoD Insider Threat Management and Analysis Center (DITMAC) threshold-level events are reported to the AF Insider Threat Hub (InT Hub) through the DITMAC System of Systems- U.S. Air Force (DSoS-USAF) (or successor system) as prescribed in AFI 16-1402, *Air Force Insider Threat Program Management.*

(e) (Added) (AF) Ensure derogatory information that falls within the national security adjudicative guidelines are reported to the DoD Consolidated Adjudication Facility (DoD CAF), law enforcement or Air Force Office of Special Investigations (AFOSI) as prescribed within Section 9 of this manual.

(f) (Added) (AF) Assign security assistant to the Command Support Staff to perform administrative security functions for their organizations IAW AFI 16-1404.

d. (Added) (AF) The MAJCOM Director, Information Protection is responsible to the SPE for integrating the PSP into MAJCOM operations. The MAJCOM Director provides oversight and direction to the security specialists and other personnel assigned to the MAJCOM Information Protection Directorate. In addition to the requirements in AFI 16-1404 and AFI 16-1406, the MAJCOM Director, Information Protection will:

(1) (Added) (AF) Assess program waivers and exceptions to policy and validate the accuracy prior to submission to the SPE for approval.

(2) (Added) (AF) Provide the SPE with risk based countermeasure strategies concerning reported espionage, sabotage, subversive activities, deliberate compromise of classified information and leaks of classified information.

(3) (Added) (AF) Participate in SPE designated forums to address Information Protection concerns.

(4) (Added) (AF) Ensure PSP supplements are coordinated with SAF/AAZ prior to publication.

(5) (Added) (AF) Use Enterprise Protection Risk Management (EPRM) to conduct program risk assessments IAW AFI 90-201, *The Air Force Inspection System*.

(6) (Added) (AF) Ensure Personnel Security Specialists assigned to the Information Protection Directorate are trained IAW AFI 16-1404, *Air Force Information Security Program,* to include civilian, military or contractor personnel.

(7) (Added) (AF) Develop personnel security data calls and provide responses to SAF/AAZ when requested.

(8) (Added) (AF) Provide guidance to Wing Chief, Information Protection and direction to staff directors and special staff.

e. (Added) (AF) MAJCOM Personnel Security Specialists (OPM Occupational Series 0080) are responsible for implementing a robust PSP for the command. At a minimum, MAJCOM Personnel Security Specialists will:

(1) (Added) (AF) Research personnel security program standards to validate waivers and exceptions.

(2) (Added) (AF) Provide MAJCOM leadership with risk based countermeasure strategies and recommendations related to PSP.

(3) (Added) (AF) Complete applicable training requirements within this manual for PSP activities.

(4) (Added) (AF) Act as a liaison and provide PSP guidance and administrative procedures (e.g., continuous evaluation program, investigative process, due process etc.) throughout areas of responsibility to include Wings and installations.

(5) (Added) (AF) Facilitate access of automated personnel security systems access to subordinate IPO.

(6) (Added) (AF) Act as a liaison with subordinate IPO and NBIB for submission of investigations and case status.

(7) (Added) (AF) Facilitate SETA programs covering PSP responsibilities and responsibilities to subordinate IPO.

f. (Added) (AF) At the Wing level, the Wing Commander provides Information Protection oversight by ensuring security controls, safeguards, and countermeasures are established through application of risk management principles. The Wing Commander may delegate this authority in writing to the Wing/Vice Commander (Wing/CV). At a minimum, the Wing Commanders will:

(1) (Added) (AF) Assign security assistant to the Command Support Staff to perform administrative security functions as prescribed in AFI 16-1404, *Air Force Information Security Program*. (T-1).

(2) (Added) (AF) Consult with the Wing IPO on personnel security actions that impact mission readiness such as unfavorable actions, one-time access etc. (T-1).

(3) (Added) (AF) Ensure Personnel Security Program (PSP) oversight is included in self-inspections, unit inspections and metrics. (T-1).

(4) (Added) (AF) Ensure continuous evaluation (CE) of personnel who hold security clearance eligibility or are assigned to sensitive positions as prescribed within Section 9 of this manual. (T-1).

(5) (Added) (AF) Ensure insider threat threshold information is reported to their command designated insider threat representatives and/or AF InT Hub as prescribed in AFI 16-1402, *Air Force Insider Threat Program Management*.

(6) (Added) (AF) Ensure subordinate commanders revalidate investigative requirements and position attributes in MPES by May 15th. (T-1). For the purpose of this supplement, a commander means a direct unit military commander or civilian equivalent. Units are defined in AFI 38-101, *Air Force Organization*. Hereinafter, the term commander, equivalent director or authorized representative will be referred to as "commander"

g. (Added) (AF) At the Wing level, the Wing IPO is responsible for oversight and implementation of the Wing PSP to the Wing Commander/Vice Commander (CC/CV). The Wing Chief provides oversight and direction to group and squadron commanders, directors, and security specialists assigned to the Wing IPO. At a minimum, the Wing Chief, Information Protection will:

(1) (Added) (AF) Provide guidance to commanders on CE and reporting responsibilities. (T-1). See section 11 of this manual.

(2) (Added) (AF) Conduct staff assistance visits and use EPRM IAW AFI 90-201, *The Air Force Inspection Program*. (T-1).

(3) (Added) (AF) Conduct annual self-inspections IAW AFI 16-1404, *Air Force Information Security Program*. (T-1).

(4) (Added) (AF) Assist commanders with resolving personnel security related issues and security incidents. (T-1). See section 9 of this manual.

(5) (Added) (AF) Deliver Security Education Awareness and Training (SETA) programs to satisfy security education and training requirements within area of responsibilities. Revise or augment training to support unique mission requirements. (T-1).

h. (Added) (AF) At the Wing level, Security Specialists report to the Wing Chief, Information Protection. The Wing Personnel Security Specialists have a multitude of duties that will be detailed throughout this instruction. At a minimum, Wing Personnel Security Specialists will:

(1) (Added) (AF) Provide guidance and direction to commanders on all aspects of the AF PSP to include background investigation process and access requirements. (T-1).

(2) (Added) (AF) Train subordinate on their duties and responsibilities IAW guidance listed in AFI 16-1404, *Air Force Information Security Program* and this manual. (T-1)

i. (Added) (AF) Commanders will ensure military and civilian personnel are properly cleared for access to classified information or sensitive positions. (T-1). At a minimum, the commander will:

(1) (Added) (AF) Continuously evaluate the trustworthiness of personnel with access to classified information or in sensitive positions IAW Section 11 of this manual. Commanders must consider access suspension when trustworthiness, loyalty, or honesty becomes questionable. (T-1).

(2) (Added) (AF) Review and validate the position attributes within MPES by May 15th are completed. Commanders must document the review in writing and ensure results are available during self-inspections, assessments etc. (T-1).

(3) (Added) (AF) Consult with the Civilian Personnel Section (CPS) or Human Resources Office (HRO) for guidance to determine investigative requirements and position sensitivity for civilian positions listed in core manning documents or position descriptions. (T-1).

(4) (Added) (AF) Coordinate with the servicing Manpower and Personnel offices to ensure no discrepancy exist in the Defense Civilian Personnel Data System (DCPDS) and Military Personnel Data System (MilPDS) as they flow information into JPAS (or successor system). (T-1).

(5) (Added) (AF) Utilize the Position Designation Tool as prescribed in Department of Defense Instruction 1400.25, Volume 731, *DoD Civilian Personnel Management System: Suitability and Fitness Adjudication For Civilian Employees*, to determine the investigative requirements and access for civilian positions. (T-0).

(6) (Added) (AF) Conduct program self-assessment as prescribed in AFI 90-201, *The Air Force Inspection System*. (T-1).

(7) (Added) (AF) Shall report any incident meeting one or more of the DITMAC threshold-level events to the AF InT Hub and respond to the InT Hub Request For Information (RFI) as prescribed in AFI 16-1402, *Air Force Insider Threat Program Management*.

(8) (Added) (AF) Ensure continuous evaluation (CE) of personnel who hold security clearance eligibility or are assigned to sensitive positions as prescribed within Section 9 of this manual. (T-1).

j. (Added) (AF) Individual affiliated with AF is expected to adhere to the PSP guidelines and procedures in order to obtain and maintain a national security eligibility or hold a sensitive position. A multitude of responsibilities will be detailed throughout this manual. At a minimum, an individual will:

(1) (Added) (AF) Complete security questionnaire and provide truthful answers to questions during the course of the background investigation process. (T-1).

(2) (Added) (AF) Protect classified information and report derogatory information that may impact security clearance eligibility IAW Section 11 of this manual. (T-1).

(3) (Added) (AF) Comply with security training requirements IAW with Section 12 and AFI 16-1404, *Air Force Information Security Program* . (T-1).

(4) (Added) (AF) Adhere to requested information from direct commander and servicing Information Protection Office (IPO) within a timely manner. (T-1).

(5) (Added) (AF) Report information of a counterintelligence concern to Air Force Office of Special Investigations (AFOSI).

k. Other Roles and Responsibilities. There are key stakeholders that contribute to an effective AF PSP posture. The following organizations include:

(1) (Added) (AF) AF/A2 has the authority to grant access to Sensitive Compartmented Information (SCI) within the Air Force. AF/A2 further delegates the responsibilities to Air Force Cognizant Security Authority, Senior Intelligence Officers and Senior Security Officers as outlined in Intelligence Community Directive 704, *Personnel Security Standards and Procedures Governing Eligibility for Access to Sensitive Compartment*

Information and Other Controlled Access Program Information **and Air Force Manual 14-304,** ***The Security, Use and Dissemination of Sensitive Compartment Information (SCI)*****.**

(2) (Added) (AF) AFOSI is the sole organization authorized to conduct counterintelligence investigations, operations, collection, functional services and other related services IAW AFI 71-101, Volume 4, ***Counterintelligence*****.**

(3) (Added) (AF) The Assistant Secretary of the Air Force, Manpower & Reserve Affairs (SAF/MR) has oversight of the Personnel Security Appeal Board (PSAB). A three-member PSAB panel will be formed to render final determinations when an unfavorable national security determination is appealed.

(4) (Added) (AF) The Department of Defense Consolidated Adjudications Facility (DoD CAF) is the adjudicative authority that grants or deny security clearance eligibility of AF personnel occupying sensitive positions and/or requiring access to classified material including Sensitive Compartmented Information (SCI).

(5) (Added) (AF) The Office of Personnel Management (OPM), National Background Investigations Bureau (NBIB) is AF's current investigative service provider. NBIB conducts background investigations for national security, suitability and credentialing investigations. In 2018, Defense Security Service (DSS) began assuming the responsibility from NBIB as DoD's investigative service provider. For the purpose of this manual, investigation service provider (ISP) will be used as a term of reference due to the transition.

SECTION 3: NATIONAL SECURITY INVESTIGATIONS

3.1. GENERAL. Military, civilian, contractor, consultant, and other affiliated personnel assigned to national security positions or required to perform national security duties will be subject to investigation to determine whether they are and will remain reliable, trustworthy, of good conduct and character, and loyal to the United States and whether granting or continuing national security eligibility is clearly consistent with the national interest.

a. Civilian position sensitivity will not be downgraded to facilitate recruitment or retention of personnel or to accommodate adverse security determinations.

b. Investigative requests will not be submitted for eligibility higher than what has been designated for the position or required for the duty to be performed.

(1) (Added) (AF) The servicing IPO will submit tier investigation requests to the ISP via Electronic Questionnaires for Investigations Processing (e-QIP) (or successor system[1]) IAW the Federal Investigative Standards (FIS). (T-0). The servicing IPO will adhere to OPM NBIB's booklet, "Requesting NBIB Personnel Investigations", (also known as "INV 15") for specific guidance on submission requests. (T-0). Additional investigative resources and information are located in OPM NBIB's website.

c. Non-U.S. citizens who will require eligibility for access to classified information must follow the LAA procedures in Section 6 of this manual. The number of LAA requests must be minimized.

3.2. FEDERAL INVESTIGATIVE STANDARDS (FIS).

a. The OPM Federal Investigative Notice 97-02 provides a summary of the FIS and the scope of the investigations used to grant national security eligibility. Additional requirements that exceed the FIS are not authorized.

b. The FIS, established by the December 13, 2008 DNI and OPM Memorandum, are being deployed in phases. The standards apply to investigations that determine eligibility for access to classified information, to hold a national security position, for physical and logical access, and for suitability for government employment.

(1) (Added) (AF) The Director of National Intelligence (DNI) and the Office of Personnel Management (OPM) memorandum, *Federal Investigative Standards Implementation Plan*, dated April 18, 2014, provide standards for conducting background investigations that determine eligibility to hold a national security position, for physical and logical access and for suitability for government employment. The servicing IPO will submit tier investigations IAW the FIS. (T-0). Additional FIS information is located in OPM's NBIB website.

[1] **E-APPLICATION will eventually replace e-QIP. DoD will use the information in the e-App system for investigations, adjudications, and continuous evaluation. E-App system will minimize the need for manual review, eliminate redundant data collection and support complete, accurate, and timely initiation of requests for investigations.**

(2) (Added) (AF) Table 2 captures the crosswalks of the former investigative products and the corresponding new FIS tier investigative requirements, position sensitivity levels and security access requirement (SAR) codes.

Table 2. (Added) (AF) Crosswalk Tiers and Investigative Requirements

Previous Investigation	Tier[1]	Required Investigative Form	Position Sensitivity Investigation Description	Access to Classified Information	Security Access Requirement (SAR) Code[2]
Single Scope Background Investigation	T5	SF 86	Special-Sensitive or Critical-Sensitive Top Secret, Sensitive Compartmented Information, (e.g., Information Technology Level – I, etc.)	Top Secret	5
				No access required	5
Background Investigation	T4	SF85P	High Risk, Public Trust	No access required	NA
National Agency Check with Law and Credit[3]/ Access National Agency Check and Inquiries[4]	T3	SF 86	Noncritical-Sensitive Secret, (e.g., Information Technology Level – II, etc.)	Secret	6 and 7
				No access required	6 and 7
Moderate Risk Background Investigation	T2	SF85P	Moderate Risk, Public Trust	No access required	NA
National Agency Check with Inquiries	T1	SF85_	Non-Sensitive low risk, physical and logical access, (e.g., Information Technology Level – III, etc.)	No access required	8
National Agency Check	NA	NA	no longer used on Manpower Programming and Execution System (MPES)	NA	NA

[1] **ALPHA numeric code (T1, T2, T3, T4 and T5) that corresponds to various position sensitivity levels required for national security clearance, suitability and credentialing investigation.**
[2] **ALPHA code designation that identifies the level of access necessary for each military and civilian position based on mission requirement. Each position is coded with a corresponding SAR and recorded in MPES.**
[3] **PREVIOUS minimum investigation for military and contractors requiring Secret access.**
[4] **PREVIOUS minimum investigation for federal employees requiring Secret access. T3 is the current minimum investigative requirement for military, contractors and federal employees who require Secret security clearance.**

3.3. INVESTIGATIVE REQUIREMENTS.

a. Occupants of national security positions and those performing national security duties for any DoD Component are subject to investigation unless they meet the reciprocity standards in Section 3. Civilian employee investigative requirements for competitive and excepted service are the same.

b. Authorized investigations are:

(1) Single Scope Background Investigation (SSBI) or its Equivalent Under the FIS. SSBIs are conducted to meet investigation requirements established by DoDD 5105.42 for those seeking to hold special-sensitive or critical-sensitive positions, and those requiring eligibility for access to Top Secret (TS), SCI, and Department of Energy (DOE) "Q" level information.

(a) (Added) (AF) The T5 investigation replaces SSBI and the T5 reinvestigation (T5R) replaces the reinvestigation for SBPR and PPR under the Federal Investigative Standards (FIS). (T-0). A favorably adjudicated SSBI, SBPR or PPR investigation prior to October 1, 2016 is acceptable, until the individual submits for the next reinvestigation. (T-0).

(2) Access National Agency Check and Inquiries (ANACI) or its Equivalent Under the FIS. The ANACI is the required initial minimum investigative requirement for federal civilian employees who require access to Secret, Confidential, or DOE "L" level classified information or eligibility to hold non-critical sensitive positions.

(a) (Added) (AF) The T3 investigation replaces ANACI and the T3 reinvestigation (T3R) replaces the reinvestigation under the FIS. (T-0). A favorably adjudicated ANACI investigation prior to October 1, 2015 is acceptable, until the individual submits for the next reinvestigation. (T-0).

(3) National Agency Check with Law and Credit (NACLC) or its Equivalent Under the FIS. Except as required by Paragraph 3.3.b(2), the NACLC is the required minimum investigation for:

(a) Contractor personnel for eligibility for access at the Confidential, Secret, and DOE "L" levels.

(b) Individuals seeking entry into the Military Departments (active duty, guard, or reserve) in accordance with the January 8, 2004 Deputy Under Secretary of Defense Memorandum.

(c) Service members requiring eligibility for access to Secret, Confidential, and DOE "L" levels.

(d) Individuals other than federal civilian employees requiring eligibility to occupy non-critical sensitive positions such as a consultant.

(1) (Added) (AF) The Intergovernmental Personnel Act (IPA) may require a security clearance depending on mission requirements. SAF/AA must approve IPA clearance requirement as prescribed in Section 4.6 of this manual. (T-1).

(e) Federal employees, contractor personnel, and Service members for continued access to Confidential or Secret information. Reinvestigations are discussed in Paragraph 3.6.

(f) (Added) (AF) The T3 replaces the NACLC or ANACI and the T3R replaces the reinvestigation under the FIS. (T-0). A favorably adjudicated NACLC, NACLC reinvestigation, ANACI or ANACI reinvestigation prior to October 1, 2015 is acceptable, until the individual submits for the next reinvestigation. (T-0).

c. Investigative requirements for other populations are outlined in Section 4 of this manual.

d. A SSBI, ANACI, NACLC, or an equivalent investigation completed within the past 5 years may be used to meet investigative requirements if the previous investigation was favorably adjudicated.

(1) (Added) (AF) A DoD military, civilian or contractor employee occupying a special-sensitive, critical-sensitive or noncritical-sensitive position should undergo a reinvestigation on a 5 year periodicity IAW the FIS (unless extenuating circumstances exist and interim guidance is directed by ODNI). (T-0).

3.4. POLYGRAPH. The polygraph may be used as a personnel security screening measure in accordance with DoDD 5210.48 and as stated in Paragraph 4.10.

3.5. POST-ADJUDICATIVE INQUIRIES. Post-adjudicative inquiries may be conducted by adjudication facility personnel or an approved ISP, as appropriate, to resolve any issues pertinent to the guidelines discussed in national security adjudicative guidelines in the August 30, 2006 USD(I) Memorandum with respect to an individual's national security eligibility. CE and reporting requirements are addressed in Section 8 of this issuance.

3.6. REINVESTIGATIONS. In accordance with the FIS, reinvestigations may be performed at any time after national security eligibility has been granted. Additionally, DoD employees in national security positions and contractor personnel performing national security duties will be subject to periodic reinvestigation (PR) on a recurring basis as described in this section. Submission of out-of-cycle reinvestigations must be justified before approval of the submission.

a. PR requests will be submitted no earlier than 3 months before the respective anniversary date of the close date of the last investigation.

(1) (Added) (AF) At a minimum, the commander will review the Joint Personnel Adjudication System (JPAS) monthly roster (or successor system) and identify personnel with approaching periodic reinvestigations. (T-2).

(2) (Added) (AF) The commander, in collaboration with the servicing IPO, will ensure periodic reinvestigations are conducted within the prescribed timeframe. (T-1).

(3) (Added) (AF) The servicing IPO will ensure notifications and instructions are sent to individuals to complete and submit the SF86 via e-QIP (or successor system). (T-1).

(4) Added) (Air Force) The servicing IPO will only submit T5R investigation based on AF mission requiring Top Secret eligibility and no earlier than 3 months from the individual's anniversary date. (T-1). Airmen with mandatory Top Secret Air Force Specialty Code (AFSC) requirements and are on special duty assignments (e.g., military training instructor, recruiter etc.) will not be submitted for T5R, until receipt of orders with Top Secret eligibility requirements.

(5) (Added) (AF) The servicing IPO will ensure new sets of electronic fingerprints are submitted in Secure Web Fingerprint Transmission (SWFT) to accompany the investigation request, if the previous investigation(s) contained unclassifiable fingerprints. (T-1). The servicing IPO will check the Central Verification System (CVS) (or successor system) to validate existing classifiable prints are in the system for T3R or T5R, prior to the release of the investigation request. (T-1).

(6) (Added) (AF) The servicing IPO will submit the investigation request in e-QIP (or successor system) with the catch 'em in conus (CC) code under extra coverage code when individual has an upcoming overseas deployment or permanent change of station. (T-1). The investigation service provider (ISP) will use this information to coordinate subject interviews prior to deployment or en route to permanent change of station, if possible.

b. Military and civilian personnel for whom periodic investigative requests are initiated must have at least 12 months remaining in service or employment.

(1) (Added) (AF) The commander will grant continued access without submission of periodic reinvestigations for military or civilian personnel with less than 12 month retainability, consistent with accomplishing an Air Force mission. (T-1).

c. Every effort should be made to ensure PRs are conducted within the prescribed timeframe so as not to undermine the ability of the DoD to accomplish its mission.

(1) National security eligibility will not be administratively downgraded nor access suspended based solely on the fact that a reinvestigation was not completed within the specific timeframe as long as the required reinvestigation was requested within the specific timeframe. Failure or refusal to complete forms and requests for reinvestigations on a timely basis can be grounds for termination of eligibility and will be reported to the appropriate adjudicative facility. Commanders and supervisors, in coordination with the security professional, will enforce reinvestigation requirements.

(a) (Added) (AF) The commander, through the servicing IPO, must ensure individuals submit the required paperwork for periodic reinvestigation unless operational factors, illness or budget constraints delays submission. (T-1).

(b) (Added) (AF) To avoid unnecessary cost, the commander, through the servicing IPO, will ensure the periodic reinvestigations are terminated for military and civilian

personnel who establish retirement or separation dates within the next 12 months, and for individuals transferred to inactive reserve. (T-1).

(2) National security eligibility will not be terminated for individuals who are unavailable to submit the required reinvestigation due to extended operational deployments, illness, or like situations. DoD Components will make every effort to ensure the requisite background investigation is submitted before deployment or when the individual is otherwise unavailable for a prolonged period. Individuals must submit the reinvestigation promptly upon return to work or duty status.

(a) (Added) (AF) The commander will waive the processing of the investigation for personnel who are deployed in austere environment or incapacitated due to hospitalization until the deployment has terminated or the individual returns to duty status. (T-1).

(b) (Added) (AF) The commander will ensure periodic reinvestigations are initiated within 30 days, after the circumstances precluding on-time submission no longer exist. (T-1).

(c) (Added) (AF) The commander may withdraw local access if the individual fails to submit the required reinvestigation due to negligence. The commander may submit an incident report in JPAS (or successor system) for failure to comply with personnel security administrative requirement.

(d) (Added) (AF) The commander may elect to restore local access once the SF 86 has been successfully submitted to the Investigation Service Provider (ISP).

d. A national security eligibility determination is deemed current if the reinvestigation is submitted to the investigation service provider within 5 years of the previous investigation close date. Personnel assigned to a North Atlantic Treaty Organization (NATO) staff positions may submit a reinvestigation request up to 1 year in advance of the required timeframe in accordance with DoDD 5100.55.

(1) Noncritical-sensitive or Equivalent Positions. The NACLC is the reinvestigation required for military, civilian, and contractor personnel requiring continuing eligibility for access to classified information no higher than Secret and for those civilian personnel occupying noncritical-sensitive positions. The reinvestigation will be initiated no later than 5 years from the close of the previous investigation.

(a) (Added) (AF) Under the Federal Investigative Standards (FIS), the T3R replaces the NACLC reinvestigation. (T-0). The servicing Information Protection Office (IPO) should ensure that T3R is submitted in 5-year periodicity (unless extenuating circumstances exist and interim guidance is directed by ODNI). (T-0). (T-0).

(2) Special-sensitive and Critical-sensitive or Equivalent Positions. Each DoD military and civilian employee occupying a special-sensitive or critical-sensitive position and each contractor personnel requiring continuing national security eligibility at an equivalent level will undergo a reinvestigation initiated on a 5-year recurring basis. There are two types of reinvestigations for the

SSBI. Security professionals should use the phased periodic reinvestigation disqualification table to determine the appropriate PR to request to conserve resources.

(a) Single Scope Background Investigation – Periodic Reinvestigation (SSBI-PR). The SSBI-PR must be requested if the subject discloses or the requestor is otherwise aware of information listed in the PPR disqualification table.

(b) Phased Periodic Reinvestigation (PPR). The PPR may be requested if the subject does not disclose anything of a security concern as part of the background information furnished for investigation. Select questions from the SF 86 constitute the criteria for determining when an SSBI-PR may be submitted as a PPR. Submit reinvestigations as PPRs unless a positive response is annotated for the items listed in the Table:

(c) (Added) (AF) Under the Federal Investigative Standards, the T5R replaces SBPR and PPR. (T-0). The servicing IPO should ensure that T5R is submitted in 5-year periodicity (unless extenuating circumstances exist and interim guidance is directed by ODNI). (T-0).

Table 1. PPR Disqualification

Citizenship	Subject is not a U.S. citizen, or has renounced or otherwise lost U.S. citizenship since the last investigation.
Dual Citizenship	Subject is a dual citizen or has obtained dual citizenship since the last investigation.
Foreign Activities	Subject has been employed by or acted as a consultant for any foreign government, firm, or agency; has engaged in any contact with a foreign government or its establishments or representatives on other than official U.S. Government business; or holds or has been issued a foreign passport.
Medical Record	Since the last investigation, subject has undergone mental health treatment that is reportable under Section 21 of the SF-86.
Police Record	Subject has been charged with or convicted of any criminal offenses (excluding traffic violations that do not involve alcohol or drugs, resulting in fines less than $300) since the last investigation.
Use of Alcohol	Subject has abused alcohol or has received any alcohol-related treatment or counseling since the last investigation.
Unauthorized Use of Illegal Drugs and Drug Activity	Subject has used any drugs illegally since the last investigation.
Financial Records	Subject provided positive response to questions regarding bankruptcy; gambling; failing to file or pay taxes; violation of government credit or travel card; seeking credit counseling; having financial issues involving court, Internal Revenue Service, or similar enforcement; or financial issues involving routine accounts.
Investigation Record	Subject has had an access authorization denied, suspended, or revoked, or has been barred from federal employment since the last investigation.

Association Record	Subject has associated with any individuals or groups dedicated to the violent overthrow of the U.S. Government or has acted to do so.

SECTION 4: SPECIFIC INVESTIGATIVE REQUIREMENTS BY POPULATION

4.1. CIVILIAN PERSONNEL.

a. Civilian Positions and Sensitivity Levels. Position designations are necessary to determine the requisite type of investigation. Consistent with the requirements of Part 732 of Title 5, U.S.C., DoD Components will designate civilian positions (competitive service, excepted service, Senior Executive Service, or other civilian positions, as prescribed in E.O. 10450 that require the occupant to perform national security duties as an employee of the federal Government with a sensitivity level in accordance with the May 10, 2011 USD(P&R) Memorandum and, as applicable, OPM guidance). Civilian position sensitivity will not be downgraded solely to facilitate recruitment or retention of personnel or to accommodate adverse security determinations. There are three levels of sensitivity pursuant to Part 732 of Title 5, U.S.C. that pertain to civilian personnel in national security positions:

(1) Special-sensitive. A special-sensitive civilian national security position is one with potential for inestimable damage to the national security or for inestimable adverse impact to the efficiency of the Department or the Military Departments. This includes:

(a) Positions requiring eligibility for access to SCI.

(b) Positions requiring eligibility for access to unique or uniquely productive intelligence-related special-sensitive information or involvement in SAPs.

(c) Any other civilian position the DoD Component head determines to be at a higher level than critical-sensitive due to special requirements that complement E.O. 12968 and E.O. 10450.

(2) Critical-sensitive. Any civilian national security position that has the potential to cause exceptionally grave damage to the national security including, but not limited to:

(a) Positions requiring eligibility for access to TS or DOE "Q" level classified information.

(b) Positions involving development or approval of war plans, major or special operations of war, or critical and extremely important items of war.

(c) National security policy-making or policy-determining positions, the duties of which have the potential to cause exceptionally grave damage to the national security.

(d) Positions involving investigative duties, including handling of CI investigations or background investigations, the nature of which has the potential to cause exceptionally grave damage to the national security.

(e) Positions related to the adjudication, recommendation of adjudicative determinations, or granting of national security eligibility.

(f) Positions involving duty on personnel security boards.

(g) Positions concerned with development or approval of plans, policies, or programs that affect overall DoD or DoD Component operations.

(h) Positions related to the conduct of CI activities.

(i) Senior management positions in key programs, the compromise of which could result in grave damage to the national security.

(j) Positions having direct involvement with diplomatic relations and negotiations.

(k) Positions involving independent responsibility for planning or approving continuity of government operations.

(l) Positions involving major and immediate responsibility for, and the ability to act independently without detection to compromise or exploit, the protection, control, and safety of the nation's borders and ports or immigration or customs control or policies, where there is a potential to cause exceptionally grave damage to the national security.

(m) Positions involving major and immediate responsibility for and the ability to act independently without detection to compromise or exploit the design, installation, operation, or maintenance of critical infrastructure systems or programs.

(n) Positions in which the occupant has the ability to independently damage public health and safety with devastating results.

(o) Positions in which the occupant has the ability to independently compromise or exploit biological select agents or toxins, chemical agents, nuclear materials, or other hazardous materials.

(p) Positions in which the occupant has the ability to independently compromise or exploit the nation's nuclear or chemical weapons designs or systems.

(q) Positions in which the occupant obligates, expends, collects, or controls revenue, funds, or items with monetary value in excess of 50 million dollars, or procures or secures funding for goods or services with monetary value in excess of 50 million dollars annually, with the potential for exceptionally grave damage to the national security.

(r) Positions in which the occupant has unlimited access to and control over unclassified information, which may include private, proprietary, or other controlled unclassified information, but only where the unauthorized disclosure of that information could cause exceptionally grave damage to the national security.

(s) Positions in which the occupant has direct, unrestricted control over supplies of arms, ammunition, or explosives or control over any weapons of mass destruction.

(t) Positions in which the occupant has unlimited access to or control of access to designated restricted areas or restricted facilities that maintain national security information classified at the TS or "Q" level.

(u) Positions working with significant life-critical or mission-critical systems, such that compromise or exploitation of those systems would cause exceptionally grave damage to essential government operations or national infrastructure.

(v) Positions in which the occupant conducts internal or external investigation, inquiries, or audits related to the functions described in Paragraphs 4.1.a(2)(a) through 4.1.a(2)(u), where the occupant's neglect, action, or inaction could cause exceptionally grave damage to the national security.

(w) Positions so designated by the DoD Component head.

(3) Noncritical-sensitive. Any civilian national security position that has the potential to cause significant or serious damage to the national security. This may include civilian national security positions:

(a) Requiring eligibility for access to Confidential, Secret, or DOE "L" level information.

(b) Not requiring eligibility for access to classified information, but having the potential to cause significant or serious damage to the national security.

(c) With access to automated systems that contain military active duty, guard, or reservists' personally identifiable information or information pertaining to Service members that is otherwise protected from disclosure by DoD 5400.11-R where such access has the potential to cause serious damage to the national security.

(d) Designated by the DoD Component head.

b. Investigative Requirements and Civilian Positions.

(1) Special-sensitive and Critical-sensitive. Civilian personnel in special-sensitive and critical-sensitive positions require a favorably adjudicated SSBI or its equivalent.

(2) Noncritical-sensitive. Civilian personnel in noncritical-sensitive positions require a favorably adjudicated ANACI or its equivalent. A NACLC or its equivalent may be used for appointment provided an ANACI has been requested from an authorized ISP and there is no more than 24 months break in service.

(a) (Added) (AF) The commander must ensure that military or contractor personnel that transition into a noncritical-sensitive federal civilian position are processed for a T3 investigation IAW Executive Order 13764. (T-0).

(b) (Added) (AF) A previous NACLC may be used for civilian appointment provided an initial T3 has been submitted to the ISP and there is no more than 24 months break in service.

(3) (Added) (AF) The Civilian Personnel Section (CPS) or Human Resources Office (HRO) will use the servicing IPO's Submitting Office Number (SON) to initiate a national security investigation requests and review SF86 for accuracy and completion. (T-1).

(4) (Added) (AF) The servicing IPO will release and submit all national security investigation requests received from CPS or HRO to the ISP. (T-1). This will ensure a suitability determination is conducted by CPS/HRO and an interim security clearance determination is completed by the commander, in collaboration with the servicing Information Protection Office.

(5) (Added) (AF) The servicing IPO will not be responsible for initiation, review and submission of background investigations related to suitability and fitness for military, civilian, contractor and volunteers. See AFGM2017-36-04, *Air Force Guidance Memorandum Establishing Suitability/Fitness for Civilian Employees*, for additional guidance.

(6) (Added) (AF) The servicing IPO will not submit investigation request that do not match the organization's position attributes in the Manpower Programming and Execution System (MPES). Once the MPES is updated or an authorization change request is received by the servicing Manpower Office, the investigation may be submitted.

(7) (Added) (AF) The commander will follow procedures set forth by the servicing Manpower Office and the CPS or HRO if there are existing discrepancies in JPAS (or successor system) and Defense Civilian Personnel Data System (DCPDS). (T-1).

4.2. MILITARY PERSONNEL.

a. The appointment, enlistment, and induction of each member of the Military Departments or their Reserve Components will be based on a favorably adjudicated PSI.

(1) (Added) (AF) The Security Executive Agent Directive 4, *National Security Adjudicative Guidelines,* is the source document used by Department of Defense Consolidated Adjudications Facility (DoD CAF) to adjudicate Personnel Security Investigations for national security positions.

(2) (Added) (AF) The appointment, enlistment, and induction of each service member will be based on a favorable review of a personnel security investigation and a national security clearance determination. The commander may make interim security access determination IAW section 7.16 of this manual.

(a) (Added) (AF) Military Accessions Vital to National Interest (MAVNI) and Lawful Permanent Resident (LPR) (e.g., green card recipients, etc.) personnel are not authorized to enter the military (Regular Air Force, Air Force Reserve, Air National Guard) without a final Military Service Suitability Determination (MSSD) and National Security Determination (NSD) as prescribed in Office of the Under Secretary Defense Personnel and Readiness, *Military Service Suitability Determinations for Foreign Nationals Who Are Lawful Permanent Resident*s dated October 13, 2017. (T-0). The commander will grant access to classified information if the individual holds a national security clearance eligibility in Joint Personnel Adjudication System (or successor system). (T-0).

(b) (Added) (AF) The commander will ensure an owning or servicing relationship exist in JPAS (or successor system) for service members under their security oversight. This relationship will allow the commander to receive notification of changes in an individual's security clearance eligibility or status.

(3) (Added) (AF) The servicing IPO will not submit investigation request that do not match the organization's position attributes in the Manpower Programming and Execution System (MPES). The commander will follow procedures set forth by the servicing Manpower Office, if there are existing discrepancies in JPAS (or successor system) and Military Defense Personnel Data System (MilPDS). (T-1).

b. The NACLC, or its equivalent, is the minimum investigation required for entry into the Military Departments.

(1) (Added) (AF) The T3 is the minimum investigation required for entry into the Regular Air Force, Reserve and Guard IAW the Federal Investigative Standards (FIS). (T-0). An individual with a favorable T3 investigation in JPAS (or successor system) may be granted access to classified information up to Secret.

(2) (Added) (AF) Airmen who are denied or revoked a favorable national security eligibility determination are afforded due process through Personnel Security Appeal Board (PSAB) or Defense Office of Hearings and Appeals (DOHA). See Section 10: Appeal Process for more information.

c. The NACLC, or its equivalent, will be conducted upon re-entry to any Military Department component when there has been a break in service longer than 24 months.

d. (Added) (AF) The Individual Ready Reserve (IRR) is a category of the Ready Reserve of the Reserve Component of the U.S. Armed Forces. While IRR is composed of former Regular Air Force or Reserve military personnel, they retain their status as uniformed military personnel and will be treated as such for this purpose.

(1) (Added) (AF) The commander will have discretionary authority to approve access to classified information for IRR upon activation. (T-1). Access requires a written justification and specific benefit to the AF. Access is kept to the absolute minimum for the work being performed and limited to a specific time.

(2) (Added) (AF) The commander will ensure the IRR is processed for the requisite investigation, if required. (T-1).

(3) The commander will ensure the individual signs a Standard Form 312, *Classification Information Nondisclosure Agreement* and the individual is briefed or re-briefed on security requirements in accordance with AFI 16-1404, *Air Force Information Security Program*. (T-0).

e. (Added) (AF) The commander or HAF-level Career Field Manager (CFM) must use discretion when requesting to upgrade security clearance requirements for civilian and military positions to Top Secret. (T-1).

(1) (Added) (AF) The CFM must review the criteria listed in Section 4.2.e.(3) to determine whether the AFSC has a justified T5 investigative requirement. (T-1). If there is documented evidence that a T5 investigation is required, the Office of Primary Responsibility (OPR) or CFM will follow existing procedures to process the T5 code for additional, new, or upgrade request and SAF/AAZ must be included in the coordination. To request an exception, the OPR or CFM must submit a valid justification for approval by the appropriate authority listed in Section 4.2.e.(4). (T-1)

(a) (Added) (AF) OPR or CFM must coordinate with SAF/AA before incorporating personnel security requirements for AFSCs into departmental publications IAW AFI 33-360, *Publications and Forms Management*.

(b) (Added) (AF) CFM will revalidate annual investigative requirements every May 15 and will submit this information to SAF/AAZ.

(2) (Added) (AF) The commander must review the criteria listed in Section 4.2.e.(3) to determine whether a billet has a justified T5 investigative requirement. (T-1). The commander will forward the authorization change request (ACR) request through the local manpower office, if there is a documented evidence that T5 investigation is required. (T-1) The servicing Manpower Office will update MPES with the updated position sensitivity level and corresponding security access requirement code.

(a) (Added) (AF) The commander will make every effort to downgrade a billet for each additional, new, or upgrade Top Secret request that is made using a one-for-one exchange, if possible. (T-1).

(b) Added) (AF) To request an exception, the commander must submit a valid justification to the appropriate approval authority in Section 4.2.e.(4). (T-1). The commander will route the request to the servicing Manpower Office and the appropriate MAJCOM IPO for coordination and review. (T-1).

(3) (Added) (AF) The commander or CFM will submit request to upgrade positions in MPES and will not require approval from 2-3 star general officer/senior executive service, if the position meets the listed criteria below: (T-1)

(a) (Added) (AF) Access to information technology (IT) systems that contain Top Secret information.

(b) (Added) (AF) Access to unique or uniquely productive intelligence sources or methods vital to the security of the nation.

(c) (Added) (AF) TS/SAP clearance and access requirement.

(d) (Added) (AF) Positions that could cause exceptionally grave damage and/or compromise technologies, plans, or procedures vital to the strategic advantage of the United States.

(e) (Added) (AF) Presidential Support Category 1 and 2 duties as prescribed in DoD 5210.87, *Selection of DoD Military and Civilian Personnel and Contractor Employees for Assignment to Presidential Support Activities*.

(f) (Added) (AF) Personnel Reliability Program (PRP) critical duties IAW DoDM 5210.42, *Nuclear Weapons Personnel Reliability Program.*

(g) (Added) (AF) Nuclear Command and Control with extremely sensitive information access.

(h) (Added) (AF) DoD or external agency Top Secret access requirement.

(i) (Added) (AF) Initial assignment to explosive ordnance disposal involving nuclear weapons positions.

(j) (Added) (AF) Access to North Atlantic Treaty Organization (NATO) Cosmic Top Secret, Cosmic TS Atomal or NATO Secret Atomal IAW United States Security Authority for NATO Affairs Instruction 1-07.

(k) (Added) (AF) Air Force Office of Special Investigation (AFOSI) agents and investigative support staff.

(l) (Added) (AF) Issuance of personnel security access authorizations or duty on personnel security appeals board.

(4) (Added) (AF) For positions that do not fall under the criteria, the commander or CFM will not request the servicing Manpower Office to add, new or upgrade T5 investigations in Manpower Programming and Execution System (MPES), unless the following 2-3 star general officer or civilian equivalent authority approves the request:

(a) (Added) (AF) MAJCOM: MAJCOM Deputy Commander (MAJCOM CD)

(b) (Added) (AF) DRU: AF Director of Staff (AF/DS)

(c) (Added) (AF) FOA: parent 2 letter or SAF/AA or AF/DS

(d) (Added) (AF) HQ AF: Air Staff: AF/DS or Secretariat: SAF/AA

(5) (Added) (AF) Each MAJCOM IPO will submit a semi-annual report to SAF/AAZ by January and July. The applicable submitter will request the available information from the servicing Manpower Office. (T-1). The report must include the number of additional, new and upgraded T5 investigations, job titles or positions, mission requirement justification; and number of downgrades made using a one-for-one exchange. (T-1).

4.3. CONTRACTORS. PSI requirements for contractor personnel requiring national security eligibility are addressed in DoD 5220.22-M.

4.4. CONSULTANTS AND GRANTEES OF A DOD COMPONENT.

a. A consultant or grantee who is directly engaged by a DoD Component (as opposed to an employee of a contractor) and requires national security eligibility only at the Component's activity or in connection with authorized visits does not fall under the NISP. For purposes of national security adjudicative guidelines in the August 30, 2006 USD(I) Memorandum and this manual, investigations for such personnel will proceed in the same manner as for DoD Component employees. The consultant or grantee will be issued national security eligibility in accordance with the guidance in this manual.

b. Investigations required to support the consultant's or grantee's national security eligibility will be conducted by the designated ISP and adjudicated by a DoD adjudication facility.

c. When compelling reasons exist, non-U.S. citizens functioning as consultants or grantees to the DoD Components may be considered for LAA as specified in Section 3 of this manual.

4.5. NON-U.S. CITIZENS EMPLOYED OVERSEAS IN SUPPORT OF NATIONAL SECURITY POSITIONS.

a. A non-U.S. citizen employed by the DoD Components overseas, who provides support to national security positions and who does not require access to classified information, will be subject to the following record checks initiated (before employment) by the DoD Components. International, bi-lateral, or subsidiary agreements governing locally hired employees may require additional investigation. The minimum required checks are:

(1) Host government law enforcement and security agency checks at the city, State (province), and national level whenever permissible by the laws of the host government and when practical, considering CI responsibilities in accordance with DoDD 5240.02.

(2) DoD-approved automated records checks.

(3) Federal Bureau of Investigation (FBI) records (where information exists indicating residence by the non-U.S. citizen in the United States for 1 year or more since age 18).

b. The DoD Components assume responsibility for permitting access to DoD systems, unclassified information, material, and areas when an investigation conducted by the host country does not meet the investigative standards of this manual.

c. The DoD Components will allow access to unclassified information by a non-U.S. citizen only in accordance with applicable disclosure policies and when such access cannot cause significant or serious damage to U.S. national security.

d. The DoD Components may choose to include additional checks as appropriate.

4.6. TEMPORARY EMPLOYEES. Unless approved as a waiver by the DoD Component senior security official or the head of an IC element (in the case of SCI), temporary, intermittent, summer hires, and seasonal employees (not to exceed 180 days) will not be assigned to special-sensitive or critical-sensitive positions. Any temporary, intermittent, summer hire, or seasonal employee who is granted national security eligibility must be 18 years of age or older on or before national security eligibility is granted. Copies of all waivers granted will be provided to the DDI(I&S).

a. (Added) (AF) Intergovernmental Personnel Act (IPA) assignments are non federal employees who are temporarily appointed or detailed to an AF organization. During IPA assignment, the individual is considered a Federal employee with limited entitlements for the duration of the appointment. Typically, IPA employee will not have access to classified information, although the assignment may require a security clearance.

b. (Added) (AF) IPA assignments must be formalized on OPM Optional Form (OF) 69, *Title IV of the IPA of 1970*. (T-0). IPA agreements are negotiated between the AF and the non-Federal organization and must set forth the terms and conditions of the IPA assignment (e.g., security clearance, length of assignment, work schedule, scope of duties, etc.).

c. (Added) (AF) IPA agreement will be verified and reviewed by the servicing IPO prior to submission to SAF/AA for approval. (T-1).

d. (Added) (AF) The IPA employee will sign Standard Form (SF) 312, *Classified Information Nondisclosure Agreement*, when access to classified information is required. (T-0). The commander will ensure that the nondisclosure agreement is recorded in JPAS (or successor system). (T-0). Individuals need not sign another Standard Form 312 if verification can be made that it was previously signed.

e. (Added) (AF) The IPA employee will receive an initial security briefing and will participate in the organization's security training program as prescribed in AFI 16-1404, *Air Force Information Security Program*. (T-1).

f. (Added) (AF) The servicing IPO will be provided a copy of the IPA agreement. (T-1).

g. (Added) (AF) The commander will ensure the IPA employee record is updated and managed in JPAS (or successor system) for the duration of the assignment to include access, visit authorization request etc. (T-1).

h. (Added) (AF) The non-federal organization will submit the security clearance reinvestigation for an IPA employee. (T-1). If the non federal organization does not fall under the National Industrial Security Program (NISP) or cannot process the investigative requirements, the servicing IPO will submit the investigation request to the Investigation Service Provider (ISP), as long as there is a valid IPA agreement and AF mission requirement. (T-1).

j. (Added) (AF) SAF/AAZ will submit copies of waivers granted by SAF/AA to the Directorate for Defense Intelligence, Intelligence and Security.

4.7. WOUNDED WARRIOR SECURITY AND INTELLIGENCE INTERNSHIP PROGRAM (WWSIIP).

PSIs in support of designated wounded Service members may be submitted and processed regardless of the time remaining in service.

a. Category 2 wounded, ill, or injured Service members who expect to be separated with a medical disability rating of 30 percent or greater may submit investigative requests for TS with SCI access eligibility before medical separation as long as they are serving in or have been nominated for a wounded warrior internship program.

b. The investigations will be funded by the DoD office offering the internship. If the office offering the internship does not have funds available, the owning Military Department may choose to fund the investigation.

c. Investigations submitted in support of WWSIIP should:

(1) **Not** request priority service.

(2) Include the extra coverage code "WW" in Block B of the "Agency Use Only" section of the SF 86. This will expedite scheduling and completion of investigations submitted in support of the WWSIIP.

(3) Notify OPM via e-mail to operationwarfighter@opm.gov. Include the subject's full name, the electronic application (e-application) request identification number, and the DoD POC should OPM need additional information.

4.8. RETIRED GENERAL OR FLAG OFFICER (GO/FO) OR CIVILIAN EQUIVALENT.

a. An active duty GO/FO or civilian equivalent may determine that there are compelling reasons to grant a retired GO/FO or civilian equivalent access to classified information in connection with a specific DoD program or mission. In these instances, an active duty GO/FO or civilian equivalent may provide access to classified information for a period not to exceed 1 year. Further, in these instances, the investigative requirements of this manual may be waived. The access will be limited to classified information at a level commensurate with the security eligibility held at the time of retirement, or within 24 months before retirement, but excludes access to SAPs. Access to SAPs requires compliance with access eligibility review as determined by the SAP Central Office with cognizant or oversight authority.

(1) (Added) (AF) SecAF has delegated authority to SAF/AA to review and approve request for former secretaries of the AF, retired chief or vice chief of staffs of the AF, former assigned senate confirmed presidential appointees, general officer, flag officer or civilian equivalent.

(2) (Added) (AF) The Director of Staff (DS), Headquarters Air Force (HAF) or MAJCOMs Deputy Commander (CD) or HAF two letter directors must submit access requests for retired general officers, flag officers, senior executive service members or former senate confirmed presidential appointees or civilian equivalent to SAF/AA. The request must support a specific AF program or mission IAW DoDM 5200.01, Volume 3, *DoD Information Security Program: Protection of Classified Information*. (T-0).

(3) (Added) (AF) SAF/AA will determine if access should be granted on a case by case basis, based upon compelling justification provided by the requesting official. SAF/AA will evaluate the skills or expertise of the nominee to ensure they benefit the Air Force and the interests of national security.

(a) (Added) (AF) The requesting official must be the authorized holder of the classified information and must verify the individual requires access to perform or assist in a lawful and authorized governmental function. (T-1).

(b) (Added) (AF) The requesting official will provide written documentation that the individual will be treated as an unpaid AF consultant and must execute a non-disclosure agreement prior to being granted access to classified information. (T-1). The individual will adhere to the consultant agreement or contract executed by the sponsoring organization.

(c) (Added) (AF) Individual with an in-scope background investigation may be granted eligibility for one year or until the completion of the mission or program, whichever is less. Access may be extended for an additional one year period, provided there is a request specifying a continued compelling need and the background investigation remains current.

(d) (Added) (AF) SAF/AA may waive the investigative requirements with an out of scope investigation based upon a determination that the individual is trustworthy and will safeguard information from unauthorized disclosure. SAF/AA will grant access for a period of 90 days and may extend access in 90 day increments upon receipt of a valid justification demonstrating compelling need.

(4) (Added) (AF) Nominating organizations should expect to pay for the individual's requisite investigation in order to continue access. (T-1)

(5) (Added) (AF) SAF/AAZ will review and validate access granted to retired general or flag officer or civilian equivalent by SAF/AA at the beginning of each calendar year. (T-1).

(6) (Added) (AF) SAF/AAZ will determine the level of access based on mission requirement and access cannot exceed the security clearance held at the time of retirement or separation from the government. (T-1). Blanket access is prohibited.

(7) (Added) (AF) The individual will not be approved for access while employed as a government contractor, unless ethical requirements and provisions as an unpaid AF consultant are executed and completed. (T-1). Failure to do so will result in removal from the program and discontinued access under this program.

(8) (Added) (AF) The requesting official must use reasonable judgment to ensure that individuals nominated for eligibility and access into the program will not be afforded any competitive advantage through released of classified or sensitive material.

(9) (Added) (AF) Political appointees to include retired non career senior executive service and schedule "C" are not eligible for nomination under this paragraph. (T-1).

b. Requests for SCI or SAP access will be processed in accordance with this manual, DNI policy, and DoDD 5205.07, as applicable.

(1) (Added) (AF) AF/A2WZ-CSA will approve request for SCI access. (T-1).

(2) (Added) (AF) SAF/AAZ will approve request for SAP access. (T-1).

c. The GO/FO or civilian equivalent approving the access to classified information will provide the appropriate adjudication facility a written record of the following data for retention in the DoD adjudicative system of record for 2 years after access is granted:

(1) The name and social security number of the former employee granted access.

(2) The date and level of access authorized.

(3) Compelling reason to grant the access and the benefit to the DoD mission or event.

(4) Identity of the approving authority.

d. The classified materials involved will not be removed from the confines of a government installation or other area approved for storage of DoD classified information.

4.9. RED CROSS AND UNITED SERVICE ORGANIZATION (USO) PERSONNEL.

a. Red Cross and USO employees will be accepted for assignment or for continued assignment with Military Departments overseas or for national security eligibility provided acceptance is consistent with the national interest and DoD personnel security policy.

b. U.S. citizen employees in national security positions will undergo an NACLC or its equivalent investigation before being nominated for assignment with the Military Departments overseas.

c. Non-U.S. citizen employees will undergo an investigation as outlined in Paragraph 4.5.

d. A completed SF 86 will be forwarded to the ISP for the initiation of the investigation, if applicable.

e. The results of the investigation will be forwarded to the DoD CAF for an eligibility determination of the employee. The DoD CAF records these determinations in the DoD adjudication system of record.

f. Whenever information of an adverse nature is received indicating that an employee's assignment or continued assignment with the Military Departments overseas may not be consistent with the national interest, the information will be forwarded to the DoD CAF to initiate or expand the investigation.

g. Due process provisions in DoDD 5220.6 apply to Red Cross and USO personnel.

h. The DoD CAF will serve as the contact for the Red Cross and USO in all matters pertaining to the procedures stated, while the DOHA will provide all due process.

4.10. PERSONS OUTSIDE THE EXECUTIVE BRANCH. National security eligibility held by persons outside the Executive Branch will be accomplished in accordance with Chapter 15 of Title 50, U.S.C. The investigative requirement will be the same as for persons inside the Executive Branch at the appropriate level of national security eligibility, except as indicated:

a. Members of the U.S. Senate and House of Representatives do not require national security eligibility for access to DoD classified information. They may be granted access to DoD classified information that relates to matters under the jurisdiction of the respective committees to which they are assigned and is needed to perform their duties in connection with such assignments.

b. Members of the U.S. Supreme Court, the federal judiciary, and the Supreme Courts of the individual States do not require national security eligibility. They may be granted access to DoD

classified information to the extent necessary to adjudicate cases being heard before these individual courts.

c. State governors do not require national security eligibility. They may be granted access to specifically designated classified information on a need-to-know basis, which is contingent upon affirmation by the Secretary of Defense or a DoD Component head that access, under the circumstances, serves the national interest.

d. Congressional staff members requiring access to DoD classified information will be processed for national security eligibility in accordance with this manual.

(1) The Director, WHS, will initiate the required investigation (initial or reinvestigation) to the ISP, adjudicate the results, and grant, deny, or revoke the security eligibility.

(2) The DoD CAF will notify the Assistant Secretary of Defense for Legislative Affairs of the completed eligibility action via the DoD adjudicative system of record. This notification will include only the status of the national security eligibility action; not characterization or details about the action.

e. Staff personnel of a governor's office requiring access to classified information will be investigated and cleared in accordance with the procedures of this manual when the DoD Component head affirms that such eligibility serves the national interest.

f. The Department of Homeland Security is responsible for processing national security eligibility actions for State, local, tribal, and private sector entities in accordance with E.O. 13549, through its State and Local Security Clearance Program on a reimbursable basis, when required by an authorized sponsoring agency. The appropriate Military Department is responsible for processing national security eligibility for State government employees who provide direct support to DoD missions through National Guard elements. DSS is responsible for processing contractor clearances for State, local, tribal, and private sector entities when access to classified information is required in accordance with E.O. 12829.

g. Attorneys representing DoD military and civilian personnel who require access to DoD classified information to properly represent their clients will normally be investigated by the DoD ISP and cleared in accordance with standard procedures for the required level of access.

(1) The General Counsel or Judge Advocate General of the DoD Component involved in the litigation (as applicable for matters under their cognizance) will certify that attorney access to specified classified information is necessary to adequately represent the client.

(2) In exceptional instances, when the exigencies of a given situation do not permit timely compliance with the provisions of this section, access may be granted with the written approval of an authority designated in Appendix 1 to Section 7 of this manual, provided that, at a minimum:

(a) A favorable FBI name check and FBI fingerprint check have been completed.

(b) An SF 312, "Classified Information Nondisclosure Agreement," or other non-disclosure agreement approved by the DNI has been executed consistent with Volume 1 of DoD Manual (DoDM) 5200.01.

(c) The appropriate PSI has been requested.

(3) In post-indictment cases, after a judge has invoked the security procedures of Appendix 3 to Title 18, U.S.C., the Department of Justice may elect to conduct the necessary national security investigation and issue the required security clearance, in coordination with the affected DoD Component.

h. Attorneys representing contractor personnel who require access to DoD classified information to properly represent their clients will normally be investigated and cleared in accordance with Title 18, U.S.C.

SECTION 5: INVESTIGATIVE REQUESTS

5.1. GENERAL.

a. Only the authorities designated in this section will submit investigative requests. These authorities will be held responsible for determining if personnel under their jurisdiction require a PSI.

b. Before requesting a new investigation, DoD Components must determine whether reciprocity applies, as outlined in Appendix 5A.

c. The sponsoring DoD activity is responsible for funding all PSIs except for contractor personnel.

(1) (Added) (AF) SAF/AA is responsible for this task.

d. Investigative requests for contractor personnel under the NISP are processed in accordance with DoD 5220.22-M.

5.2. AUTHORIZED REQUESTORS. Requests for PSIs will be accepted only from designated officials with an approved submitting office number (SON) within the:

a. Military Departments.

(1) (Added) (AF) The MAJCOM IPO will facilitate access to PSP automated systems and resources for subordinate IPO within areas of responsibility. The Wing IPO will facilitate access for authorized users for Groups and Squadrons, as applicable. (T-1).

(2) (Added) (AF) The MAJCOM IPO manages the SON for national security investigation requests and requests change by completing Personnel Investigations Processing Systems (PIPS) Form 12, *Security Office Number Authorization and Amendment Form*. (T-0).

(3) (Added) (AF) The servicing IPO will designate personnel as authorized callers to the Investigation Service Provider (ISP)'s telephone liaison call center. Requestors must complete the PIPS Form 11, *Security Office Identifier (SOI)*, and route it for approval to the servicing IPO. (T-0). Authorized callers will use the SOI to request a status update on an open investigation or case files.

(4) (Added) (AF) The servicing IPO will review and update PIPS Form 11, *Security Office Identifier,* when personnel transition or annually in December (whichever event occurs first during the calendar year). (T-0).

(5) (Added) (AF) The servicing IPO will ensure the number of authorized e-QIP (or successor system) requestors will be kept to the minimum required to meet mission

requirements. (T-1). Requestors must meet the investigative requirement to utilize the e-QIP (or successor system). The current roles and investigative requirements are as follows:

(a) (Added) (AF) initiator: T1

(b) (Added) (AF) reviewer: T3

(c) (Added) (AF) approver: T3

(d) (Added) (AF) third party data entry: T5

(6) (Added) (AF) The servicing IPO will ensure appropriate security personnel receive e-QIP (or successor system) training to initiate, review and submit national security investigation requests. (T-1).

(7) (Added) (AF) The servicing IPO will use JPAS (or successor system) and applicable systems to determine the existence of a favorably adjudicated investigation, prior to submission of an investigation request. (T-0). The servicing IPO will facilitate JPAS (or successor system) account access. (T-1). Web based training is located in CDSE's website.

(8) (Added) (AF) The MAJCOM IPO may authorize the Wing IPO access to the Central Verification System (CVS) (or successor system). The CVS (or successor system) enables the submitter to verify investigative and adjudicative actions from other Federal agencies. The requestor must complete the INV-70B, *Request for Personnel Investigations Processing System CVS User Identification/Access*. The MAJCOM IPO must sign the INV-70B and submit to ISP for processing. (T-1). Instructor led training is available at OPM or on the job training may also be provided by the servicing Information Protection Office, as appropriate.

(9) (Added) (AF) The servicing IPO must use JPAS (or successor system) to communicate with Department of Defense Consolidated Adjudication Facility (DoD CAF) on national security cases. (T-0). The servicing IPO will grant access IAW DMDC policy. (T-0). The available forms and training are located in Defense Manpower Data Center website.

b. Office of the Chairman of the Joint Chiefs of Staff and the Combatant Commands.

c. DoD CAF.

d. Defense Agencies and DoD Field Activities.

e. OSD.

f. Other requestors approved by the DDI(I&S).

5.3. LIMITATIONS AND RESTRICTIONS FOR SUBMITTING INVESTIGATIONS.

a. Authorized Personnel Security Investigative Agencies. E.O. 13467 established the DNI as the Security Executive Agent (SecEA) and the final authority to designate agencies to conduct investigations of persons who are proposed for national security eligibility. Only DoD Components delegated investigative authority by the DNI through USD(I) may enter into contracts to conduct PSIs. DoD Components without investigative authority are prohibited from entering into contracts to conduct PSIs.

b. Limits on Investigations. Personnel who are employed by or serving in a military, civilian, contractor, or consultant capacity may be considered for national security eligibility only when such eligibility is required for a lawful and authorized government purpose in connection with official duties. The number of persons requiring investigations and national security eligibility will be limited to those that are essential to current operations and clearly authorized by DoD policy.

(1) Unauthorized, unnecessary, or duplicative PSIs are prohibited. An investigation will not be requested when there is no requirement.

(2) DSS will not process a PSI request for an employee of, or a consultant to, a contractor when there is not a legitimate requirement for access to classified information in supporting a U.S. Government or foreign government requirement in accordance with DoD 5220.22-R and Volume 3 of DoDM 5200.22.

(a) (Added) (AF) The servicing IPO will review and coordinate applicable personnel security requirements in contracts and relevant documents IAW AFI 16-1406, *Air Force Industrial Security Program*. (T-1).

(b) (Added) (AF) The commander, through the servicing IPO, is responsible for submitting T3 and T5 for contractor personnel in positions designated as "national security positions" but without a requirement for access to classified information. (T-0). The servicing IPO will submit these investigation requests based on contract requirements, which will be validated through the Office of Personnel Management's Position Designation Tool (PDT). (T-0). The PDT is located in OPM's website.

(3) Spouses of GO/FOs will not be processed for eligibility for access to classified information unless there is need for them to access classified information as part of a unit support or readiness function.

(4) With the exception of military personnel, minors who are under the age of 18 will not be investigated nor granted national security eligibility.

5.4. PROCESSING INVESTIGATIVE FORMS.

a. An investigative request must be submitted early enough to allow sufficient time to complete the investigation, adjudicate the findings, and make the eligibility determination. To

conserve investigative resources and ensure investigations are efficient, complete, and thorough, organizations requesting investigations will:

(1) Ensure request forms, prescribed documentation and fingerprints are properly executed and submitted electronically in accordance with ISP instructions. The electronic submission of fingerprints eliminates the need to request advance fingerprint results.

(a) (Added) (AF) The submitter must capture and release electronic fingerprints via Secure Web Fingerprint Transmission (SWFT) to the ISP within 14 days of the investigation request submission. (T-0).

(b) (Added) (AF) The ISP will not schedule investigations without a valid set of fingerprints. The ISP will reject the investigation request on the 15th day, if the fingerprints are not received.

(c) (Added) (AF) The ISP will merge the fingerprint results with the investigation request upon receipt from the submitter. The fingerprints will be retained in the system for 120 days.

(2) Only request Advance National Agency Check Status Reports when a subject requires Interim TS.

(a) (Added) (AF) The servicing IPO will request Advance National Agency Check Status (NAC) Reports when an individual requires an Interim Top Secret access and there is no record of a completed investigation (NAC) in JPAS (or successor system). (T-0).

(b) (Added) (AF) The commander, in collaboration with the servicing IPO, will grant interim Top Secret access IAW the minimum requirements prescribed in Section 7.16. Interim Clearance eligibility. (T-0). The servicing IPO will validate current NAC results from an open investigation to meet the requirements. (T-0).

(3) Submit investigative requests for contractor personnel under the NISP through JPAS to the DSS Personnel Security Management Office for Industry to determine validity of the request and process for interim eligibility, as appropriate, and release to OPM.

(4) Promptly notify the ISP if the investigation is no longer needed.

(a) (Added) (AF) The commander will ensure the servicing IPO is promptly notified when an investigation is no longer required. (T-1). The servicing IPO will immediately contact the ISP and cancel the investigation. (T-1).

b. To be more efficient, before submitting PSI requests, DoD Components should:

(1) Ensure the investigative requirements, as specified in Section 4 of this manual, are accurately recorded in appropriate systems. This data will be used for programming and to validate electronic PSI requests.

(a) (Added) (AF) The commander will ensure personnel meets the investigation and eligibility requirements IAW the Manpower Programming and Execution System (MPES) and Position Description/Core Document. (T-1). See Table 2 to determine the sensitivity level that corresponds with the appropriate tier background investigation.

(2) For individuals who are born outside the United States, enter extra coverage codes on the investigative request forms to require OPM to validate citizenship in accordance with national standards. DoD Components should also review citizenship documents of individuals born abroad before submitting initial PSI requests. All documents verifying U.S. citizenship will be original or certified copies. A copy of the document(s) used to verify citizenship will be uploaded to the subject's e-QIP(e-QIP) before submission to the ISP.

(a) Acceptable Documentation for U.S. Citizenship by Birth. Subjects asserting U.S. citizenship by birth will provide:

1. A birth certificate certified with the registrar's signature that bears the raised, impressed, or multicolored seal of the registrar's office.

2. A Department of State (DOS) Form FS-240, "Consular Report of Birth Abroad of a Citizen of the United States of America."

3. A DOS Form FS-545 or DS-1350, "Certification of Birth."

4. A valid U.S. passport, unaltered, originally issued to the subject.

(b) Acceptable Documentation for U.S. Citizenship by Certification or Naturalization. Subjects asserting citizenship by certification or naturalization will provide:

1. A U.S. Citizenship and Immigration Services (USCIS) Form N-560 or N-561, "Certificate of U.S. Citizenship."

2. A USCIS Form 550, "Certificate of Naturalization" or 570, "Replacement Certificate of Naturalization." Copies can be made of naturalization papers for submission in accordance with Section 1426 of Title 18, U.S.C.

3. A valid U.S. passport or passport card, unaltered, originally issued to the subject.

(c) Acceptable Documentation for Corroboration of Legal Status. These documents or any successors to these forms can be used to corroborate a person's legal status:

1. A valid USCIS Form I-551, "Permanent Resident Card or Resident Alien Card."

2. A U.S. Customs and Border Protection Form I-94, "Arrival/Departure Record," with an acceptable visa that authorizes employment in the United States.

3. A valid USCIS Form I-766, "Employment Authorization Document."

4. A valid U.S. Travel Document issued as a Permit to Re-enter (USCIS Form I-327) or as a Refugee Travel Document (USCIS Form I-571).

5. (Added) (AF) The servicing IPO will ensure that extra coverage code, "H" is annotated in e-QIP for individuals requiring national security investigations, who are born outside the United States, to validate citizenship status. (T-1)

6. (Added) (AF) The servicing Information Protection will confirm the extra coverage is listed in e-QIP prior to release of the request to the Investigation Service Provider (ISP). (T-1).

7. (Added) (AF) The servicing IPO will notify the commander and subject when Department of Defense Consolidated Adjudication Facility (DoD CAF) cannot adjudicate an investigation because the Department of Homeland Security (DHS) was unable to verify the legal U.S. status of foreign born immediate family members. (T-1).

8. (Added) (AF) The individual must provide valid information regarding foreign-born family members' legal U.S. status (i.e., Certificate of Naturalization, Certificate of U.S. Citizenship, Passport, State issued Birth Certificate, Consular Report of Birth abroad or other official documentation). (T-1).

9. (Added) (AF) The servicing IPO will act as a liaison between the DoD CAF and the individual for citizenship concerns. (T-1). If the individual is unavailable to supply or provide documentation for foreign-born family members, the individual will document the information in writing and provide it to the servicing IPO for submission to the DoD CAF. T-1).

c. Investigative requests will be submitted to the ISP through electronic application. The methods for submitting investigative requests to OPM are detailed in the U.S. Office of Personnel Management Booklet. The trained official submitting the request will:

(1) Use the DoD electronic system of record for investigation and adjudication status to verify whether an individual has an open case or an existing investigation that meets the eligibility requirement before submitting a new request (do not submit duplicate investigation requests).

(a) (Added) (AF) The servicing IPO must use JPAS (or successor system) or CVS (or successor system) to validate whether an individual has an open case or an existing investigation that meets the eligibility requirement prior to submission. (T-1). Do not submit duplicate investigation requests.

(2) Provide the subject with instructions for completing the e-application and assist the subject as necessary.

(a) (Added) (AF) The commander must ensure that the individual is provided instructions for completing the SF86 and must assist the individual as necessary to obtain fingerprints (if required). (T-1).

(3) Document efforts to validate and verify the required information, where appropriate, and maintain documentation in accordance with applicable record retention requirements.

(a) (Added) (AF) The commander will advise the individual to maintain an archival copy of the completed SF86 for personal record. (T-1). The commander will instruct the individual to access e-QIP (or successor system) or contact the ISP to request a Privacy Act copy of the previous investigative report. (T-3).

(4) Ensure that all documents are completed in accordance with the instructions of the ISP.

(5) Use the assigned SON and security office indicator (SOI).

(a) The head of the submitting office may authorize individuals to use the SON to obtain information on the case status of a background investigation from the ISP, if the caller can answer the questions asked by the ISP's telephone liaison.

(b) The SOI is used to identify the appropriate official who will receive case results, data, or other information from OPM. Security offices designate security office employees who may contact the ISP to obtain detailed information about a case. Approved employees are the only individuals who may receive information by telephone or secure e-mail. Requests for SOIs for national security investigations must be approved by the DDI(I&S).

(6) (Added) (AF) The servicing IPO will submit personnel security investigation (PSI) requests to the Investigation Service Provider (ISP) within 14 days on average from the receipt of the individual's submission (free of errors, accurate and complete). (T-1).

d. Provide relevant data concerning the subject of the investigation to the ISP. The subject of each PSI will provide the personal information required by the ISP and DoD 5400.11-R. At a minimum, the subject will:

(1) Provide accurate and complete data as part of the investigation.

(2) Complete the appropriate investigative forms through e-application and electronic fingerprint capture devices.

(3) Execute signed releases, as necessary, authorizing custodians of police, credit, education, employment, and medical and similar records to provide relevant record information to the ISP.

(4) Unfreeze any credit or consumer freezes to allow an investigation of credit history. A credit history is a required component of all national security background investigations. If a "freeze" or other administrative hold is placed on the subject's consumer or credit report file, the ISP will not be able to obtain a copy of the report, which can adversely affect eligibility for a national security position.

(a) Anyone with a credit freeze in place should contact the applicable bureau(s) and request the freeze be lifted for a period of 40 days to allow for their background investigation. Make the request when the investigative application is submitted.

(b) The subject will bear any costs associated with lifting the freeze.

e. Strict adherence to the following procedures will significantly reduce rejected investigation requests and facilitate the processing and scheduling of those requests by the ISP:

(1) Match personally identifying data on the electronic fingerprint, releases, certification page, and the e-application exactly.

(a) (Added) (AF) The servicing IPO will ensure that the personally identifying data on the e-fingerprint, releases, certification pages, and the e-QIP (or successor system) match prior to submission to the ISP. (T-1).

(2) Ensure the subject of the investigation signs and dates each document submitted to the ISP.

(a) (Added) (AF) The servicing IPO will review the individual's SF86 for accuracy and completeness to ensure the individual signs and dates each document, if the e-QIP (or successor system) click-to-sign option is not utilized. (T-1).

(3) Ensure the subject of the investigation recertifies the e-application for changes made on any of the documents listed in Paragraph 5.4.e.(1) that are submitted to the ISP for processing.

f. When an individual cannot make corrections due to deployment, illness, or other similar circumstance, the Federal Investigations Processing Center Form 391, "Certificate of Amended Investigation," (or other approved form) may be used. Federal Investigations Processing Center Form 391 is not for administrative corrections. It is used when substantive changes are made to an individual's e-QIP, and must be signed and certified by the DoD employee making the changes on the individual's behalf.

5.5. TEMPORARY (OR INTERIM) NATIONAL SECURITY ELIGIBILITY. Unless otherwise prohibited by policy, an individual may be granted temporary national security eligibility pending investigation and a final determination when official functions must be performed before completion of the investigation and adjudication process. See Section 4 for additional information on temporary or interim national security eligibility.

5.6. ONE-TIME OR SHORT DURATION ACCESS. Circumstances may arise where an urgent operational or contractual need exists for cleared DoD personnel to have one-time or short duration access to classified information at a higher level than is currently authorized. In many instances, the processing time required to upgrade the national security eligibility would prevent timely access to the information. Section 5 of this manual details the procedures for one-time or short duration access.

5.7. ACCOUNTABILITY OF PERSONNEL SECURITY REPORTS AND RECORDS.

a. Personnel security data, reports, records, and investigative results must be handled with the highest degree of discretion. Access to such information is afforded only for the purposes in the applicable Privacy Act System of Record Notice (SORN) and to persons whose official duties require such information. PSI results may be used only to determine national security eligibility requiring such investigation and for quality assurance, law enforcement investigations, authorized CI inquiries and investigations, and other official uses stated in the applicable SORN or as authorized by DoD 5400.11-R .

b. Internal controls will be established to ensure personnel security data, reports, records, and investigative results are adequately safeguarded and access is limited to official duties by authorized personnel.

(1) Personnel Submitting the E-application. The submitter will maintain a file for each subject who has successfully begun an investigation. Any information verified by the submitter will be maintained in the file until final eligibility is determined.

(2) Adjudication Facilities and DoD Components. Adjudication facilities and the DoD Components will control and maintain accountability of all reports of investigations received, to include supporting documentation.

(a) Unclassified PSI information that is privacy information is treated as For Official Use Only information and handled in accordance with DoD 5400.11-R, DoD 5400.7-R, and Volume 4 of DoDM 5200.01. Classified PSI information will be protected in accordance with Volume 3 of DoDM 5200.01.

(b) In addition to the requirements cited in Paragraph 5.7.b.(2)(a), when an original classification authority classifies PSI information, it will be handled in accordance with the respective classification guide.

(c) Access to national security eligibility determination information will be made available only to officials of the DoD and the Federal Government with an official need for such information. Personnel who review and access completed investigation files to render national security eligibility determinations require a favorably adjudicated SSBI.

(d) Reproduction, in whole or in part, of PSI security investigative reports is restricted to the minimum number of copies required for the performance of assigned duties.

(e) Unclassified PSI information is stored in a vault, safe, or steel file cabinet with a built-in lock or an approved three-position dial-type combination padlock or in data bases which are access controlled. When needed for official duties by personnel authorized access, and where supplemental controls are in place, personnel security data, reports, records, and investigative results may be stored in key or cipher-locked rooms or cabinets to which only authorized employees have access.

5.8. SUBJECT REQUEST FOR PSI REPORT. The subject of investigation will be given access to PSI reports in accordance with E.O. 12968, DoD 5400.11-R and DoDM 5200.01, as applicable.

5.9. RECORDS DISPOSITION.

a. Any personnel security investigative report provided by the ISP may be retained by the DoD Component only for the period identified in its Privacy Act SORN.

b. Destruction will be in accordance with DoD records management policy and the Component's approved records management schedule. Destruction will be accomplished in accordance with DoDM 5200.01 or, if classified, in accordance with the December 12, 2005 Office of Management and Budget Memorandum.

5.10. (ADDED) (AF) PERSONNEL ON ASSIGNMENT ORDERS.

a. (Added) (AF) Out-of-scope personnel security investigations can be a major inhibitor for deployments, permanent change of station (PCS) and temporary duty (TDY). Individuals who failed to complete periodic reinvestigations in a timely manner may be denied access to classified information and returned to home station during deployment, PCS and TDY.

b. (Added) (AF) Personnel who receive an assignment notification memorandum from outbound assignments with investigative or clearance requirements, must immediately report to the commander to determine appropriate action. (T-1).

c. (Added) (AF) The commander will verify the individual meets the eligibility requirements through JPAS (or successor system). Individuals who do not meet the requirements must begin immediate processing of a security clearance investigation through e-QIP (or successor system). (T-1).

d. (Added) (AF) The commander will inform the individual pending PCS that temporary access to obtain previous SF86 through e-QIP (or successor system) is available, provided the investigation has not been closed by the ISP and adjudicated by the DoD CAF. (T-1).

e. (Added) (AF) The commander in collaboration with the servicing IPO, may grant interim access to classified information or technology as prescribed in Section 7.16, Interim Eligibility.

5.11. (ADDED) (AF) DUAL CITIZENSHIP AND FOREIGN PASSPORT.

a. (Added) (AF) Dual citizenship and possession of foreign passport raise foreign preference concerns; therefore, individuals who claim dual citizenships are

not permitted temporary or interim access to classified information, pending investigation and final adjudication by Department of Defense Consolidated Adjudication Facility (DoD CAF). Any doubt regarding whether access to classified information is clearly consistent with national security must be resolved in favor of national security. (T-0).

b. (Added) (AF) Dual citizenship and possession of foreign passport is not, in and of itself, a disqualifier for eligibility purpose. However, certain uses of a foreign passport may create security concerns IAW the Office of Undersecretary of Defense Intelligence memo dated 12 Jan 2018, *Implementation of SEAD 4: National Security Adjudicative Guidelines*. The memo may be requested from applicable servicing IPO for review.

c. (Added) (AF) The individual with dual citizenship and foreign passport will report foreign preference concerns to the commander. (T-0). The Commander will provide subsequent written notification to the servicing IPO for utilizing foreign passport for foreign travel. (T-0). The servicing IPO must report the information to DoD CAF via JPAS (or successor system) for adjudication. (T-0). The servicing IPO is not authorized to retain or destroy foreign passport(s) or identity cards as means of risk mitigation.

APPENDIX 5A: RECIPROCITY

5A.1. GENERAL.

a. Gaining DoD Components may use this appendix to determine whether an individual has a current national security eligibility, including access to highly sensitive information (i.e., SCI, SAP, or "Q"), based upon the requisite investigation (i.e., ANACI, NACLC, SSBI, or SSBI-PR).

b. E.O. 13467 establishes the DNI as the SecEA responsible for ensuring reciprocal recognition of national security eligibility among the agencies, including acting as the final authority to arbitrate and resolve disputes involving the reciprocity of investigations and determinations of national security eligibility.

c. DoD reciprocally accepts existing national security eligibility determinations or clearances from other government agencies in accordance with E.O. 13467 , Part 731 of Title 5, U.S.C., and the December 12, 2005, July 17, 2006, and November 14, 2007 Office of Management and Budget Memorandums.

d. Background investigations and national security eligibility determinations made by designated DoD authorities will be mutually and reciprocally accepted by all DoD Components.

e. Further investigation is prohibited when a determination already exists that is based upon a current investigation of a scope that meets or exceeds that necessary for the eligibility required. See Paragraph 5A.3 for reciprocity exceptions.

f. Reciprocal use of an investigation is based on:

(1) SCI eligibility in accordance with Intelligence Community Directive 704 and Intelligence Community Policy Guidance Numbers 704.1, 704.2, 704.3, 704.4, and 704.5.

(2) Collateral TS and below, or any SAP eligibility-up to 5 years from the close date of the completed PSI.

g. National security and SCI eligibility suspensions, denials, and revocations within DoD will be mutually and reciprocally recognized, provided the opportunity for administrative due process offered by the issuing organization and the gaining organization are the same. This will apply for at least the 12-month period following the date of final denial or revocation of access during which time the individual is ineligible for reconsideration. See Section 6 for reconsideration procedures.

h. Whenever a civilian or Service member transfers from one DoD activity to another, the losing organization's security office will advise the gaining organization of any action to suspend, deny, or revoke the individual's eligibility, as well as any issue information that may exist in security, personnel, or other files. In such instances, the eligibility will not be reissued until the potentially disqualifying information has been adjudicated.

i. When a valid DoD national security eligibility is on record, DoD Components will not request before investigative files for review. See Paragraph 5A.3 for reciprocity exceptions.

(1) (Added) (AF) The servicing IPO, CPS or HRO will check the Central Verification System (CVS) (or successor system) and Joint Personnel Adjudication System (JPAS) (or successor systems) to determine if there are any existing exceptions for national security clearance eligibility, which may impact reciprocity. (T-0).

j. The gaining activity will not require an individual to complete an SF 86 if a valid DoD national security eligibility or access eligibility is on record. However, a completed SF 86C, "Certification," may be requested to determine whether new substantive information of security concern has occurred since the last adjudication. Following review, the SF 86C will be forwarded to the appropriate adjudication facility and added to the individual's adjudicative record.

(1) (Added) (AF) The commander will forward the completed SF 86C to the servicing IPO. (T-0). The commander, will consult with the servicing IPO, to determine whether the SF 86C contains derogatory information IAW Security Executive Agent Directive 4, *National Security Adjudicative Guidelines*. (T-0).

(2) (Added) (AF) The servicing IPO will forward the SF 86C to the DoD CAF IAW Section 7.14.b(2) of this manual. (T-0). The commander may also suspend local access pending final review by DoD CAF.

k. Reciprocal recognition by an activity may be withdrawn on a case-by-case basis if such action is necessary for national security purposes.

5A.2. VERIFY ELIGIBILITY.

a. DoD Components that grant access or issue national security eligibility to civilian, military, or contractor employees are responsible for determining whether such employees have been previously cleared or investigated by the Federal Government. In most circumstances, this can be accomplished by checking OPM's Central Verification System, the DoD adjudication system of record (JPAS or the IC's Scattered Castles database).

b. Receiving activity security personnel may communicate directly with originating activity security POCs to verify that national security eligibilities in question were granted.

c. If online access to the appropriate database is unavailable, or if the record is otherwise incomplete, fax an "Inter-Agency Clearance Verification Request" to the appropriate agency. The request form and appropriate fax numbers can be found at the secure OPM web portal at https://opmis.xsp.org/index.cfm. The OPM Federal Investigative Services Division has created and posted a list of contact information to the "public library" section of its secure portal for all agencies which grant eligibility. Senior security personnel in the DoD Components will designate security personnel who will require access to the OPM web portal.

5A.3. EXCEPTIONS TO RECIPROCITY. The gaining activity or program may request that an individual who has current national security eligibility with another federal agency complete a new security questionnaire, may review existing security questionnaires or background investigations, or may initiate any new investigative checks when:

a. The determination of eligibility for access is based on an exception (e.g., condition, deviation, or waiver) or is granted on an interim or temporary basis.

b. The investigation upon which the existing national security eligibility was granted is not current.

c. The gaining activity is aware or in possession of substantial information indicating the standards in the August 30, 2006 USD(I) Memorandum may not be satisfied.

d. The individual is being considered for access to highly sensitive information (i.e., SCI, SAP, or "Q") and:

(1) The existing national security eligibility determination is based upon a waiver or deviation, or access is otherwise subject to conditions, or

(2) The individual does **not** satisfy a polygraph requirement imposed by the gaining program, as approved by the DoD Component head or head of an IC element. Under such circumstances, only additional, not duplicative, investigative or adjudicative procedures will be completed, or

(3) The individual does **not** satisfy an official requirement imposed by the gaining program that prohibits **any** non-U.S. immediate family or non-U.S. cohabitants. Under such circumstances, only additional, not duplicative, investigative or adjudicative procedures will be completed.

e. There is a break in employment or a break in access greater than 24 months.

5A.4. ANNOTATING RECIPROCAL DETERMINATIONS.

a. To be consistent with reciprocity and to ensure equitable due process, the DoD Components will ensure the timeliness of investigation submissions and adjudications of civilian employees, military, and contractor personnel as required.

b. Once a gaining DoD adjudicative authority confirms or is assured that a previous investigation meets the provisions of this section and accepts the losing organization's determination, the reciprocally accepted determination will be entered into the DoD adjudication system of record.

c. If eligibility determinations are based on an exception (condition, deviation, or waiver), mitigating conditions must be annotated in the DoD adjudication system of record.

d. DoD Components will provide eligibility and access determination information to other agencies of the Federal Government to which an individual is assigned or detailed, upon request.

5A.5. ADDITIONAL RECIPROCITY GUIDANCE FOR SCI ACCESS. When a determination of eligibility for access is based on an exception (i.e., condition, deviation, or waiver) that information will be conveyed to the gaining head of an IC element. The gaining head of an IC element may reject another head of an IC element access determination based upon his or her assessment of risk.

5A.6. RECIPROCITY FOR THE NUCLEAR REGULATORY COMMISSION AND THE DOE. DoD policy on reciprocal acceptance of security eligibility with the Nuclear Regulatory Commission and the DOE is established in Table 1 of DoDI 5210.02.

SECTION 6: LAA FOR NON-U.S. CITIZENS

6.1 GENERAL. Only U.S. citizens are eligible for access to classified information. However, compelling reasons may exist for granting access to classified information to a non-U.S. citizen. An LAA enables a non-U.S. citizen to have limited access to classified information, but the LAA is **not** a national security eligibility.a. An LAA may be granted, in rare circumstances, when:

(1) A cleared or clearable U.S. citizen is not readily available or does not possess the skills or expertise required.

(2) The non-U.S. citizen possesses unique skills or expertise needed to support a specific U.S. Government requirement involving access to classified information.

b. Access to classified information provided to the U.S. Government by another government or international organization will not be permitted under an LAA without written consent of the government of the organization that provided the information.

c. All LAAs will be reviewed annually to determine if continued access is in compliance with DoD policy. The DoD Components will maintain a record of all LAAs in effect and submit an annual report to the Office of the DDI(I&S) by January 15 for the preceding year providing a summary by access level (Secret or Confidential), country(ies) of citizenship, and employment location.

(1) (Added) (AF) The MAJCOM Director, Information Protection must provide an annual Limited Access Authorization (LAA) report to SAF/AAZ by November 15th of each year. (T-1). The memo must include the name, DOB/POB, country(ies) of citizenship, clearance level and access, valid justification and employment location. (T-1).

6.2. CONDITIONS FOR LAA.

a. An export license or disclosure authorization is required to release classified information to a non-U.S. citizen who has been issued an LAA. Before submitting an application for an LAA, the requestors must obtain a written disclosure determination from a principal or designated disclosure official or obtain a DOS approved export license. This documentation must be submitted with the application for an LAA. The LAA cannot serve as an export authorization. An approved LAA is a determination that the non-U.S. citizen is eligible to receive the classified information governed by the disclosure authorization or DOS approved export license.

b. Personnel granted LAAs are not permitted uncontrolled access to areas where classified information is stored or discussed. Classified information will be maintained in a location under the continuous control and supervision of an appropriately cleared U.S. citizen.

c. Non-U.S. citizens will not be eligible for access to any greater level of classified information than the U.S. Government has determined may be released to the country of which the person is a citizen, but not to exceed the Secret level.

d. Personnel granted LAAs will not be designated as a courier or escort for classified material unless they are accompanied by an appropriately cleared U.S. citizen.

6.3. INVESTIGATIVE REQUIREMENTS.

a. A non-U.S. citizen, including immigrant alien, may be issued an LAA if:

(1) The individual is a citizen of a country with which the United States has an agreement providing for security assurances.

(2) The investigative requirements for the LAA are commensurate with the investigative requirements of that country.

b. A favorably completed and adjudicated SSBI (within the immediately preceding 5 years) is required before granting an LAA. If the SSBI cannot provide full investigative coverage, a polygraph examination (if there are no applicable host country prohibitions) to resolve the remaining personnel security issues will be favorably completed in accordance with DoDD 5210.48 before granting access.

c. If geographical, political, or medical situations prevent the full completion of the SSBI or prevent the polygraph examination to supplement a less than full SSBI, an LAA may be granted only with approval of the DDI(I&S).

d. If an LAA is withdrawn and the person subsequently is again considered for a new LAA, an SSBI and polygraph examination may be required. The scope of the SSBI will cover the period since the previous investigation or 10 years, whichever is shorter.

e. A PR will be conducted on every person with an LAA 5 years from the closing date of the previous SSBI or SSBI-PR, as appropriate.

f. (Added) (AF) The organization requesting the initial LAA must submit a detailed justification through the MAJCOM IPO for review and coordination.

g. (Added) (AF) The MAJCOM Director, Information Protection will approve the request for a personnel security investigation (PSI) for the LAA. (T-1). For National Industrial Security Program (NISP), the MAJCOM Director, Information Protection must concur on Limited Access Authorization request prior to submission to Defense Security Service.

6.4. AUTHORIZED ACCESS LEVELS.

a. LAAs may be granted only at the Secret and Confidential levels. Limited access to Secret and Confidential information may be granted following completion of the SSBI by an authority as specified in Section 4 of this manual, and compliance with the requirements in this section.

b. The classified information to which the non-U.S. citizen may have access will be approved for release to the person's country (or countries) of citizenship, in accordance with DoDD 5230.11. Exceptions may apply in operational exigencies. In such cases, the DoD Component head may approve the release of information to individuals granted an LAA when it is determined to be in the best interests of national security.

c. Access to classified information will be limited to a specific program or project. The LAA will be cancelled upon completion of the program or project for which it was approved.

d. Foreign nationals of a NATO member nation may be authorized access to NATO information provided:

(1) A NATO Security Clearance Certificate is obtained by the CSA from the individual's home country.

(2) NATO access is limited to performance on a specific NATO program or project.

e. Access to classified information outside the scope of the approved LAA will be considered a compromise of classified information and investigated in accordance with the November 15, 2007 Office of Management and Budget Memorandum.

f. Access by foreign nationals to DoD information systems containing classified information will comply with conditions prescribed in DoDI 8500.01.

6.5. UNAUTHORIZED ACCESS LEVELS.

An LAA granted under the provisions of this manual is **not** valid for access to:a. TS information.

b. Restricted data (RD) or formerly restricted data.

c. Information that has not been determined releasable by a U.S. Government designated disclosure authority to the country(ies) of which the individual is a citizen.

d. Communications security (COMSEC) information.

e. Intelligence information.

f. Information for which foreign disclosure has been prohibited in whole or in part.

g. Information provided to the U.S. Government in confidence by a third party government and classified information furnished by a third party government.

6.6. REQUEST PROCEDURES.

a. Personnel being processed for an LAA will complete an SF 86.

b. In those instances where a non-U.S. citizen does not have an social security number, follow the procedures specified by the ISP when completing the SF 86.

c. All requests for initial LAAs will contain a detailed justification and plan describing:

(1) The location of the classified material (security containers) in relationship to the location of the foreign national.

(2) The compelling reason for not employing a cleared or clearable U.S. citizen.

(3) A synopsis of an annual continuing assessment program to evaluate the individual's continued trustworthiness and eligibility for access.

(4) A plan to control access to secure areas and to classified and controlled unclassified information.

d. All LAA determinations, favorable and unfavorable, will be entered into the DoD adjudication system of record.

e. Unfavorable LAA determinations for industrial contractor personnel are processed pursuant to DoDD 5220.6.

6.7. LAA DETERMINATION AUTHORITY.

a. LAA determinations will be made by a designated single authorizing adjudicative official listed in Section 4 of this manual. LAA determination authority will not be further delegated to any other official at the major command level or equivalent. An LAA requested by a contractor under the NISP will be endorsed by the program executive officer or equivalent official responsible for the contract under which the request has been submitted in accordance with DoD 5220.22-M. An LAA will not be issued in the absence of such an endorsement.

(1) (Added) (AF) The commander must ensure that a T5 investigation is initiated for the individual. (T-1). The commander must ensure the individual provides non-US citizenship documents. In instances where a non-United States citizen does not have a social security number, the commander will ensure the Investigation Service Provider (ISP) is contacted for administrative procedures prior to initiation of e-QIP (or successor system). (T-1).

(2) (Added) (AF) The commander will not grant access to an individual with Limited Access Authorization, unless DoD CAF favorably adjudicates and grant LAA Secret eligibility in Joint Personnel Adjudication System (or successor system). Interim LAA Secret is prohibited.

(3) (Added) (AF) The commander will ensure a non-disclosure agreement form is executed for personnel with LAA and termination security agreement IAW AFI 16-1404, *Air Force Information Security Program*. (T-1)

b. The Combatant Commander responsible for implementation of the PSP is authorized to issue, deny, or revoke an LAA. LAA determinations by the Combatant Commanders will be

reported to the DoD CAF in accordance with the assigned responsibilities in DoDD 3700.01 for inclusion in the DoD system of record.

SECTION 7: NATIONAL SECURITY ADJUDICATIONS

7.1. GENERAL.

a. The principal objective of the DoD personnel security adjudicative function is to ensure individuals who are granted national security eligibility are reliable, loyal, and trustworthy. It involves an assessment of a sufficient portion of their life history to determine whether they have acted or are acting in ways inconsistent with the adjudicative guidelines. Cases are evaluated using uniform national standards to ensure fair and consistent assessments. Adjudications are performed to determine an individual's eligibility for access to classified information or to hold a sensitive position.(1) National security eligibility determinations are a function distinct from granting access to classified national security information. This section provides procedures relating to determining national security eligibility. Section 5 of this manual provides procedures for access determinations.

(2) National security **eligibility** determinations are made on the merits of the individual case and involve examining a sufficient period of a person's life and background to make an affirmative determination the person is an acceptable national security risk (i.e. where the facts and circumstances indicate granting eligibility is clearly consistent with the national security interests of the United States). Favorable **access** determinations are made on the basis of the eligible individual's need for access to classified information to perform official duties.

b. All reliable information relevant to determining whether a person meets the national security eligibility standards is reviewed and evaluated only by appropriately trained adjudicative personnel, in accordance with appropriate procedures approved by the SecEA. Final adjudication determinations will be made by certified adjudicators, non-certified adjudicators operating under an approved risk management plan, or in accordance with approved automated procedures.

7.2. ADJUDICATION AUTHORITIES.

a. Only the determination authorities listed in Appendix 7A are authorized to make national security eligibility determinations based upon a review of the PSI or adverse information referral.

b. Re-adjudication by any DoD Component of national security eligibility determinations for individuals who have been determined to be eligible by the DoD CAF, by another DoD Component, or by another federal agency is prohibited except in accordance with Appendix 5A.

c. SCI access eligibility determinations follow DoD 5220.22-R and associated DNI guidance and delegations.

7.3. PROHIBITION ON RETALIATION BY AFFECTING ELIGIBILITY FOR ACCESS TO CLASSIFIED INFORMATION.

a. It is strictly prohibited to take, fail to take, or threaten to take or fail to take any action affecting an individual's eligibility for access to classified information as a reprisal for a protected disclosure of fraud, waste, or abuse pursuant to Presidential Policy Directive/PPD 19.

b. Employees may appeal actions affecting eligibility for access to classified information allegedly taken as a reprisal for a protected disclosure of fraud, waste, or abuse in violation of Presidential Policy Directive/PPD 19.

c. All personnel security adjudicators, DOHA administrative judges (AJs), and Personnel Security Appeals Boards (PSABs) will, as part of their adjudication of an individual's eligibility, consider and resolve any claims of reprisal for whistleblowing.

d. Nothing in this manual limits or affects the independence of the Inspector General of the Department of Defense or the DoD Component statutory Inspector Generals in fulfilling their duties to determine whether an action affecting eligibility for access to classified information constituted a prohibited reprisal and to recommend appropriate corrective action to the DoD Component head.

7.4. ADJUDICATIVE GUIDELINES. The adjudicative guidelines will be used to determine an individual's national security eligibility. These guidelines are national level guidelines developed and distributed by the December 29, 2005 White House Memorandum, Intelligence Community Policy Guidance 704.2, or their successor documents, as appropriate.

7.5. ELECTRONIC ADJUDICATION (E-ADJUDICATION).

a. Use of automated adjudication procedures for e-adjudication is restricted to authorized adjudication facilities.

b. All determinations made by authorized adjudication facilities using approved e-adjudication business rules are valid and will be recorded in JPAS and accepted on a reciprocal basis.

7.6. ADJUDICATION OF NATIONAL SECURITY CASES.

a. PSIs may be adjudicated by e-adjudication using DNI-approved business rules, by certified adjudicators who have successfully completed the standards for experience, training, and certification to perform final adjudicative determinations, or by non-certified adjudicators operating under an approved risk management plan in accordance with the January 28, 2014 USD(I) Memorandum, DoDI 3305.13, and DoD 3305.13-M.

b. All military positions are national security positions regardless whether or not the Service member requires access to classified information, as established in DoDI 5200.02.

(1) All military members will undergo PRs, maintain a favorable adjudication, and be subject to continuous evaluation.

(2) All military members will undergo the NACLC or successor Tier 3 investigation at a minimum. The DoD CAF will adjudicate all military investigations and reinvestigations using the national security adjudicative guidelines.

(a) Military members who are denied or revoked a favorable national security eligibility determination will be afforded due process. Those individuals will be immediately referred to the servicing Military Department for appropriate action.

(b) Military members who are determined to be ineligible for access to classified material solely because of citizenship will be entered into JPAS as not eligible for access to classified material.

7.7. DOD CASE MANAGEMENT AND ADJUDICATION TRACKING SYSTEMS. The Case Adjudication Tracking System (CATS), National Security Agency/Central Security Service's Clearance Workflow and Verification System as authorized by the April 10, 2009 USD(I) Memorandum or the Defense Intelligence Agency (DIA) Total Integrated Team Analysis Network are DoD information technology systems capable of receiving national security investigations, managing workflow, and performing electronic adjudications.

7.8. DOCUMENTING ADJUDICATIONS.

a. Adjudicative determinations, whether favorable or unfavorable, interim or final, will be entered into JPAS on the same day the determination is made.

b. When derogatory information is not obviously and clearly mitigated by a mitigating condition, the disqualifying and mitigating condition(s) from the applicable adjudicative guideline and the rationale for each decision will be recorded in JPAS.

c. Applicable adjudication rationales will be documented in accordance with the August 31, 2010 USD(I) Memorandum.

d. All records will indicate whether an exception (condition, deviation, or waiver), as defined in Intelligence Community Directive Number 704, or a Bond Amendment waiver as detailed in Appendix 7B.3.e. was used to make an eligibility determination.

7.9. PERSONNEL PERFORMING ADJUDICATIVE FUNCTIONS. Adjudicative determinations are inherently governmental functions. However, the DoD CAF and DoD IC central adjudication facilities may contract for adjudicative support services to ensure timely accomplishment of mission objectives.

a. Inherently Governmental Functions. Government personnel who use contract support remain responsible for ensuring the completeness and accuracy of the case file and for considering all material submitted therein in their adjudicative decision. Government personnel will:

(1) Retain the authority and responsibility for making discretionary decisions, value judgments inherent in adjudication, and all final adjudicative determinations.

(2) Conduct all adjudicative services and functions in cases involving LAA, and requests for security assurance submitted by foreign governments for U.S. citizens requiring access to foreign government information.

b. Contractor Personnel Support of Adjudications. Services that may be provided by contractor personnel include administratively processing cases to ensure expeditious case management, pre-screening cases for investigative compliance, and other support that is ministerial in nature. Contract services cannot be so extensive as to exceed the capacity of Component oversight or limit the opportunity for proper discretionary decisions and value judgments by government adjudicative personnel.

(1) Contractor personnel providing adjudicative support must meet the same eligibility and investigative requirements required of government personnel with comparable duties.

(2) Adjudication contractor support personnel will be subject to continuous review by the appropriate DoD CAF or DoD IC central adjudication facility personnel (e.g., the Contract Officer's Representative) for contract compliance and will work only at adjudication facility-approved locations.

7.10. SCI ADJUDICATION.

a. SCI adjudication policy and guidelines are contained in Intelligence Community Directive 704 and Intelligence Community Policy Guidance 704.2.

b. SCI adjudication and eligibility determinations will be made in accordance with Intelligence Community Policy Guidance Numbers 704.1, 704.2, 704.3, and 704.4. SCI eligibility determinations include TS eligibility and below.

c. SCI adjudications of PSIs by the DoD CAF or applicable IC adjudication facilities will be limited to personnel affiliated with, assigned to, or under contract with the Component the central adjudication facility supports or with whom special agreements exist to provide SCI adjudication.

d. The applicable IC adjudication facility will notify the DoD CAF when they remove an individual under the DoD CAF's cognizance from SCI access.

e. When SCI access is removed from an individual for adverse reasons, the DoD CAF will review the adverse information and make a separate collateral eligibility determination. If an SCI access is removed for contractor personnel cleared through the NISP, the Director of DSS, in coordination with the DoD CAF, will advise the contractor if loss of SCI access also warrants withdrawal of collateral eligibility.

7.11. SAP ADJUDICATION.

a. SAP nomination policy and guidelines are contained in the May 20, 2013 USD(I) Memorandum.

(1) (Added) (AF) Special Access Program nomination policy and guidelines are prescribed by DoDM 5205.07 Volume 2, *Special Access Program Security Manual: Personnel Security*. (T-0).

b. SAP adjudication and continued eligibility determinations will be made in accordance with DoDD 5205.07 and the August 9, 2011 USD(I) Memorandum.

(1) (Added) (AF) The Special Access Program Personnel Security Official (SPO) or designee is responsible for managing SAP access for cleared personnel as prescribed in DoDM 5205.07 Volume 2, *Special Access Program Security Manual: Personnel Security*.

(2) (Added) (AF) The SPO will provide written notification and relevant security information received from the commander to the servicing IPO that may impact an individual's collateral security clearance eligibility. (T-1). The adverse or relevant security information must be reported to DoD CAF IAW the Office of Undersecretary of Defense Intelligence (OUSDI) memo dated 12 Jan 2018, *Implementation of SEAD 4: National Security Adjudicative Guidelines*.

c. The applicable SAP Central Office will notify the DoD CAF when adverse reasons warrant the removal of an individual from SAP access.

d. When SAP access is removed from an individual for adverse reasons, the servicing adjudication facility will review the adverse information and determine whether SCI access or collateral eligibility should be withdrawn. If SAP access is removed for contractor personnel cleared through the NISP, the Director, DSS, in coordination with the DoD CAF, will advise the contractor when to remove SCI access or collateral access.

(1) (Added) (AF) Access to Special Access Programs is governed by Air Force Instruction 16-701, *Management, Administration and Oversight of Special Access Programs*. (T-1).

7.12. POLYGRAPH AND CREDIBILITY ASSESSMENT PROCEDURES.

a. The use of polygraph and other approved credibility assessment tools is governed by DoDI 5210.91.

b. Except as authorized by DoDI 5210.91, no unfavorable national security eligibility determination will be taken based solely on a polygraph examination that is interpreted as indicating deception or is inconclusive. Refusal to take a voluntary polygraph will be given no consideration, favorable or unfavorable, when making a national security eligibility determination.

c. Admissions made during the polygraph interview or attempts to employ countermeasures to defeat a polygraph may be considered when making a national security eligibility determination.

7.13. ADJUDICATION TIMELINES. DoD adjudications will be completed in accordance with standards established by the SecEA and as required by Title 50, U.S.C.

7.14. DURATION OF SECURITY ELIGIBILITY AND ACCESS DETERMINATIONS. The validity of national security eligibility and access determinations is not limited to a specific duration in years, except as prescribed in this section.a. Security clearance eligibility and access do not expire simply because of an overdue PR as long as the individual submitted required paperwork or operational factors (such as deployment) or DoD Component decisions (such as funding constraints) delay submission. When the circumstances precluding on time submission are gone, DoD Components must submit PRs as soon as practicable.

b. Individuals who received a favorable adjudication of an investigation within the previous 5 years from the date the investigation closed and who have been retired or otherwise separated from U.S. Government employment for no more than 24 months will be granted eligibility as long as:

(1) There is no indication the individual no longer satisfies the standards established for access to classified information.

(2) The individual certifies in writing on an SF 86C to the security professional there has been no change in the relevant information provided for the last background investigation. The SF 86C will be forwarded to the DoD CAF and added to the individual's adjudicative record.

(3) An appropriate record check reveals no unfavorable information.

c. Commands may determine the submission of a new background investigation is merited when the SF 86C reveals derogatory information.

d. In all instances, if the most recent previous determination issued to the individual was a revocation, denial, or suspension, re-adjudication will be required.

7.15. DETERMINING ELIGIBILITY WITH CONDITIONS.

a. The presence of derogatory information or information that raises a security concern does not necessarily mean adjudicators will not grant or continue an individual's national security eligibility.

b. Adjudicators may issue favorable determinations or continue an individual's eligibility with conditions. An individual's failure to comply with the condition(s) or warning(s) may result in revocation of national security eligibility.

c. The local security professional will monitor individuals granted eligibility based on conditions and report the results to the supporting central adjudication facility semi-annually until the conditions are removed.

(1) (Added) (AF) The conditional grant program for security clearance eligibility is offered to individuals showing good faith efforts to resolve derogatory investigative issues, such as financial irresponsibility. The conditional personnel security eligibility is contingent upon the individual abiding to the agreement outlined in the conditional memo from Department of Defense Consolidated Adjudications Facility (DoD CAF) to resolve the aforementioned issues.

(2) (Added) (AF) The individual must acknowledging receipt of the conditional grant letter received from DoD CAF. (T-0). The commander, through the servicing Information Protection Office, will ensure DoD CAF receives the acknowledgement letter within 10 days of receipt of the conditional grant. (T-0).

(3) (Added) (AF) The commander will ensure individuals are monitored continuously IAW Section 11 of this manual. (T-0). The commander will coordinate with the servicing IPO and provide information to the DoD CAF via JPAS (or successor system), until the conditions or warnings are removed. (T-1).

(4) (Added) (AF) An individual who failed to abide by the conditions set forth in the memorandum or failure to respond will result in DoD CAF resuming the revocation/denial of security clearance eligibility. (T-0).

d. Adjudicators must document eligibility determinations issued with conditions in JPAS and revisit the determination annually until the conditions are removed.

7.16. INTERIM ELIGIBILITY.

a. Individuals may be granted temporary eligibility where official functions must be performed before completion of the national security investigation and adjudication process. Within the DoD temporary eligibility is referred to as "interim eligibility" or "interim."

(1) The authorities listed in Appendix 7A to this section may grant interim eligibility to personnel under their administrative jurisdiction pending a final national security eligibility determination by the adjudication facility. Only government personnel may make interim determinations. Justification for interim eligibility will be recorded in JPAS and the employee must be notified in writing by their employing activity that further access is expressly conditioned upon the completion of the national security investigation and granting of national security eligibility in accordance with national security adjudicative guidelines in the August 30, 2006 USD(I) Memorandum.

(a) (Added) (AF) Interim security clearance eligibility for contractors under the National Industrial Security Program may only be granted or withdrawn by the Director,

Defense Security Service. This does not apply to direct consultants to the Air Force whose investigation requests are submitted by the Air Force.

(2) Interim eligibility will be valid for up to 1 year. A 6 month extension may be made by the designated Component authority if:

(a) The national security investigation has not been completed due to deployment.

(b) The eligibility determination is pending at the central adjudication facility.

(3) The DoD Component will notify the adjudication facility of the extension via JPAS entry.

(4) The DoD Components will monitor all interims more than 1 year old to ensure:

(a) The national security investigation is ongoing.

(b) The individual still requires access.

(c) (Added) (AF) The commander will withdraw an interim security clearance access at any time if there is a determination that it poses an unacceptable risk to national security. (T-1). The commander will notify the servicing IPO if this action occurs. (T-1). See Section 11 of this manual.

(d) (Added) (AF) If the DoD CAF discovers and receives subsequent information that an individual poses unacceptable risk, the DoD CAF will suspend subject's security clearance eligibility. The commander will ensure the individual's local access is suspended until completion of security investigation and a favorable eligibility adjudication. (T-1).

(e) (Added) (AF) The commander may utilize Air Force Form 2583, *Request for Personnel Security Action*, to document and identify investigation, security clearance and special access program authorization. The form will not replace the requirement to manage and update security clearance and access in JPAS (or successor system) for unit personnel. (T-1).

(5) The adjudication facility will update JPAS to reflect the withdrawal of interim eligibility after 1 year or after the expiration of an approved 6-month extension.

(6) (Added) (AF) The commander will ensure the interim security access in recorded in JPAS (or successor system) until the final personnel security clearance eligibility is determined by DoD CAF. (T-1). Interim security access is only valid within the unit and the installation of the commander's purview and authority. At deployed locations or other installations, the commander controlling the classified material will make the determination to accept or decline the interim security access. (T-1). The commander will grant the interim security access in writing, including the following information:

(a) (Added) (AF) The name and social security number of the employee afforded access.

(b) (Added) (AF) The type of investigation submitted and the date it was scheduled at the Investigation Service Provider.

(c) (Added) (AF) The identity of the approving authority

(7) (Added) (AF) The commander must notify the individual in writing that further access is expressly conditioned upon the completion of the national security investigation and granting of final national security eligibility by DoD CAF. (T-0).

(8) (Added) (AF) The commander will ensure the file is maintained until the final personnel security eligibility is determined by the DoD CAF or if it is no longer needed by an individual to fulfill mission requirement. The memorandum will be available for review during inspections, staff assistance visits and assessments. (T-1).

b. Minimum requirements for interim Confidential or Secret eligibility are:

(1) Acceptable proof of citizenship.

(2) Favorable review of a completed SF 86.

(3) Favorable review of local personnel, base, military police, medical, and security records, as applicable.

(4) An appropriate national security investigation opened by the ISP.

(5) Favorable review of FBI Criminal History Report (fingerprint results).

c. Minimum requirements for interim TS eligibility are:

(1) Favorable completion of all requirements cited for interim Secret or Confidential eligibility.

(2) Favorable completion of a National Agency Check.

d. The authorities listed in Appendix 5A to this section may withdraw an interim eligibility at any time if and when they determine that the granted interim poses an unacceptable risk.

e. An interim Secret or Confidential is valid for access to the level of eligibility granted. Access to RD, COMSEC information, and NATO information is not authorized.

f. An interim TS is valid for access to TS information, and RD, COMSEC, and NATO information at the Secret and Confidential level.

g. Interim access to SCI information is determined by the access granting authority.

h. Interim eligibility for contractor personnel under the NISP is governed by DoD 5220.22-M.

i. The DNI provides guidance for temporary eligibility for SCI in Intelligence Community Directive Number 704.

j. Interim eligibility determinations and access are prohibited for National Security Agency/Central Security Service assignment, detail, or employment in accordance with DoDI 5210.45.

k. Eligibility determinations for SAP access are governed by DoDD 5205.07, DoDI 5210.91, and the August 9, 2011 USD(I) Memorandum.

APPENDIX 7A: DETERMINATION AUTHORITIES

7A.1. OFFICIALS AUTHORIZED TO GRANT, DENY, REVOKE, OR SUSPEND NATIONAL SECURITY ELIGIBILITY. Inherent in this authority is the ability to make interim access determinations.

a. Secretary of Defense.

b. DCMO.

c. Director, DIA.

d. Director, National Geospatial-Intelligence Agency (NGA).

e. Director, National Reconnaissance Office (NRO).

f. Director, National Security Agency/Chief, Central Security Service (DIRNSA/CHCSS).

g. GC DoD (for contractor personnel under the NISP) through DOHA.

h. Secretary of the Army.

i. Secretary of the Navy.

j. Secretary of the Air Force.

k. Chairman of the Joint Chiefs of Staff and Combatant Commanders.

l. This authority may be further delegated in writing to the extent necessary by the officials listed in Paragraphs 7A.1.a through 7A.1.k.

(1) (Added) (AF) The commander will exercise the authority to grant interim security access to Top Secret and Secret information when the requirements of Section 7.16 of this manual have been met. (T-1).

m. Director, DSS is authorized to grant interim clearance eligibility for NISP contractor personnel under DSS cognizance and to suspend eligibility. DSS is not authorized to deny or revoke national security eligibility.

(1) (Added) (AF) The commander has the authority to grant or deny National Industrial Security Program (NISP) contractor's access based on adverse information IAW AFI 16-1406, *Air Force Industrial Security Program*. (T-1).

7A.2. OFFICIALS AUTHORIZED TO SUSPEND ACCESS TO CLASSIFIED INFORMATION.

a. Commanders, DoD Component heads, or adjudicative authorities.

(1) (Added) (AF) The commander has the authority to deny or suspend access to personnel with an unresolved adverse information pending DoD CAF's review of the security concern. (T-1). Any doubt regarding whether access to classified information is clearly consistent with national security must be resolved in favor of national security. (T-0).

b. For SCI, cognizant heads of IC elements.

c. For SAP information, Special Access Program Central Office.

d. DSS for cleared NISP contractor personnel under DSS cognizance in accordance with the standard in DoDD 5220.6.

e. The authority to suspend access to classified information or occupy a national security position may be further delegated in writing to appropriate subordinates by the officials listed in Paragraph 7A.1.

7A.3. OFFICIALS AUTHORIZED TO GRANT, DENY, OR REVOKE LAA.

a. DCMO or single designee.

b. Director, DIA or single designee.

c. Director, NGA or single designee.

d. DIRNSA/CHCSS or single designee.

e. Director, NRO or single designee.

f. Secretary of the Army or single designee.

g. Secretary of the Navy or single designee.

h. Secretary of the Air Force or single designee.

(1) (Added) (AF) SecAF has delegated this authority to SAF/AA to manage the Limited Access Authorization (LAA) program.

(2) (Added) (AF) The commander will not grant LAA access, unless the DoD CAF grants a favorable LAA Secret eligibility in JPAS (or successor system).

i. Chairman of the Joint Chiefs of Staff or single designee.

j. Combatant Commanders or single designee.

7A.4. FINAL DETERMINATIONS. A three-member PSAB panel will be formed to render final determinations when an unfavorable national security determination is appealed. PSABs may be established under:

a. Secretary of the Army.

b. Secretary of the Navy.

c. Secretary of the Air Force.

(1) (Added) (AF) The Assistant Secretary of the Air Force, Manpower & Reserve Affairs (SAF/MR) has oversight of the Personnel Security Appeal Board. (T-1). See Section 10: Appeal Process for additional guidance.

d. DIRNSA/CHCSS.

e. Director, DIA.

f. Director, NGA.

g. Director, NRO.

h. Director, WHS.

i. GC DoD

APPENDIX 7B: SPECIAL CIRCUMSTANCES

7B.1. ADHERENCE TO FEDERAL LAWS.

a. This appendix addresses special circumstances that warrant inclusion to ensure compliance with federal law in the execution of the DoD PSP. The PSP specifies that eligibility for access to classified information or assignment to sensitive duties will be granted only to individuals whose personal and professional history affirmatively indicates willingness and ability to abide by regulations governing the use, handling, and protection of classified information. Improper or illegal involvement with drugs raises questions regarding an individual's willingness or ability to protect classified information. Drug abuse or dependence may impair social or occupational functioning, increasing the risk of an unauthorized disclosure of classified information.

b. E.O. 12564 requires a drug-free federal workplace. The possession of illegal drugs is unlawful under Chapter 13 of Title 21, U.S.C.

c. (Added) (AF) The commander will notify the servicing IPO to submit an incident report in JPAS (or successor system) for personnel who test positive for illegal substance use. (T-0).

7B.2. ADHERENCE TO FEDERAL LAWS PROHIBITING MARIJUANA USE. In accordance with the October 25, 2014 DNI memorandum, agencies are prohibited from granting or renewing a security clearance to an unlawful user of a controlled substance, which includes marijuana. Legislative changes by some States and the District of Columbia do not alter federal law or existing national security guidelines.

7B.3. PROHIBITION FOR ALL SECURITY CLEARANCES (THE "BOND AMENDMENT PROHIBITION").

a. Pursuant to Section 3343 of Title 50, U.S.C. (also known and referred to in this manual as the "Bond Amendment"), federal agencies are prohibited from granting or renewing a security clearance for any individual who is an unlawful user of a controlled substance or is an addict; this prohibition applies to all clearances.

b. For purposes of the Bond Amendment prohibition:

(1) An unlawful user of a controlled substance is any person who uses a controlled substance and has lost the power of self-control with reference to the use of the controlled substance or who is a current user of the controlled substance in a manner other than as prescribed by a licensed physician. Such use is not limited to the use of drugs on a particular day, or within a matter of days or weeks before, but rather that the unlawful use occurred recently enough to indicate the individual is actively engaged in such conduct.

(2) An addict of a controlled substance is any individual who habitually uses any narcotic drug so as to endanger the public morals, health, safety, or welfare; or is so far addicted to the use of narcotic drugs as to have lost the power of self-control with reference to his or her addiction.

c. Pursuant to the Bond Amendment, DoD Components may not, absent a waiver, grant or renew security clearances that provide access to SAPs, SCI, or RD for an individual who has been:

(1) Convicted in any U.S. court of a crime, sentenced to imprisonment for that crime and, as a result incarcerated for not less than 1 year;

(2) Discharged or dismissed from the Military Departments under dishonorable conditions; or

(3) Determined to be mentally incompetent by an adjudicating authority, based on an evaluation by a duly qualified mental health professional employed by, or acceptable to and approved by, the U.S. Government and in accordance with established procedures and standards.

d. Waiver procedures:

(1) Adjudicators will determine if Bond Amendment criteria apply to the case.

(2) A meritorious waiver may be granted, if appropriate, for one or more of the conditions specified in Paragraph 7B.3. if the adjudicator, using the adjudicative mitigating factors, would have arrived at a favorable decision but for the Bond Amendment disqualification.

(3) If, after applying the appropriate mitigating factors listed in the adjudicative guidelines, the adjudicator determines that a meritorious waiver is not appropriate, eligibility will be denied or revoked with a statement of reasons (SOR) that includes the Bond Amendment. The DoD's established administrative review procedures, including hearing and appeal processes, will be followed in all such cases.

(4) Meritorious waivers will be annotated in JPAS. Adjudicators will provide a detailed justification for the waiver in JPAS.

(5) A meritorious waiver may be granted during any stage of the adjudication or due process. If a tentative denial or revocation has been issued, the meritorious waiver decision will be made by the Director or Deputy Director of the DoD CAF. If a letter of denial (LOD) or letter of revocation (LOR) was issued by the DoD CAF, the final meritorious waiver decision will be made by the head of the PSAB, or by the Director, DOHA, for industry cases.

e. By January 7 of each year, heads of adjudication facilities will submit to the OUSD(I) Security Policy and Oversight Division an annual granted waiver report providing a summary of all granted for the preceding calendar year. Each summary will detail:

(1) The applicable section of the Bond Amendment.

(2) The nature and date of the military discharge, dismissal, mental health issue, or criminal offense (as applicable).

(3) Any sentence imposed.

(4) The meritorious circumstance(s) cited in support of the waiver.

f. The DDI(I&S) will submit a final Consolidated Granted Waiver Report when waivers were granted in the previous calendar year to Congress by February 1 in accordance with Title 50, U.S.C..

g. Adjudicators from the following DoD Components may authorize waivers of the Bond Amendment disqualification in cases when the SOR or letter of intent (LOI) has not yet been issued:

(1) DoD CAF.

(2) DIA.

(3) National Security Agency/Central Security Service.

(4) NGA.

(5) NRO.

h. Meritorious waivers issued for the Bond Amendment are not subject to reciprocity.

APPENDIX 7C: ADJUDICATION OF INCOMPLETE NATIONAL SECURITY INVESTIGATIONS

7C.1. GENERAL.

a. Rapid Assessment of Incomplete Security Evaluations is the Department's tool for assessing PSI quality and is part of CATS. Rapid Assessment of Incomplete Security Evaluations will be used by all non-IC groups to evaluate incomplete national security investigations that do not meet the federal investigative standards or lack sufficient information required to adjudicate them.

b. A finished investigation report received by an adjudication facility, or authorized designee, where a minor investigative element has not been met (e.g., missing one character reference), does not necessarily require reopening the investigation; does not preclude favorable adjudication; and does not require an exception (condition, deviation, or waiver), if the other information provided by the individual or developed during the investigation is generally favorable.

c. In circumstances where an investigation report received by the adjudication facility contains insufficient detail to favorably resolve potentially disqualifying information, the adjudication facility may (without re-initiating the investigation) acquire additional information about the individual such as obtaining a medical evaluation or using interrogatories. A copy of information acquired by the adjudication facility will be forwarded to the ISP and appended to the investigative record.

d. Complete investigative information provides the best foundation for the adjudication process. When adjudicators are faced with incomplete reports of investigations that have missing scope item coverage, they must decide whether to return the investigation to the ISP, make a determination despite the missing information, or gather the information themselves. Training and experience provide adjudicators with the background for deciding between these options.

e. Adjudicators may obtain and rely upon official records published (made publicly accessible) by federal, State, or local government.

f. Further guidance in adjudicating investigations that have missing or incomplete information is contained in the July 13, 2010 and March 10, 2010 USD(I) Memorandums.

7C.2. FACTORS TO CONSIDER. A decision about whether to return an investigation with missing or incomplete scope items is a risk management decision that requires adjudicators to use their best judgment to weigh many factors when evaluating an investigation. These factors include:

a. Explanations for Missing or Incomplete Scope Items. Investigator notes documenting why items are missing or incomplete can help adjudicators decide whether to make a

determination despite missing information. When investigators cannot obtain the required coverage in a case, they must document the efforts expended and the reasons for the unsuccessful attempts. When appropriately documented and recorded by the ISP, the explanation should provide enough information to help the adjudicator determine whether additional efforts would result in a completed scope item.

b. Relevancy of Incomplete or Missing Scope Items. It is important that an investigation include enough information to allow issue resolution. However, different scope items are relevant for different issues. In general, any case that does not include enough information to resolve the issue should be returned to the investigation provider. However, if a missing scope item is not relevant to an adjudicative issue, it may not be necessary to return the investigation, but the missing items must be documented in accordance with the August 31, 2010 USD(I) Memorandum. Adjudicators are uniquely qualified to make decisions about the relevance of sources to an issue. Guidance on adjudication of incomplete PSIs is contained in the July 13, 2010 USD(I) Memorandum.

c. Scope Item Importance. All scope items may gather information that is important to an adjudicative determination. However, some items, like a subject interview when required, are more likely to do so than others. A favorable decision made without information from these types of critical scope items generally carries a greater risk.

d. Scope Item Leads or Sources. Some investigation scope items consist of a single source of information; others may consist of multiple sources or leads. For scope items that consist of multiple sources, one missing source may not be significant enough to make it necessary to return the investigation. On the other hand, key information is missing if a single source item, such as the credit check, has not been completed.

7C.2. (ADDED) (AF) REQUEST FOR ACTION. The servicing IPO will forward security concerns received from the DoD CAF to the commander of the individual for review and action, as appropriate. (T-1). The DoD CAF will hold in abeyance the individual's determination of eligibility for access to classified information, pending receipt of all requested information.

a. (Added) (AF) The servicing IPO will provide the written request for a medical evaluation received from the DoD CAF to the commander of the individual for review and action, as appropriate. (T-1). The commander will provide the individual with the memorandum, which informs the individual of his/her rights. (T-1). This request is not a commander-directed evaluation for civilian employees. The medical evaluation should be performed at no cost to the employee and reimbursements should be charged IAW AFI 65-601 V1, *Budget Guidance and Procedures*. (T-1).

(1) (Added) (AF) The servicing IPO will provide the credentialed medical or mental health professional evaluation to the DoD CAF within 30-60 days as stated in the memorandum. If the individuals declines the medical evaluation, the DoD CAF will make a final decision based upon available information, including any unresolved issues.

b. (Added) (AF) The commander through the servicing IPO will inform the Investigation Service Provider, if an individual has returned from deployment and an interview is needed to complete a background investigation. (T-1). The DoD CAF cannot take further adjudicative action until the individual's personnel security investigation (PSI) has been reopened, and the interview is completed.

(1) (Added) (AF) The commander must ensure the request includes the following information: individual's name, social security number, type of investigation initially requested, case number, address and current phone number (work and home) so that the investigator can promptly schedule the interview. (T-1). The commander, through the servicing IPO, will provide individual's supplemental information to the Investigative Service Provider (ISP) to re-open the investigation. (T-1).

(2) (Added) (AF) The servicing IPO must ensure JPAS (or successor system) is updated to document termination of the interim security access, if the investigation is not re-opened within the prescribed timeframe. (T-1).

SECTION 8: ACCESS DETERMINATIONS

8.1. ACCESS TO CLASSIFIED INFORMATION.

a. Granting national security eligibility is a function distinct from granting access to classified national security information. National security eligibility determinations are made on the merits of the individual case and involve examining a sufficient period of a person's life and background to determine that the person is an acceptable national security risk. Access determinations are made solely on the basis of the eligible individual's need for access to classified information to perform official duties.

b. The adjudication facility determines the level of eligibility based on the adjudicative record and the National Security guidelines. The employing activity determines access level based on eligibility, need-to-know, and the requirements of the position held. Before granting access to classified information, the individuals must sign the appropriate nondisclosure agreements in accordance with E.O. 12829 if JPAS does not reflect a previously signed nondisclosure agreement.

c. DoD guidance on access to classified information by individuals in the Executive Branch is contained in DoDM 5200.01. Guidance for persons outside the Executive Branch is in DoDM 5200.01.

8.2. ONE-TIME OR SHORT DURATION ACCESS. Circumstances may arise where an urgent operational or contractual exigency exists for cleared DoD personnel to have one-time or short-duration access to classified information at a higher level than authorized by the existing eligibility level. Requirements for one-time or short-duration access are prescribed in the December 12, 2005 Office of Management and Budget Memorandum. The exercise of this provision will be used sparingly. Repeatedly using multiple short duration accesses for the same individual during any 12-month period is prohibited.

a. Conditions. If the access granted involves another agency's classified information, then that agency must concur before access is granted. Access must not exceed 180 days and is limited to specific, identifiable information that is made the subject of a written record.

b. Procedures.

(1) Authorization will be granted by a GO/FO, a civilian equivalent, or a general court-martial convening authority after coordination with appropriate security professionals. Authorities may grant one-time or short-duration access to information classified at the same (or lower) level of access as that held by the authority.

(2) The recipient of the one-time access authorization must be a U.S. citizen and possess a current national security eligibility.

(3) Access at the next higher level for COMSEC, SCI, SAP, NATO, National Command and Control-Extremely Sensitive Information, or foreign government information is not authorized.

(4) The employee to be afforded the higher level access must have been continuously employed by a DoD Component or a cleared DoD contractor.

(5) Local, personnel, and security records of the employee concerned will be reviewed to ensure there is no derogatory information.

(a) (Added) (AF) The commander will review available records to ensure there is no derogatory information IAW the OUSD(I) memo dated 12 Jan 2018, *Implementation of SEAD 4: National Security Adjudicative Guidelines*. (T-0).

(b) (Added) (AF) The commander will contact the servicing IPO for additional guidance and appropriate action if derogatory information is discovered. (T-1).

(6) Access at the higher level will be limited to information under the control and custody of the authorizing official and will be afforded under the general supervision of an employee cleared to the classification level for the information. The employee charged with providing such supervision is responsible for recording the higher-level information actually revealed, the date(s) such access is afforded, and the daily return of the material accessed

(7) Such access will be cancelled promptly when no longer required, at the conclusion of the authorized period of access, upon notification from the granting authority, or after 180 days from when access is granted, whichever comes first.

(a) (Added) (AF) The commander will not use one-time access to merely provide access for individuals to attend meetings or other short-lived forums. Commander will not repeatedly use multiple short duration accesses for the same individual during any 12-month period. Commanders are not authorized to use one-time or short-term access when circumstances would permit the routine processing of an individual for higher-level security eligibility.

(b) (Added) (AF) The commander will coordinate one time or short time duration access request with the servicing IPO. (T-2).

(c) (Added) (AF) The commander will ensure that the individual's access is removed in JPAS (or successor system) and applicable administrative procedures are followed IAW AFI 16-1404, *Air Force Information Security Program.* (T-1).

(8) The authorized security professional will post the one-time or short-duration access in JPAS and maintain the following for 24 months from the date the access is granted:

(a) The name and social security number of the employee afforded access.

(b) The date and level of access authorized.

(c) Compelling reason to grant the higher-level access and the benefit to the DoD mission or event.

(d) The identity of the approving authority.

(e) (Added) (AF) The commander will provide the servicing IPO a signed memorandum detailing the justification listed above for one time or short duration access. (T-2).

c. Revocation. This special authority may be revoked for abuse, inadequate record keeping, or inadequate security oversight.

(1) (Added) (AF) SAF/AA will revoke commander's authority to grant one-time access for abuse, inadequate record keeping, or inadequate security oversight.

d. Other Circumstances. Do not use one-time or short-term access when circumstances would permit the routine processing of an individual for a higher-level security eligibility.

8.3. SPECIAL CASES. When necessary in the interests of national security, the DoD Component heads or their senior agency official may authorize access to classified information by persons outside the Federal Government, as prescribed in DoDM 5200.01

SECTION 9: PERSONNEL SECURITY ACTIONS

9.1. GENERAL.

a. Unfavorable national security eligibility determinations do not include administrative security clearance downgrades or withdrawals based on changed duties or similar circumstances unrelated to a national security eligibility adjudication, or withdrawals of interim eligibility based on derogatory information.

b. This section provides guidance only for the internal operation of the DoD. It is not intended to, does not, and may not be relied upon to create or enlarge the jurisdiction or review authority of any court or administrative tribunal, including the Merit Systems Protection Board.

9.2. REFERAL OF DEROGATORY INFORMATION FOR ACTION.

a. Whenever derogatory information about an individual with national security eligibility (regardless of whether that individual has access to classified information) is developed or otherwise becomes available to any DoD element that is relevant to the adjudicative guidelines, it will be referred to The commander or the security professional of the DoD organization to which the person is assigned for duty. Reporting will be in accordance with Section7 of this manual.

(1) (Added) (AF) Individuals must self-report changes (e.g., potential security concern, reportable information, and/or activity reports, etc.) without exception which may impact security clearance eligibility or access IAW Security Executive Agent Directive (SEAD) 3, *Reporting Requirements for Personnel with Access to Classified Information or Who Hold a Sensitive Position*. (T-0).

(2) (Added) (AF) Reporting derogatory information is everyone's responsibility. The commander, supervisor, coworker, cleared individual etc. shall report information that meets one or more of the 13 adjudicative guidelines listed in the SEAD 4*: National Security Adjudicative Guidelines*, to the servicing IPO. (T-0. The servicing IPO will report all information without attempting to apply any mitigating factors, which may exist. (T-1).

(4) (Added) (AF) The commander through the servicing IPO will submit the derogatory information in JPAS (or successor system). (T-1). The commander may provide supplemental documentation to the DoD CAF on available reports, status notification, local access suspension and/or recommendation for continued clearance eligibility (See Enclosure 1). (Note: Security Information Files (SIF)[1] are no longer an

[1] **SIF serves as a repository documentation of unfavorable or derogatory information that requires further review, evaluation, or investigation to resolve outstanding administrative or adjudicative concerns. It may be established by a commander, civilian equivalent, or by the CAF. In previous cases, SIFs were administratively established but the incident report was never submitted in JPAS (or successor system). To ensure all available information are submitted in a timely manner to DoD CAF, SIFs are no longer an administrative requirement. The commander, through the servicing IPO, will submit an incident report in JPAS (or successor system) along with supplemental information IAW with DoDM 5200.02 timeframe.**

administrative requirement to submit an incident report in Joint Personnel Adjudication System (or successor system).

(5) (Added) (AF) The servicing IPO must provide written notification and relevant derogatory security information to the Special Security Office (SSO) for individuals with access to Sensitive Compartmented Information (SCI) IAW AFMAN 14-304, *The Security, Use, and Dissemination of Sensitive Compartmented Information (SCI)*. (T-1).

(6) (Added) (AF) The servicing IPO must provide written notification and relevant derogatory security information to the Special Access Program Personnel Security Office (SPO) for individuals with access to Special Access Program IAW AFI 16-701, *Management, Administration and Oversight of Special Access Programs*. (T-1).

(7) (Added) (AF) The commander will request support and/or information from the servicing IPO, SSO and SPO for evaluation and relevant documentation, when issues warrant such coordination. (T-1).

(8) (Added) Air Force) The servicing IPO or designee will inform the commander of available resources, materials, and policies concerning the incident report process, access suspension, appeals process and relevant personnel security procedures. (T-1). The commander will in turn inform the individual with an open incident report. (T-1).

(9) (Added) (AF) In rare cases, only a MAJCOM/CD or higher authority may prohibit a servicing IPO from submitting a potential security concern, reportable information or activity report to the DOD CAF. (T-1). The MAJCOM/CD or higher authority must document the rationale in writing and provide a courtesy copy to the servicing IPO. (T-1). The Air Force Office of Special Investigations (AFOSI) or Federal Bureau of Investigation (FBI) may also direct this reporting not be done as prescribed in Section 9.4.c. of this manual.

b. Whenever it is determined an individual may be involved with a foreign intelligence entity, the matter will be referred to the supporting Military Department CI organization (MDCO) (for civilians or military personnel) or the FBI (for contractor personnel), with copy to DSS, as appropriate, to resolve issues related to a request for investigative or operational support. Organizations will comply with these steps unless directed to do otherwise by the MDCO or FBI:

(1) After coordinating with the supporting MDCO or the FBI, with copy to DSS, as necessary, cognizant commanders or security professionals will evaluate referred information in terms of its security significance and completeness. Commanders will coordinate with local security and law enforcement, as appropriate.

(a) (Added) (AF) The Air Force Office of Special Investigations (AFOSI) is designated as the Air Force's Military Department CI organization as prescribed in DoDD 5240.02, *Counterintelligence*.

(b) (Added) (AF) The commander may opt to consult with appropriate staff agencies (e.g., AFOSI, security forces, judge advocate, local law enforcement) to obtain accurate information and guidance prior to taking disciplinary or security actions.

(c) (Added) (AF) The commander will consult with the servicing AFOSI, for guidance to ensure ongoing criminal investigations are not compromised or to resolve issues, whenever it is determined an individual may be involved with a foreign intelligence entity or criminal investigations. (T-1).

(2) Commanders or security professionals will report derogatory information and any actions taken or anticipated within 72 hours to the appropriate adjudication facility via JPAS, and make a determination on whether the derogatory information warrants the suspension of access to classified information.

(a) (Added) (AF) The commander, in collaboration with servicing IPO will provide initial incident report to DoD CAF in JPAS (or the successor system) within 72 hours upon receipt of the information. (T-1).

(3) If further information is needed to resolve the allegations, the DoD CAF will request additional investigation. The DoD CAF will take the appropriate adjudicative action to include possible suspension of the eligibility in accordance with Paragraph 9.4.a. This does not preclude or preempt the authority of the commander or security professional with respect to the individual's local access.

(a) (Added) (AF) The commander will make every effort to ensure allegations are reviewed and validated by all parties prior to submission to DoD CAF for review. (T-1). The commander may suspend local access and debrief individuals for cause when the security concern raises serious question as to the individual's ability or intent to protect national security information.

(b) (Added) (AF) If the decision is to suspend the person's access to collateral classified information, then access to the SCI or SAP is automatically suspended. If access to SCI or SAP is suspended by other authorities, the commander may consider the available facts IAW SEAD 4*: National Security Adjudicative Guidelines* and may also suspend access to collateral classified information.

(c) (Added) Air Force) The commander, through the servicing IPO must also report personnel with suspended local access to the Insider Threat Hub for review. (T-1).

c. Reports of derogatory information involving contractor personnel must be referred directly to the DSS or Personnel Security Management Office for Industry and to the DoD CAF. The DoD CAF will take the appropriate adjudicative action in accordance with Paragraph 9.5.a and referral to the DOHA for possible action, in accordance with DoDD 5220.6. Military and civilian security officers should evaluate the nature of the derogatory information and make a risk management decision whether or not to remove the individual from access pending final review by the DoD CAF or DOHA. Contractors under the NISP report in accordance with DoD 5220.22-M.

d. No final unfavorable national security eligibility determination may be taken without providing the opportunity to invoke due process protections contained in Section 7 of this manual.

(1) (Added) (AF) The commander will notify the DOD CAF through the servicing IPO whether or not the individual will maintain access to classified information, in addition to the submission of the incident report. (T-1). The DoD CAF will then make the security clearance eligibility determination or request additional information from the commander through the servicing IPO, if necessary.

(2) (Added) (AF) The servicing IPO will provide guidance to the commander on incident reporting process. (T-1). The servicing IPO will assist commanders in processing, maintaining and monitoring incident reports. (T-1).

(3) (Added) (AF) The servicing IPO will notify the gaining IPO when an individual transfer to another assignment and the incident report cannot be closed (See Enclosure 4). (T-1). The gaining IPO will ensure the individual is owned or service in JPAS (or successor system) and use the checklist to track the incident report with DoD CAF. (T-1)

(4) (Added) (AF) The commander may also request an immediate favorable closure of the incident report be sent to the DoD CAF through the servicing IPO, when special circumstances exist (e.g., individual was falsely accused or holds a special expertise that is essential for mission accomplishment, etc.). (See Enclosure 5).

(5) (Added) (AF) The servicing IPO and commander will ensure all supporting documentation is included prior to submission to the DoD CAF. (T-3). The commander's recommendation and rationale for the final decision may also be included in the package. The following are examples of the types of required documentation relevant to the issue:

(6) (Added) (AF) AFOSI reports of investigation, civil, police, or child advocacy reports.

(7) (Added) (AF) Security Forces incident or complaint reports and SSO reports.

(8) (Added) (AF) Summaries of facts to substantiate any unfavorable information, to include a complete reference to the source of the information.

(9) (Added) (AF) Summaries of unfavorable information file entries.

(10) (Added) (AF) Medical or mental health summaries which indicate impairment of the individual's judgment or reliability and summaries of actions by mental health providers. Note: security professionals, commanders, supervisors, and human resources personnel are prohibited from asking individuals regarding any mental health counseling they may have included on the questionnaire. Improper questions about an individual's mental health counseling may result in administrative or other appropriate disciplinary action.

(11) (Added) (AF) Reports showing the date of successful completion of a rehabilitation program, progress in a rehabilitation program, or the date termed a rehabilitative failure.

(12) (Added) (AF) Summaries or actual reports of administrative, punitive or disciplinary actions to include records of counseling, letters of reprimand, Article 15, Uniform Code of Military Justice, or courts-martial orders, bankruptcy petitions, discharge orders, or copies of letters of indebtedness.

(13) (Added) (AF) Orders or written notification advising the status and location of individuals placed within retraining, on appellate leave, or rehabilitation or confinement status.

(e) (Added) (AF) The servicing IPO will contact the DoD CAF for an extension if the incident report cannot be closed within 120 days. (T-1). The servicing IPO will maintain a suspense copy until the DoD CAF has made the final determination. (T-1).

(f) (Added) (AF) The servicing IPO will submit all available information to DoD CAF for adjudication. (T-1). The DoD CAF will adjudicate the information contained from the incident report and render a personnel security eligibility determination. The servicing IPO will forward the notification of eligibility decision to the individual through the commander and update access in JPAS (or successor system).

9.3. LOSS OF JURISDICTION.

a. A loss of jurisdiction results when an individual retires, separates, or ends their affiliation with DoD before an adjudications facility can make an eligibility determination. Under these circumstances the adjudication facility will cease all work on the individual's adjudicative record.

(1) (Added) (AF) The commander through the servicing IPO will notify the DoD CAF if the individual separates or is no longer employed by the AF. (T-1).

b. When a loss of jurisdiction occurs the adjudication facility will register an eligibility of none in the system of record.

c. When an individual re-affiliates, the owning organization will communicate with the DoD CAF to determine whether eligibility can be established based on the existing background investigation or if a new background investigation is required.

(1) (Added) (AF) The commander through the servicing IPO will submit a customer service request to DoD CAF to research or re-certify an individual's security clearance eligibility. (T-1).

9.4. SUSPENSION OF NATIONAL SECURITY ELIGIBILITY OR ACCESS.

a. Except for cases involving NISP contractor personnel, which are administered according to the suspension standards set by DoDD 5220.6 and DoD 5220.22-R, the DoD CAF and the DoD IC central adjudication facilities are solely responsible for suspending national security eligibility.

(1) The adjudication facility will evaluate any credible derogatory information it receives within 15 calendar days and make an initial determination indicating whether or not a cleared individual's continued eligibility is clearly consistent with the interests of the national security.

(2) Adjudication facility officials should confirm with the reporting organization to ensure derogatory information has been reported to CI or law enforcement authorities as appropriate.

b. DoD Component heads, commanders, or their authorized representatives, may suspend access for cause when information relative to any of the adjudicative guidelines exists and raises a serious question as to the individuals' ability or intent to protect national security information. The Director, DSS, has the authority to suspend access for cause for cleared employees of contractors under the NISP in accordance with References DoD 5220.22-M and the May 13, 2009 USD(I) Memorandum.

(1) (Added) (AF) The commander must provide written notice to an individual if local access is suspended, pending DoD CAF review. (T-1). The commander must ensure the local suspension of access is recorded in JPAS (or successor system). (T-1).

(2) (Added) (AF) The servicing IPO must provide the incident report process, due process and other applicable personnel security procedures to the commander (T-1). The commander must in turn provide information to the individual about the due process and incident report procedures. (T-1).

c. DoD Component heads, commanders, or their authorized representatives must report access suspensions to the appropriate adjudication facility via the JPAS incident report link within the same calendar day as the suspension. This action alerts registered JPAS users of the change in the person's status. The MDCO or FBI may direct this reporting not be done.

(1) (Added) (AF) The Air Force Office of Special Investigations (AFOSI) or Federal Bureau of Investigation (FBI) may direct the incident reporting not take place to preserve the integrity of a pending counterintelligence or criminal investigation.

(3) (Added)(Air Force) When incidents involve the AFOSI or FBI, the commander will coordinate all release of information with the appropriate agency to preclude inadvertent compromise of investigative activity.

d. DoD Component heads, heads of DoD agencies, commanders, or their authorized representatives must include a command recommendation to the supporting adjudication facility on whether to retain the individual's national security eligibility pending the conclusion of an investigation or when rendering a final determination, and provide the individual with a copy of that recommendation.

(1) (Added) (AF) The commander may notify the individual of the suspension verbally, but must follow up with a written notice within a reasonable time. See enclosure 2 for sample memo.

e. Local commanders or organization heads, as appropriate, must notify persons in writing when their eligibility or access has been suspended and include a brief statement of the reason(s) for the suspension of access consistent with the interests of national security.

(1) (Added) (AF) The commander will inform the individual with a courtesy copy to the DoD CAF whether or not to suspend the individual's access to classified information and the rationale (see Enclosures 2 or 3). (T-1). The commander is encouraged to coordinate with the servicing IPO and the servicing Legal Office on the notice letter.

f. Adjudication facilities must notify persons in writing when their eligibility has been suspended and include a brief statement of the reason(s) for the suspension of eligibility consistent with the interests of national security.

(1) (Added) (AF) The servicing IPO will act as a liaison between DoD CAF and the individual with a suspended clearance eligibility. (T-1). The individual will be afforded due process IAW Section 10: Appeal Process.

(2) (Added) (AF) The commander is prohibited from authorizing the individual to access classified information if DoD CAF suspends clearance eligibility. (T-0).

g. Individuals will sign a receipt, acknowledging receipt of the suspension notification, which must state that the receipt is not an acknowledgement of culpability or concurrence with the suspension.

h. The adjudication facility will render a new national security eligibility determination upon receipt of a finalized incident report associated with a suspension of national security eligibility and enter the determination in JPAS. Before restoring access, local commanders, organization heads, or security professionals must verify eligibility in JPAS.

i. Suspension cases must be resolved as quickly as circumstances permit. Suspensions exceeding 180 days must be closely monitored and managed by the adjudication facility concerned so as to expeditiously reach a new national security eligibility determination.

j. The OUSD(I) Security Policy and Oversight Division will monitor the number of suspensions that exceed 180 days.

SECTION 10: APPEAL PROCESS

10.1. GENERAL.

a. Individuals will be provided an opportunity to appeal an adjudication facility's unfavorable national security determination in accordance with the procedures contained in this section.

b. SCI due process procedures will be conducted in accordance with DoDI 5210.45 and Intelligence Community Policy Guidance Number 704.3, as applicable.

(1) (Added) (AF) Sensitive Compartmented Information (SCI) due process procedures will be conducted IAW AFMAN 14-304, *The Security, Use and Dissemination of Sensitive Compartmented Information.* (T-1).

c. DoD Components may enter into agreements to have DOHA review written appeals and provide the Component's PSAB a recommended decision.

10.2. MINIMUM DUE PROCESS REQUIREMENTS APPLICABLE TO ALL.

No unfavorable national security eligibility determination will be made without first:

a. Providing the individual with a comprehensive and detailed written explanation of the basis for the unfavorable determination as the national security interests of the United States and other applicable law permit. The LOD or LOR must include each security concern, the applicable adjudicative guideline(s) related to each concern, and provide an explanation of the kinds and types of information they could provide to support their appeal.

b. Informing the individual of their right to:

(1) Be represented by counsel or other representative at their own expense.

(2) Request the documents, records, and reports upon which the unfavorable national security determination was made. Be granted an extension to the set timeline by the Component PSAB if requested documents, records, and reports are not provided promptly.

c. Providing a reasonable opportunity to reply in writing and to request review of the unfavorable determination.

d. Providing the individual written notice of reasons for the determination, the determination of each adjudicative guideline that was provided to the individual in the statement of reasons (SOR) that accompanied the notification of intent (NOI) to deny or revoke the identity of the determination authority, and written notice of the right to appeal unfavorable determinations to a high-level panel.

e. The individual must acknowledge the receipt of the LOD or LOR and indicate in writing if they will submit an appeal. If the individual refuses to acknowledge receipt or indicate

whether an appeal will be submitted, the security professional will make a written record of the refusal and submit it to the adjudication facility.

f. Providing the individual an opportunity to appear in person and present relevant witnesses, documents, materials, and information.

g. Providing the individual with a written decision on appeal.

h. When a DoD Component head or principal deputy personally certifies that a procedure in this section cannot be made available in a particular case without damaging the national security interests of the United States by revealing classified information, the particular procedure will not be made available. This certification is conclusive.

(1) This section does not limit or affect the responsibility and power of a DoD Component head pursuant to any law or other E.O. to deny or terminate access to classified information in the interests of national security.

(2) The power and responsibility to deny or revoke eligibility for access to classified information pursuant to any law or E.O. may be exercised only where the DoD Component head determines that the procedures prescribed in Section 7 and this section cannot be invoked in a manner that is consistent with national security. This determination is conclusive.

10.3. SPECIFIC PROCEDURES FOR CONTRACTOR EMPLOYEES.

DoD contractor personnel will be afforded the appeal procedures in DoDD 5220.6.

10.4. SPECIFIC PROCEDURES FOR CIVILIAN EMPLOYEES AND MILITARY MEMBERS.

a. No unfavorable national security eligibility determination will be rendered unless the civilian employee or military member concerned has been:

(1) Provided an LOI. The LOI to deny or revoke must accompany or include the SOR and contain:

(a) A summary of the security concerns and supporting adverse information.

(b) Instructions for responding to the SOR.

(c) A copy of the relevant adjudicative guidelines.

(d) A list and description of the information relied upon to render the proposed unfavorable national security eligibility determination.

(2) Provided a Written SOR. The SOR must state the basis for the proposed unfavorable national security eligibility determination. The SOR must be as comprehensive and detailed as national security and Section 552 of Title 5, U.S.C. and DoD 5400.11-R permit. The SOR must explain each security concern, state the specific facts that trigger each security concern, identify

the applicable adjudicative guideline(s) for each concern, and provide the disqualifying conditions and mitigating conditions for each adjudicative guideline cited.

(3) Afforded an Opportunity to Reply to the LOR and SOR. The reply must be in writing to the adjudication facility.

(a) The individual must notify the adjudication facility in writing within 10 calendar days of receipt of the LOI and SOR whether he or she intends to reply to the LOI and SOR.

(b) The individual's reply to the LOI and SOR must be submitted no later than 30 calendar days from the date he or she received the LOI and SOR. An extension of up to 30 calendar days from the original deadline may be granted by the employing organization following submission of a written request from the individual before the expiration of the original deadline. Additional extensions may only be granted by the adjudication facility when factors beyond the individual's control (e.g., failure of the DoD CAF or the ISP to provide records in a timely manner) warrant granting additional time.

(c) The adjudication facilities will not deny or revoke an individual's national security eligibility without official documentation that the individual received the LOI and SOR.

(4) Provided a Written LOD or LOR.

(a) When a favorable determination cannot be rendered, the central adjudication facilities will provide the individual via the appropriate Component or command security office, a written LOD or LOR stating the final determination of each adjudicative guideline that was provided to the individual in the statement or reasons (SOR) that accompanied the NOI to deny or revoke was mitigated or unmitigated and reason(s) for denying or revoking national security eligibility.

(b) The LOD or LOR will include clear instructions on how to appeal the unfavorable determination.

(c) The central adjudication facilities will provide the written LOD or LOR as promptly as individual circumstances permit but no more than 60 calendar days from the date of receipt of the individual's reply to the SOR and LOI, provided no additional information is deemed necessary to render the national security eligibility determination.

(d) When an LOD or LOR is based on the failure of the individual to reply to the SOR and LOI, the LOD or LOR will include all of the security concerns, adjudicative guidelines, and mitigating factors contained in the SOR and LOI and the reason(s) for denying or revoking national security eligibility.

(e) If an LOD or LOR cannot be completed within the time frame allowed, the individual will be notified in writing of this fact, the reasons why, and the date the written LOD or LOR is expected to be completed, which will not normally exceed a total of 90 calendar days from the date of receipt of the reply to the SOR and LOI.

(f) The DoD Component or command security professionals will notify the appropriate adjudication facility within 10 calendar days if they are unable to deliver the LOD or LOR to the individual. The notification will include information as to why the LOD or LOR could not be delivered (e.g., illness or death in the family, deployment) and when it is expected the individual can receive a copy of the LOD. Security professionals must deliver the LOD immediately upon the individual's return.

(5) Afforded an Opportunity to Appeal the LOD or LOR.

(a) Within 10 calendar days of receipt of LOD or LOR, the individual will sign and return the notice of intent to appeal (NOIA) to the adjudication facility via their security office. The individual must state whether he or she intends to appeal, and if so, whether he or she requests a personal appearance or will appeal in writing. The local security professionals may grant a single 10 calendar day extension upon request from the individual. The grant of a 10 calendar day extension must be annotated in JPAS. All other requests for extension must be granted by the adjudication facility.

(b) Within 4 calendar days of receipt of the individual's NOIA, security offices will forward the NOIA to the adjudication facility.

(c) The adjudication facility will store signed statements acknowledging receipt of LOD and NOIA electronically in the subject's adjudicative record.

1. (Added) (AF) The servicing IPO will provide a copy of the notice of intent to appeal (NOIA) and supporting materials by email to usaf.pentagon.saf-mr.mbx.saf-mrbs@mail.mil or by mail to SAF/MRBS, 1500 West Perimeter Road, Suite 3700, Joint Base Andrews, MD 20762-7002.

(d) If the individual elects to appeal the LOD or LOR, the adjudication facility will forward a copy of the NOIA within 2 calendar days to the appropriate PSAB and to DOHA if a personal appearance is requested. The adjudication facility will also forward the individual's adjudicative record within 2 calendar days to the appropriate PSAB for direct appeals or to DOHA if a personal appearance is requested. The adjudicative record will contain all of the materials the adjudication facility relied upon to render its determination as well as the LOI, SOR, LOD or LOR, The commander's recommendation, and any rebuttal materials the individual provided in response to the LOI/SOR.

(e) If a decision is made to appeal the LOD or LOR, individuals may do so by:

1. Written appeal directly to the applicable DoD Component PSAB. Individuals must, within 30 calendar days of receipt of a LOD or LOR, write to the applicable DoD Component PSAB stating reasons why the denial or revocation should be overturned and provide any additional relevant information that may have a bearing on the case. The appeal and supporting documentation will be transmitted to the DoD Component PSAB via the individual's security office. The DoD Component PSAB president or designee may grant a 30 calendar day extension of time for good cause demonstrated by the appellants (e.g., illness or death in the family, deployment).

2. Appendix 7B to this manual explains the personal appearance process before a DOHA AJ.

3. (Added) (AF) The individual will provide written appeal and available information to the servicing Information Protection Office. (T-1). The servicing IPO will then forward the written appeal and supporting materials by email to usaf.pentagon.saf-mr.mbx.saf-mrbs@mail.mil or by mail to SAF/MRBS, 1500 West Perimeter Road, Suite 3700, Joint Base Andrews, MD 20762-7002.

(6) Provided a Final Written Decision by the DoD Component PSAB. The DoD Component PSAB will review the adjudicative file and any appeal materials (including the DOHA AJ recommendation, if applicable), and render a final decision. If the DoD Component PSAB agrees with the AJ's written recommendation, the DoD Component PSAB may adopt the AJ's written recommendation in lieu of providing a DoD Component PSAB written determination. The individual will be notified of the DoD Component PSAB's final determination via the subject's security professional, generally within 45 calendar days of the receipt of a direct appeal or 30 calendar days from receipt of the AJ recommendation. The DoD Component PSAB's written decision will identify each adjudicative guideline issue stated in the LOD or LOR that formed the basis of the denial or revocation that remains unmitigated after the appeal and the rationale for the final disposition of the appeal.

(7) New Information Considered by the DoD Component PSAB. Should the president of the DoD Component PSAB determine that information not contained in the adjudicative record or the appeal material is needed to render a final determination (e.g., updated credit bureau report, information from the command) such information must be provided to the individual, who then must be provided a reasonable period of time to offer any rebuttal to this information, before it being considered by the DoD Component PSAB.

b. The head of the local organization of the individual receiving a SOR and LOI will designate a POC to serve as a liaison between the adjudication facility and the individual. The duties of the POC will include, but are not limited to:

(1) Delivering the SOR and LOI and having the individual acknowledge receipt of the SOR and LOI. POCs and a witness will document the delivery if the individual refuses acknowledgement.

(2) Determining whether the individual intends to respond within the time specified and reporting this information to the adjudication facility.

(3) Explaining the consequences of the proposed action and the need to respond in a timely fashion.

(4) Explaining how to obtain time extensions.

(5) Explaining how to obtain copies of investigative records.

(6) Explaining the procedures for responding to the SORs.

(7) Explaining individuals' entitlement to obtain legal counsel or other assistance at their own expense within the relevant time periods.

(8) (Added) (AF) The servicing IPO will serve as a liaison between the individual, the DoD CAF and the Personnel Security Appeal Board, as applicable, when unfavorable administrative actions are being taken concerning individuals under their jurisdiction. (T-1).

10.5. RECORDING FINAL DETERMINATINOS. DoD Component PSABs will provide electronic copies of all final decisions to the adjudication facility that made the initial unfavorable determination. The adjudication facility will update JPAS within 2 calendar days to reflect current eligibility and append the DoD Component PSAB decision to the individuals' adjudicative records.

10.6. RECONSIDERATION. Commanders may request reconsideration of unfavorable national security determinations for individuals within their command to address specific mission needs after the passage of 1 year following a denial or revocation. The year is counted from the date of the denial or revocation decision by the consolidated adjudication facility; or, if the individual elected to appeal, 1 year from the date of the final appeal determination. Individuals who terminate their affiliation with DoD for 24 months or more after a unfavorable national security determination are not subject to the reconsideration process. When attempting to re-affiliate with DoD these individuals will be submitted for a new investigation.

a. DoD Components' requests for reconsideration will be examined only when forwarded and recommended by officials of the employing Component.

(1) (Added) (AF) The commander through the servicing IPO must be provide written documentation for reconsideration to the DoD CAF. (T-0).

b. Not all cases meet the test for reconsideration, and passage of time alone is not a sufficient criterion. Occasionally, the issues in a case will be so recent or serious that a longer time may be appropriate to resolve the issues or to establish an affirmative track record to minimize the probability of recurrence.

c. If a denial or revocation is based on significant derogatory information that has been reported to a CI or law enforcement authority, the DoD CAF should consult with the CI or law enforcement authority before reconsideration to ensure it has all relevant information.

d. The requirements for DoD Component requests for reconsideration are:

(1) The individual's eligibility has been denied or revoked for at least 1 year. The year is counted from the date of the denial or revocation decision by the adjudication facility, or, if the individual elected to appeal, 1 year from the date of the final appeal determination.

(a) When 2 years or more have passed, the DoD Component will determine what checks or investigations are required to support the reconsideration.

(b) A new national security investigation must be conducted by the ISP and the report of investigation adjudicated to determine if eligibility will be granted when there has been a 2-year break in service or the last investigation is out of scope.

(2) Cases will not be resubmitted or reassessed solely based on an individual's personal desire to acquire eligibility. Reconsideration is not a personal right or entitlement.

(3) DoD Component requests for reconsideration must be made to the adjudication facility from security office(s) and must meet an operational need of the DoD Component. The individual must be selected or tentatively selected for a national security position. Requests for reconsideration will include explicit statements of DoD Component support.

(4) Security offices will ensure DoD Component requests for reconsideration are complete. The request must include evidence that the issues which caused the denial or revocation have been resolved.

(5) Once security offices submit their DoD Components' request for reconsideration, no supplemental information will be accepted or considered unless requested by the adjudication facility. Information requested by the adjudication facility will be submitted within the time specified by the adjudication facility.

(6) A DoD Component's request for reconsideration does not reopen or otherwise affect the denial or revocation decision.

e. Commands seeking reconsideration are responsible for providing documentation that the circumstances or conditions that resulted in the final adverse eligibility determination have been rectified or sufficiently mitigated to warrant reconsideration, which will be forwarded to the adjudication facility by the DoD Component.

f. The adjudication facility has the authority to grant or deny the reconsideration based on a review of the DoD Component documentation to determine the extent to which circumstances or conditions have been rectified or sufficiently mitigated.

g. When a reconsideration determination is denied, the adjudication facility will provide notification through the command to the DoD Component in writing, generally within 30 days from receipt of request for reconsideration.

h. JPAS will be annotated accordingly.

i. No due process is afforded for denial of a DoD Component's request for reconsideration.

j. Commands may determine the submission of a new background investigation is merited rather than a request for reconsideration.

k. For reconsideration cases involving NISP contractor personnel, see DoDD 5220.6.

10.7. REINSTATEMENT OF CIVILIAN EMPLOYEES. A DoD civilian whose employment was terminated based on the denial or revocation of national security eligibility will not be reinstated, restored to duty, or reemployed in a sensitive or national security position in the DoD unless the Secretary of Defense or the employee's DoD Component head finds that doing so is clearly consistent with the interests of national security. That finding must be made part of the personnel security record.

APPENDIX 10A: PSAB STRUCTURE AND FUNCTIONING

PSAB panels will be structured and function to meet these requirements:

a. The PSAB will include a president and two members.

(1) The PSAB president will be a DoD military member or civilian at a minimum grade of O-6 or general schedule/general grade-15 or equivalent. There will be no more than one security specialist on the PSAB.

(2) Board members will be of a minimum grade of O-5 or general schedule / general grade-14 or equivalent.

(3) At least one board member will be equivalent or senior in grade to the appellant.

(4) One board member may be an attorney, unless the board has access to legal counsel.

(5) Officials from the adjudication facility will not serve as a member of the PSAB.

(6) (Added) (AF) The Assistant Secretary of the Air Force, Manpower & Reserve Affairs (SAF/MR) has oversight of the Personnel Security Appeal Board (PSAB). (T-1).

(7) (Added) (AF) All PSAB members will be appointed by the Director, Air Force Review Boards Agency. (T-1). The PSAB President must a permanent member of the board.

(8) (Added) (AF) The PSAB President executes board responsibilities IAW this manual. The PSAB President should have a thorough knowledge and experience in the field of personnel security. (T-1).

(9) (Added) (AF) The PSAB President will ensure all members are briefed on and familiar with the personnel security clearance eligibility process. Access to medical personnel will also be made available on the board, if necessary. (T-1).

(10) (Added) (AF) Board members, both primary and collateral, and administrative support staff will require a current and favorably adjudicated T5 or equivalent investigation. (T-0).

(11) (Added) (AF) The PSAB President will ensure all appeal case files to include case summary (if available) received from the DoD CAF are forwarded to all board members. (T-0).

b. The PSAB will:

(1) Process appeals in a first in, first out basis.

(2) Process appeals with appearances before DOHA within 30 calendar days of receipt of the recommendation of the AJ.

(3) Process direct appeals within 45 calendar days of receipt.

(4) Require each board member review each appeal received independently and conduct a de novo review of each of the unmitigated adjudicative guideline issues that were stated in the LOD or LOR.

(5) Not communicate with officials from the adjudication facility concerning case merits. However, in cases where the PSAB identifies relevant information that was available during the DoD CAF adjudication process but was not considered by the DoD CAF, the PSAB president may remand the case back to the DoD CAF and request appropriate action.

(6) Require all board members to participate in the discussion of the merits of each appeal and cast an independent vote on whether to affirm or overturn the unmitigated adjudicative guideline issues stated in the LOD or LOR. Appeals will be decided by majority vote.

(7) Conclude the appeal process with issuing the majority PSAB determination which will be final.

(8) Notify appellants in writing of the PSAB's final determination and supporting rationale through command channels

(9) (Added) (AF) Maintain a redacted file of decision memoranda which will be subject to review IAW the DoDM 5400.7_AFMAN 33-302, *Freedom of Information Act Program*. (T-0).

APPENDIX 10B: PERSONAL APPEARANCES BEFORE DOHA

10B.1. The adjudication facility will provide DOHA with a copy of appeal through personal appearance NOIAs and the individual's adjudicative record within 2 calendar days of receipt of the NOIA via the CATS portal.

10B.2. The DOHA will assign the case to an AJ within 2 work days of receipt of the NOIA.

10B.3. The AJ will schedule a personal appearance (generally within 30 calendar days from receipt of the request), and arrange for the production of a verbatim transcript of the proceedings.

10B.4. For appellants at duty stations within the contiguous United States, personal appearances may be conducted at a DOHA site, at an appellant's duty station, a nearby suitable location, or via video teleconference (VTC). For individuals assigned to duty stations outside the 48 contiguous states, personal appearances generally will be conducted via VTC using a suitable location at or near the appellant's duty station.

10B.5. Any travel costs for appellants to appear in person at a DOHA location or at a duty station near their location will be the responsibility of the employing organization, if the employer cannot provide means for VTC from the appellant's location.

10B.6. AJs will conduct proceedings in a fair and orderly manner.

10B.7. Appellants may:

a. Be represented by counsel or personal representative at their own expense.

b. Make oral presentations, and respond to questions posed by counsel or personal representative. Appellants must also respond to questions asked by the AJs or DOHA counsel.

10B.8. The appellant and DOHA counsel may:

a. Submit documents relative to whether the LOD or LOR should be overturned.

b. Present or cross-examine witnesses.

10B.9. Witnesses will appear at no cost to the government.

10B.10. Witnesses may address matters relevant to the establishment, refutation, extenuation, or mitigation of the facts alleged in the SOR.

10B.11. Neither appellants nor the AJs may challenge the official U.S. Government characterization of the nature of any country, organization, or individual other than the individual or the individual's witnesses.

10B.12. The DOHA AJ will conduct a de novo review of the unmitigated adjudicative guideline issues stated in the LOD or LOR and issue, generally within 30 calendar days of the close of the record, written recommendations to the appropriate PSAB whether to sustain or overturn the denial or revocation. DOHA's recommendations will set forth pertinent findings of fact, policies, and conclusions as to the unmitigated adjudicative guideline issues stated in the LOD or LOR and whether it is clearly consistent with the national security interests of the United States to grant or deny the appellant's national security eligibility. DOHA's recommendation along with the adjudicative file and any documents submitted by the appellant will be forwarded to the appropriate PSAB via the CATS portal.

10B.13. DOHA will provide the DoD Component PSAB with a weekly status update for all cases that exceed 30 calendar days. The update will include the name of the appellant, the case number, the date of the personal appearance hearing, the date the record will close, and the projected date the AJ recommendation will be finalized.

SECTION 11: CE AND REPORTING REQUIREMENTS

11.1. GENERAL.

a. Personnel security determinations assess whether an individual can be trusted to protect national security. It is impossible to establish with certainty, based on an eligibility determination that human beings will continue to behave in ways to retain such trust. Accordingly, a favorable national security eligibility determination is but one facet of an effective personnel security program.

b. CE is the periodic reviewing of the individual's background to determine whether they continue to meet the requirements for national security eligibility. DoDI 5200.02 requires all personnel in national security positions will be subject to CE.

(1) (Added) (AF) The DoD Continuous Evaluation (CE) program consists of randomly selected Airmen that have current Top Secret or Secret eligibility and are continuously evaluated to determine if they meet the requirements to have a security clearance. CE uses technology to conduct automated records checks (ARC) to identify potential derogatory information that indicates a personnel security concern. Potential derogatory information or alerts discovered during the ARC will be compiled into a report.

(2) (Added) (AF) The servicing IPO will forward the report received from the CE program to the commander for action and review. (T-1). The commander, in collaboration with the servicing IPO will ensure the incident report is submitted in JPAS (or successor system) and will forward supporting information to DoD CAF for review within 30 days. (T-1). An extension may be submitted to DoD CAF through JPAS (or successor system).

(3) (Added) (AF) The commander will follow the guidance in this manual if a determination is made that an individual's security clearance should be locally suspended and an incident report is warranted. (T-1).

(4) (Added) (AF) The commander will consider inviting the servicing IPO personnel to attend the installation "Cops and Robbers", "Justice Update" or equivalent meetings.

(5) (Added) (AF) The commander will provide police blotters, drug test results, court martial results or derogatory security concerns to the servicing IPO, which may impact an individual's security clearance eligibility. (T-1).

(6) (Added) (AF) The commander, in collaboration with the servicing IPO, will take appropriate actions to report any derogatory information in JPAS (or successor system) to the Department of Defense Consolidated Adjudications Facility. (T-0). Coordination with appropriate authorities (e.g. Air Force Office of Special Investigations, Security Forces etc.) may be necessary to ensure it does not hinder an ongoing investigation.

c. DoD Components must continuously assess those employees with favorable national security determinations to ensure they can continue to be trusted to protect national security.

Organizational commanders or managers, supervisors, co-workers, and individuals with favorable national security eligibility determinations have a personal responsibility to expeditiously report behaviors they observe or commit that cause a security concern, such as:

(1) Any incident or behavior identified in the August 30, 2006 USD(I) Memorandum; Intelligence Community Policy Guidance Number 704.1; and DoD 5220.22-R will be reported first to the supervisor, security professional, or commander. This includes, but is not limited to, reporting of investigations of government travel card misuse, abuse, or fraud.

(2) A crime will be reported to a law enforcement authority.

(3) An incident or behavior will be reported to the MDCO in accordance with DoDD 5240.06.

(4) Information that suggests an individual may have an emotional, mental, or personality condition that can impair judgment, reliability, or trustworthiness will be reported to the supporting adjudication facility. Such information may include, but is not limited to:

(a) A known history of a mental disorder.

(1.) (Added) (AF) AF will consider the above only if it has impaired the individual's judgement or reliability.

(b) A report that an individual has sought treatment for a mental, emotional, or substance abuse condition (commensurate with any reporting limitations of Section 21 on the SF86).

(1.) (Added) (AF) AF will consider the above only if it has impaired the individual's judgement or reliability.

(c) Direct and indirect threats of violence.

(d) Physical altercations, assaults, or significant destruction of U.S. Government property.

(e) An abrupt and significant change in an individual's appearance or behavior suggesting impaired judgment or stability (e.g., deteriorating physical appearance or self-care, social withdrawal).

(f) Signs of substance use or intoxication on the job.

(g) An indication of substance abuse after completion of treatment.

(h) Evidence of alcohol or drug related behavior outside the workplace (e.g., driving under the influence, public intoxication charges).

(i) Suicide threats, attempts, or gestures or actions.

(j) Any other behaviors which appear to be abnormal and indicate impaired judgment, reliability, or maturity.

d. Reporting requirements for contractors are established in DoD 5220.22-M.

11.2. CE RESPONSIBILITIES.

a. Commanders, DoD Component Heads, Directors, Supervisors, and Security Professionals' Responsibilities. Supervisors, managers, and security professionals play a critical role in assuring the success of the CE program. The goal of CE is timely detection and reporting of potential issue information.(1) Commanders, DoD Component heads, and directors of organizations will ensure that:

(a) Personnel assigned to sensitive duties receive initial security briefing and annual refresher briefings on the national security implications of their duties and their individual responsibilities. These briefings will emphasize the individuals' responsibility to meet the standards and criteria for security eligibility as stated in the December 29, 2005 White House Memorandum and Intelligence Community Policy Guidance 704.2.

(b) Personnel in national security or sensitive positions are provided with information about available programs (e.g., employee assistance) designed to help employees address questions or concerns regarding issues that may affect their ability to remain eligible for access to classified or assignment to sensitive positions.

(c) Unfavorable information (e.g. government travel card misuse, abuse, or fraud and administrative or disciplinary action taken as a result of management review or investigation) is reported to the appropriate security, law enforcement, or CI professionals for appropriate action. Upon coordination with CI and law enforcement professionals as necessary, unless directed otherwise by the supporting CI professional, the incident report will be forwarded to the adjudication facility via JPAS. Local commanders may suspend access to classified information or assignment to sensitive duties if they believe the behavior causes doubts about whether the individual's continued access is in the best interest of national security. Access to classified information or assignment to sensitive duties may be restored following the supporting adjudication facility's favorable national security determination. However, if issues have not been resolved within 20 calendar days, action must be taken in accordance with Section 3 of this manual. When the unfavorable information relates to a contractor employee, the USD(I) and the Director, DSS have the authority to take interim suspension action in accordance with DoDD 5220.6, DoD 5220.22-R, and the May 13, 2009 USD(I) Memorandum.

1. (Added) (AF) The commander or AF government charge card program coordinators will immediately report government charge card abuses and misuses to the servicing IPO. (T-1). This information raises questions about an individual's ability or intent to protect classified information and execute sensitive duties.

2. (Added) (AF) The commander will ensure an incident report is submitted in Joint Personnel Adjudication System (JPAS) (or successor system) for government travel card misuse, abuse or fraud. (T-1).

(d) Supervisory personnel are informed of their personnel security responsibilities and provided guidance on indications of potential personnel security concerns and procedures to follow to report them in a timely manner. Programs will include:

1. Training and continuous education on reportable behaviors.

2. Procedures for immediate reporting of derogatory information (e.g. government travel card misuse, abuse, or fraud and associated investigations and administrative or disciplinary action taken) through appropriate channels to the appropriate adjudication facility.

3. Outreach to inform personnel of programs to address behavior(s) that may affect their continued eligibility for access to classified information or assignment to a sensitive position.

(e) Reporting by health care professionals regarding military personnel is subject to the limitation required by DoDI 6490.08.

(2) Supervisors will:

(a) Continuously evaluate individuals with national security eligibility to determine if they continue to be trustworthy in accordance with the security standards in the adjudicative guidelines enumerated in the December 29, 2005 White House Memorandum and Intelligence Community Policy Guidance 704.2, or successor documents, as appropriate.

(b) Report any derogatory information that falls within the adjudicative guidelines (e.g. government travel card misuse, abuse or fraud) to their cognizant security professional or commander. Failure to report derogatory information may trigger an adverse security action in accordance with Paragraph 11.2.b.

(c) Ensure the discharge of security responsibilities is included in personnel performance evaluations, pursuant to Section 552a of Title 5, U.S.C. and in accordance with applicable DoD Component guidance.

(3) Security professionals, at the direction of the commander, will:

(a) Report unfavorable information meeting the reportable behavior guidelines contained in the Appendix 5A to the supporting adjudication facility, law enforcement, or CI supporting activity. When authorized, forward the report to the adjudication facility via JPAS or the CATS Portal, as appropriate.

(b) Provide the following details for all security incidents or issues of a security concern (to the extent available):

1. Nature and seriousness of the conduct.

2. Circumstances surrounding the conduct.

3. The frequency and recency of the conduct.

4. The age of the individual at the time of the conduct.

5. The voluntariness or willfulness of the individual's participation or conduct.

6. The knowledge the individual had of the consequences involved.

7. The motivation for the conduct.

8. How the command became aware of the information.

9. Actions the individual has taken to correct the issue, including medical treatment, counseling, lifestyle changes, or other corrective actions.

10. The stability of the individual's lifestyle or work performance, including demonstrative examples.

11. Cooperation on the part of the individual in following medical or legal advice or assisting in command efforts to resolve the security issue.

12. A command recommendation to the supporting adjudication facility with a copy of that recommendation to the individual on whether to retain an individual's eligibility pending the conclusion of a national security investigation or when rendering a final determination.

(c) Report unfavorable information that becomes available concerning cleared NISP contractor personnel to the DoD CAF, DSS, and to the contractor facility security officer.

(d) (Added) (AF) The servicing IPO will contact the Defense Security Service (DSS) to ensure the contractor facility security officer (FSO) has submitted an incident report for security issues that meet the National Security Adjudicative Guidelines. Coordination with appropriate authorities (e.g., Air Force Office of Special Investigations, Security Forces, etc.) may be necessary to ensure it does not hinder or compromise an ongoing investigation.

b. Employee Responsibilities. All employees are obligated to advise the appropriate authorities or officials when they become aware of any information, behavior, or conditions that may pose a security concern, or that raise doubts whether a co-worker's eligibility or access to classified information or assignment to sensitive duties is consistent with national security. If it is proven that an employee failed to report facts about a co-worker, an adverse national security eligibility action may be initiated against the employee who failed to report it.

c. Individual Responsibilities. Personnel should familiarize themselves with pertinent security regulations that pertain to their assigned duties. Further, they should be aware of the standards of conduct required of persons with national security eligibility as well as the security requirements of those positions. They should recognize and avoid the kind of personal behavior (i.e. government travel card misuse, abuse, or fraud) that would render them ineligible for

continued access to classified information or assignment to sensitive positions. In the final analysis, the ultimate responsibility for maintaining continued national security eligibility rests with the individuals. Personnel having access to classified information will:(1) Protect classified information in their custody from unauthorized disclosure.

(2) Be aware of and comply with PR, CE, and reporting requirements.

(3) (Added) (AF) Report information to the immediate commander and/or servicing IPO that may impact an individual's security clearance. (T-0)

11.3. ADDITIONAL REPORTING REQUIREMENTS FOR INDIVIDUALS WITH ACCESS TO SCI INFORMATION. Individuals with access to SCI information will comply with reporting requirements identified in Volume 3 of DoDM 5105.21.

11.4. FINANCIAL DISCLOSURE. Individuals who have been identified by their respective DoD Component head must file with their respective DoD Component a financial disclosure report in accordance with Section 1.3(a) of E.O. 12968.

a. Financial disclosure information will be reported using SF 714, "Financial Disclosure Report," or an equivalent form approved by the SecEA.

b. Failure to submit required financial information may result in the withdrawal of access to classified information.

11.5. POST-ADJUDICATION ISSUES. Upon receipt of a report of adverse information from any source, an adjudicator will evaluate the report and determine whether post-adjudicative actions are required. If the adjudicator's review determines the reported information is not adequate or detailed enough to make an eligibility determination, the adjudicator may employ authorized means (e.g., requests for special investigations, interrogatories, contacts with subjects and employers, requests for information from security professionals, requests for medical or psychological evaluation, and record searches) to obtain additional information to make an eligibility determination.

SECTION 12: EDUCATION, TRAINING, AND PROFESSIONAL CERTIFICATION

12.1. EDUCATION AND TRAINING REQUIREMENTS.

a. General. Training on security responsibilities is an integral part of the DoD PSP and is essential to its efficient functioning.

b. Education and Training Programs.

(1) Security education and training programs are required for DoD security professionals and other personnel performing security duties on the procedures necessary to protect information and on the personnel security process. Training topics include: JPAS and e-QIP, orientation, indoctrination, initial briefings, refresher briefings, debriefings, termination briefings, travel briefings, foreign contact briefings, and intelligence threat briefings.

(2) For assistance in meeting security education and training program requirements, visit the DSS Center for Development of Security Excellence (CDSE) website at http://www.cdse.edu. The CDSE website includes personnel security courses, job aids, reference guides, and webinars addressing the security clearance process, JPAS, e-QIP, and various "security shorts."

(3) (Added) (AF) Security Education, Training and Awareness (SETA) is required for the Air Force Personnel Security Program (PSP). Personnel assigned in the Information Protection Office must follow the training requirements prescribed in AFI 16-1404, *Air Force Information Security Program*. (T-1).

(4) (Added) (AF) The MAJCOM IPO will facilitate and/or identify security education and training covering personnel security responsibilities and requirements within areas of responsibility. (T-1).

(5) (Added) (AF) The servicing IPO may also develop additional curricula and training for individuals in personnel security positions.

c. Initial Briefing. All personnel with national security eligibility will be given an initial security briefing that is compliant with the requirements of E.O. 12968; Volume 3 of DoDM 5200.01; and the February 9, 1999 Office of the Assistant Secretary of Defense, Command, Control, Communications and Intelligence Memorandum, before gaining access to classified information. All individuals will execute the appropriate nondisclosure forms in accordance with Section 552 of Title 5, U.S.C. If individuals decline to execute the nondisclosure forms, the DoD Component will withhold classified access and report the refusal to the adjudication facility. DoD Components will maintain records of all initial briefings.

(1) (Added) (AF) The commander or designee will ensure the individual receives initial orientation training as prescribed in AFI 16-1404, *Air Force Information Security Program*. (T-1).

d. Refresher Briefing. Personnel with national security eligibility will receive annual refresher security training in accordance with DoDM 5200.01. Security education should be on a continuing basis, taking into account each person's duties, experience, and past conduct involving the protection of classified or sensitive information. DoD Components will maintain records of all refresher training conducted.

(1) (Added) (AF) The commander or designee will ensure the individual receives annual refresher training as prescribed in AFI 16-1404, *Air Force Information Security Program*. (T-1).

e. Insider Threat Briefing. Insider threat awareness will be incorporated into security training in accordance with DoDD 5240.06 and DoDI 5240.26.

f. Termination Briefing.

(1) Service members, federal civilian employees, and contract employees will be given a termination briefing in accordance with DoDM 5200.01 upon termination of employment, withdrawal of national security eligibility, or other absence that excludes an individual from CE authorizations and will complete a security termination statement or, for SCI access, the Security Debriefing Acknowledgement and Debrief blocks on the reverse of DD Form 4414, "Sensitive Compartmented Information Nondisclosure Agreement" found at http://www.dtic.mil/whs/directives/forms/index.htm.

(a) (Added) (AF) The commander will complete a security termination statement when access is no longer required as prescribed in AFI 16-1404, *Air Force Information Security Program*. (T-1).

(2) When an individual refuses to execute a General Services Administration Form 3162, "Security Termination Statement," every effort will be made to debrief the individual orally. Report the refusal to sign immediately to the security professional of the cognizant organization, to the supporting adjudication facility, and record in JPAS.

(3) When individuals are unable to execute a Security Termination Statement (e.g., death, incapacitation, could not be located), make a notation reflecting the individual's status on the Security Termination Statement, report to the supporting adjudication facility, and record in JPAS.

12.2. APC PROGRAM.

a. The DoD objective is to ensure all DoD personnel security adjudicators are trained, fully qualified, and certified to perform their critical duties as prescribed in the January 28, 2014USD(I) Memorandum.

b. The APC Program will certify DoD and DoD IC personnel security adjudicators have demonstrated mastery of essential adjudicative competencies related to determining the national

security eligibility of a government employee, Service member, defense contractor employee, or other affiliated person.

c. Adjudicators will be certified to perform all adjudicative functions except due process determinations, as detailed in Section7 of this manual. If adjudicators are required to make due process determinations, an additional due process credential is required before performing the function.

d. DoD CAF and DoD IC central adjudication facilities directors experiencing a critical shortage of certified adjudicators may request approval of a risk management plan for non-certified adjudicators to perform final adjudications before certification, pursuant to requirements contained in the April 10, 2009 USD(I) Memorandum. The risk management plan must be endorsed by the adjudication facility Component head and approved by OUSD(I) Security Policy and Oversight Director before implementation.

e. Information on the APC governance, organization, eligibility, and requirements for certification maintenance may be reviewed at the DSS CDSE website, available at http://www.cdse.edu/.

12.3. (ADDED) (AF) SECURITY FUNDAMENTALS PROFESSIONAL CERTIFICATION.

a. (Added) (AF) The Security Fundamentals Professional Certification (SFPC) is required for personnel assigned to position performing security work as a primary duty (50 percent or more), as defined by the OPM's Security Administration (Occupational Series 0080). See AFI 36-2645, *Security Professional Certification and Development*, for additional information. (T-1).

GLOSSARY

G.1. ACRONYMS.

AJ	administrative judge
ANACI	Access National Agency Check and Inquiries
APC	Adjudicator Professional Certification
ACR (Added) (AF)	**authorization change request**
ARC (Added) (AF)	**automated records check**
AF (Added) (AF)	**Air Force**
AFI (Added) (AF)	**Air Force instruction**
AFMAN (Added) (AF)	**Air Force manual**
AFOSI (Added) (AF)	**Air Force Office of Special Investigations**
AUB (Added) (AF)	**agency use block**
CATS	Case Adjudication Tracking System
CD (Added) (AF)	**deputy commander**
CDSE	Center for Development of Security Excellence
CE	continuous evaluation
CI	counterintelligence
COMSEC	communications security
CONUS (Added) (AF)	Continental United States
CSA	cognizant security agency
CSO (Added) (AF)	**cognizant security office**
CSR (Added) (AF)	**customer service request**
CVS (Added) (AF)	**central verification system**
DCMO	Deputy Chief Management Officer of the Department of Defense
DDI(I&S)	Director of Defense Intelligence for Intelligence and Security
DIA	Defense Intelligence Agency
DIRNSA/CHCSS	Director, National Security Agency/Chief, Central Security Service
DISS (Added) (AF)	**Defense Information System for Security**
DNI	Director of National Intelligence
DoD CAF	DoD Consolidated Adjudications Facility
DoDD	DoD directive
DoDHRA	DoD Human Resources Activity
DoDI	DoD instruction
DoDM	DoD manual
DOE	Department of Energy
DOHA	Defense Office of Hearings and Appeals
DOS	Department of State

DRU (Added) (AF)	**direct reporting unit**
DS (Added) (AF)	**Director of Staff**
DSS	Defense Security Service
E.O.	Executive order
e-adjudication	electronic adjudication
e-application	electronic application
EPRM (Added) (AF)	**Enterprise Protection Risk Management**
e-QIP	electronic questionnaire for investigations processing
e-APP (Added) (AF)	**electronic application**
FBI	Federal Bureau of Investigation
FIS	Federal Investigative Standards
FOUO (Added) (AF)	**for official use only**
GO/FO	general or flag officer
GC DoD	General Counsel Department of Defense
HQ USAF (Added) (AF)	**Headquarters, United States Air Force**
IC	Intelligence Community
IPA (Added) (AF)	**Intergovernmental Personnel Act**
IRR (Added) (AF)	**Individual Ready Reserve**
ISP	investigative service provider
JPAS	Joint Personnel Adjudication System
LAA	limited access authorization
LOD	letter of denial
LOI	letter of intent
LOR	letter of revocation
MAJCOM (Added) (AF)	**major command**
MPES (Added) (AF)	**Manpower Programming and Execution System**
MDCO	Military Department CI organizations
NACLC	National Agency Check with Law and Credit
NATO	North Atlantic Treaty Organization
NGA	National Geospatial-Intelligence Agency
NISP	National Industrial Security Program
NOIA	notice of intent to appeal

NR (Added) (AF)	**North Atlantic Treaty Organization Restricted**
NS (Added) (AF)	**North Atlantic Treaty Organization Secret**
NRO	National Reconnaissance Office
OMB (Added) (AF)	**Office of Management and Budget**
OPM	U.S. Office of Personnel Management
OPR (Added) (AF)	**office of primary responsibility**
OUSD(I)	Office of the Under Secretary of Defense for Intelligence
PCS (Added) (AF)	**permanent change of station**
POC	point of contact
PPR	phased periodic reinvestigation
PR	periodic reinvestigation
PSAB	Personnel Security Appeal Board
PSI	personnel security investigation
PSP	personnel security program
RD	restricted data
RFA (Added) (AF)	**request for action**
SAP	special access program
SAR (Added) (AF)	**security access requirement**
SCI	sensitive compartmented information
SEAD (Added) (AF)	**Security Executive Agent Directive**
SETA	**Security Education, Training and Awareness**
SecAF (Added) (AF)	**Secretary of the Air Force**
SecEA	Security Executive Agent
SES (Added) (AF)	**senior executive service**
SIF (Added) (AF)	**Security information file**
SIO (Added) (AF)	**senior intelligence officer**
SF	standard form
SOI	security office indicator
SON	submitting office number
SOR	statement of reasons
SORN	system of record notice
SPēD	Security Professional Education Development Program
SPO (Added) (AF)	**Special Access Program personnel security officer**
SSBI	Single Scope Background Investigation
SSBI-PR	Single Scope Background Investigation – Periodic Reinvestigation
SSN (Added) (AF)	**social security number**
SSO (Added) (AF)	**special security officer**

TDY (Added) (AF)	**temporary duty**
T1 (Added) (AF)	**Tier 1 (low risk, public trust investigation)**
T2 (Added) (AF)	**Tier 2 (moderate risk, public trust investigation)**
T3 (Added) (AF)	**Tier 3 (non-critical sensitive investigation)**
T4 (Added) (AF)	**Tier 4 (high risk, public trust investigation)**
T5 (Added) (AF)	**Tier 5 (critical-sensitive or special sensitive investigation)**
TS	Top Secret
U.S.C.	United States Code
USCIS	United States Citizenship and Immigration Service
USD (A&S) (Added) (AF)	**Under Secretary of Defense for Acquisition and Sustainment**
USD(AT&L)	Under Secretary of Defense for Acquisition, Technology, and Logistics
USD(I)	Under Secretary of Defense for Intelligence
USD(P&R)	Under Secretary of Defense for Personnel and Readiness
USD (R&E) (Added) (AF)	**Under Secretary of Defense for Research and Engineering**
USO	United Service Organizations
VEC (Added) (AF)	**Voluntary Emeritus Corps**
VTC	video teleconference
WHS	Washington Headquarters Services
WWSIIP	Wounded Warrior Security and Intelligence Internship Program

G.2. DEFINITIONS. Unless otherwise noted, these terms and their definitions are for the purpose of this issuance.

access. The ability and opportunity to obtain knowledge of national security information. An individual may have access to national security information by being in a place where such information is kept, if the security measures that are in force do not prevent the individual from gaining knowledge of such information.

adjudication. Defined in E.O. 13467.

adjudicative guidelines. Guidelines established for determining eligibility for access to classified information.

adjudicator authority. Adjudicators with the authority to grant, suspend, deny, or revoke SCI eligibility concurrently grant, suspend, deny, or revoke associated collateral eligibility unless the

collateral is held by the individual's own organization. Adjudicators with the authority to grant, suspend, deny, or revoke TS eligibility concurrently grant, suspend, deny, or revoke Secret and Confidential eligibility.

adjudication facility. A facility with assigned adjudicators certified to evaluate PSIs and other relevant information to determine if granting or continuing national security eligibility is clearly consistent with the interests of national security. The DoD consolidated adjudications facility is known as the DoD CAF.

agency. Defined in DoDM 5200.22.

(Added) (AF) Air Force Security Enterprise. Organizations, infrastructure, and measures (to include policies, processes, procedures, and products) in place to safeguard AF personnel, information, operations, resources, technologies, facilities, and assets against harm, loss, or hostile acts and influences.

(Added) (AF) Authorized Requestor. Organizations authorized to submit Personnel Security Investigations to the Investigation Service Provider.

(Added) (AF) Automated Record Checks. A method for requesting, collecting, and validating electronically accessible and relevant adjudicative relevant data using the most efficient and cost-effective technology and means available.

(Added) (AF) Break in Service. Any break in active employment with a Federal agency or DoD contractor, including suspension or termination of service or temporary retirement, whether or not seniority or pay is affected. A 24-month continuous break in service invalidates an individual's security clearance eligibility and requires completion of a new personnel security investigation prior to reissuance of security clearance eligibility or interim access.

calendar day. Monday through Sunday.

CATS. The DoD system of record for non-IC agencies case management and adjudications.

(Added) (AF) Catch 'em in CONUS. The investigation service provider (ISP)'s program to facilitate completion of the personal interviews prior to a permanent change of station, temporary duty or upon return from overseas deployment. The submitter must provide the individual's contact information and date of availability to the ISP.

CE. Defined in DoDM 5200.22.

CI. Information gathered and activities conducted to identify, deceive, exploit, disrupt, or protect against espionage, other intelligence activities, sabotage, or assassinations conducted for or on behalf of foreign powers, organizations, or persons, or their agents, or international terrorist organizations or activities.

classified information. Defined in E.O. 13467 .

cohabitant. A person with whom an individual resides and shares bonds of affection, obligation, or other commitment, as opposed to a person with whom an individual resides for reasons for convenience (e.g., a roommate).

collateral eligibility. TS, Secret, or Confidential levels of eligibility.

commander. Heads of DoD Components, Defense Agencies, DoD Field Activities, and all other entities within the DoD headed by personnel specifically assigned to command positions within organizations.

conclusive. Serving to settle or decide a question; decisive; convincing. The decision cannot be appealed to a higher authority.

condition. See "exception."

contractor. Defined in E.O. 13467.

controlled substance. Any drug, material, or other chemical compound identified and listed in DNI Memorandum ES 2014-00674.

controlled unclassified information. Defined in DoDM 5200.01.

current. An investigation that is no more than 5 years old. If JPAS reflects an open investigation, or a pending adjudication not more than 1 year beyond the 5 year anniversary date, the investigation is considered current.

CSA. Defined in DoD 5220.22-M.

damage to the national security. Harm to the national defense or foreign relations of the United States from the unauthorized disclosure of information, taking into consideration such aspects of the information as the sensitivity, value, utility, and provenance of that information, or other breach of security responsibilities by personnel serving in national security positions.

derogatory information. Information that reflects on the integrity or character of an individual, or circumstances that suggests that their ability to safeguard national security information may be impaired, that their access to classified or sensitive information clearly may not be in the best interest of national security, or that their activity may be in conflict with the personnel security standards or adjudicative guidelines.

deviation. See "exception."

due process. An established administrative process designed to ensure the fair and impartial adjudication of facts and circumstances when an unfavorable national security eligibility determination is being considered. The process is offered to individuals before a final unfavorable determination of national security eligibility is made.

eligibility determination. The decision to grant eligibility for access to classified information or performance of national security duties.

employee. Defined in E.O. 12968.

e-adjudication. Automated adjudication, also referred to as electronic adjudication.

e-application. A web-based tool for self-reporting biographic details, declarations, clarifications, and mitigating information necessary to conduct investigations. The e-QIP is the current e-application used within DoD.

e-QIP. A secure web-based automated system that facilitates timely and accurate processing of investigation requests to OPM. Agencies authorize applicants to access the system to enter data and documents required for the investigation; the system collects information from the applicant based on the appropriate investigative questionnaire.

exception. An adjudicative decision to grant or continue access eligibility despite a failure to meet adjudicative or investigative standards. For purposes of reciprocity, the presence of an exception permits the gaining organization or program to review the case before assuming security sponsorship and to accept or decline sponsorship based on that review. When accepting sponsorship, the gaining organization or program will ensure that the exception remains a matter of record. There are three types of exceptions:

condition. Access eligibility granted or continued with the proviso that one or more additional measures will be required. Such measures include additional security monitoring, restrictions on access, and restrictions on an individual's handling of classified information.

deviation. Access eligibility granted or continued despite a significant gap in coverage or scope in the supporting background investigation. "Significant gap" for this purpose means either complete lack of coverage for a period of 6 months or more within the most recent 5 years investigated or the lack of an FBI name check or an FBI fingerprint check or the lack of one or more investigative scope requirements in its entirety (e.g., the total absence of local agencies checks within an investigation would constitute a deviation, but the absence of local agencies checks for some but not all places of residence would not constitute a deviation).

waiver. Access eligibility granted or continued despite the presence of substantial issue information that would normally preclude access. "Substantial issue information" for this purpose means information in the individual's history that does not meet the standards of national security adjudicative guidelines in the August 30, 2006 USD(I) Memorandum. DoD Component heads may approve waivers only when the benefit of access clearly outweighs any security concern raised by the shortcoming. A waiver may require special limitations on access, additional security monitoring, and other restrictions beyond normal need-to-know on the person's handling of classified information.

exceptionally grave damage. The capacity to cause extremely serious harm.

(Added) (Air Force) Federal Investigative Standards. In December 2012, the DNI and OPM jointly issued the revised Federal Investigative Standards (FIS) for the conduct of background investigations for individuals that work for or on behalf of the federal government to bring consistency to investigative quality. The FIS use a flagging strategy to expand background investigations and align investigative elements at each Tier to promote

standardization, efficiency, and reciprocity of background investigations. Tiers 1, 2 and 4 are credentialing and suitability and fitness investigations. Tier 3 corresponds to a Secret clearance investigation and Tier 5 corresponds to a Top Secret clearance investigation.

foreign intelligence entity. Defined in DoDD 5240.06.

foreign national. Defined in the DoD Dictionary of Military and Associated Terms.

IC. Defined in the DoD Dictionary of Military and Associated Terms.

illegal drug. "A controlled substance included in Schedule I or II, as defined by Section 802(6) of E.O. 12564.

(Added) (AF) Immediate Family Members. An individual's spouse, parents, parents in law, siblings, children, and cohabitant. This includes the individual's foster parents, step-parents, half-and step-siblings, and step-children.

(Added) (AF) Incident Report. An incident report is an adverse or potentially disqualifying information submitted to the DoD CAF through JPAS (or successor system). The adverse action may affect a person's eligibility for access to classified information and may also bring into question an individual's trustworthiness, honesty and loyalty under the national security adjudicative guidelines

inestimable damage. The capacity for harm too severe to be computed or measured.

(Added) (AF) Information Protection. Information Protection is a subset of the Air Force Security Enterprise. Information Protection consists of three core security disciplines (Personnel, Industrial, and Information Security).

inherently governmental. Defined in the Federal Acquisition Regulation.

investigative record. The official record of all data obtained on the individual from trusted ISPs, from suitability or security applications and questionnaires, and any investigative activity conducted in accordance with the December 13, 2008 DNI and OPM Memorandum.

Investigation Service Provider (ISP). A federal agency or federal contract agency that conducts PSIs for the DoD.

issue information. Any information that could adversely affect a person's national security eligibility.

JPAS. The DoD system of record for personnel security adjudication, clearance, verification, and history. The term applies not only to this system but to any successor DoD personnel security system of record. JPAS has two applications. The Joint Adjudication Management System and the Joint Clearance and Access Verification System. Joint Adjudication Management System is the application that supports central adjudication facilities personnel and provides capabilities and data such as case management and distribution, adjudication history, due process history, revocations and denial action information. Joint Clearance and Access Verification System is the application that supports command security personnel and provides

capabilities and data such as local access record capabilities, debriefings, incident file reports and eligibility data, and security management reports.

LAA. Authorization for access to confidential or secret information granted to non-U.S. citizens and immigrant aliens, limited to only that information determined releasable by a U.S. Government designated disclosure authority to the country of which the individual is a citizen, in accordance with DoDD 5230.11. Access is necessary for the performance of the individual's assigned duties with the military or a federal agency and is based on favorable adjudication of a 10-year scope SSBI or its equivalent under the FIS.

MDCO. Defined in DoDD 5240.06.

mentally incompetent. An individual who has been declared mentally incompetent as determined by competency proceedings conducted in a court or administrative agency with proper jurisdiction.

meritorious waiver. A determination made by authorized adjudicators that an individual meeting the criteria of the Bond Amendment has sufficiently explained, refuted, or mitigated the potential disqualifiers as to be deemed eligible for access to classified information.

national security. The national defense or foreign relations of the United States. National security includes defense against transnational terrorism.

national security duties. Duties performed by individuals working for or, on behalf of, the Federal Government that are concerned with the protection of the United States from foreign aggression or espionage, including development of defense plans or policies, intelligence or CI activities, and related activities concerned with the preservation of the military strength of the United States, including duties that require eligibility for access to classified information in accordance with E.O. 12968 .

national security eligibility. The status that results from a formal determination by an adjudication facility that a person meets the personnel security requirements for access to classified information or to occupy a national security position or one requiring the performance of national security duties.

national security information. Information that has been determined, pursuant to E.O. 13526, to require protection against unauthorized disclosure and is so marked when in documentary form.

national security position. Defined in DoDI 5200.02.

need to know. A determination made by a possessor of classified information that a prospective recipient, in the interest of the national security, has a requirement for access to, knowledge of, or possession of the classified information in order to perform tasks or services essential to the fulfillment of an official U.S. Government program. Knowledge of, possession of, or access to, classified information will not be afforded to any individual solely by virtue of the individual's office, position, or security eligibility.

(Added) (AF) National Background Investigations Bureau (NBIB). NBIB, formerly known as the OPM Federal Investigative Services, is the DoD authorized investigative service provider (ISP) that conducts background investigations for Air Force. In 2018, Defense Security Service will begin assuming the responsibilities from NBIB as the DoD's ISP.

NISP. The program established by DoDM 5200.01 to safeguard Federal Government classified information that is released to contractors, licensees, and grantees of the United States Government as the single, integrated, cohesive industrial security program to protect classified information and to preserve our Nation's economic and technological interests, as governed by U.S. Office of Personnel Management Booklet and E.O. 10865.

(Added) (AF) Out-of-Scope. An investigation which has not received the required PR is considered "out-of-scope." Security clearance eligibility and access do not expire simply because a PR is overdue as long as the member has submitted required paperwork for their PR or, due to operational or unforeseen circumstances; the member is unable to submit required forms in a timely manner. Eligibility or access should not be suspended when justifiable circumstances exist that prevent timely submission of reinvestigations.

(Added) (AF) Personally Identifiable Information (PII). Information which can be used to distinguish or trace an individual's identity. See AFI 33-332, *Air Force Privacy and Civil Liberties Program.*

personnel security. Defined in the June 13, 2013 Deputy Under Secretary of Defense for Intelligence and Security Memorandum.

position designation. The assessment of the potential for adverse impact on the integrity and efficiency of the service, and the degree to which, by the nature of the civilian position, the occupant could bring about a material adverse effect on the national security.

PPR. A periodic reinvestigation which excludes select investigative leads when no information of security concern is developed by the required investigative source as prescribed in the Office of Personnel Management Federal Investigative notice No. 05-04. A periodic reinvestigation conducted in phases, in which the key investigative elements yielding the greatest amounts of issue information are conducted first. The second phase of the investigation is run only if issue information results from the first phase.

PR. A national security investigation conducted to update a previously completed investigation on persons holding a national security position or performing national security duties to determine whether that individual continues to meet national security requirements.

PSAB. A three-member panel of senior level personnel authorized to make final national security eligibility determinations that have been appealed by subjects of national security investigations.

PSI. Any investigation required for the purpose of determining the eligibility of DoD military and civilian personnel, contractor employees, consultants, and other persons affiliated with the

DoD for access to classified information, acceptance or retention in the Military Departments, assignment or retention in sensitive duties, or other designated duties requiring such investigation. It also includes investigations of allegations that arise subsequent to adjudicative action and require resolution to determine an individual's current eligibility for a national security position.

public trust. Defined in Federal Investigative Standards.

referral. Notification of commanders, security officers, and CAFs when relevant, and material derogatory information concerning an individual who has been granted national security eligibility is developed or otherwise becomes available to any DoD element.

reportable behavior. Acts by persons with favorable national security eligibility determinations that may not be consistent with the interests of national security.

SAP. Defined in the DoD Dictionary of Military and Associated Terms.

SCI. Classified information concerning or derived from intelligence sources, methods, or analytical process that is required to be handled within a formal access control system established by the DNI.

scope. The time period to be covered and the sources of information to be contacted during the prescribed course of a national security investigation.

SecEA. The DNI is the U.S. Government national authority responsible for developing uniform and consistent policies and procedures to ensure the effective, efficient, and timely completion of national security investigations and adjudications relating to determinations of eligibility for access to classified information or eligibility to hold a sensitive position, as well as other security duties as delineated in E.O. 13467.

security clearance. A personnel security determination by competent authority that an individual is eligible for access to national security information, under the standards of this manual. Also called a clearance. The individual must have both eligibility and access to have a security clearance. Eligibility is granted by the central adjudication facilities, and the access is granted by the individual agencies.

security incident. Defined in Title 50, U.S.C.

security professional. U.S. Government military or civilian personnel (including but not limited to security managers and special security officers) whose duties involve managing or processing personnel security actions relating to the DoD PSP.

sensitive position. Any position so designated by the head of any department or DoD Component in accordance with E.O. 10450.

(Added) (AF) Service. Honorable active duty (including attendance at the military academies), membership in Reserve Offices' Training Corps Scholarship Program, Army and Air Force National Guard, Military Reserve Force (including active status and ready

reserve), civilian employment in government service, or civilian employment with a DoD contractor involving access under the National Industrial Security Program. Continuity of service is maintained with change from one status to another provided no single break in service (which invalidates an individual's security clearance eligibility) is greater than 24 months.

SON. A number that identifies the office that initiates the investigation and is recorded in the appropriate 'Agency Use' block of the investigative form. The SON is issued by OPM after authorization by the Office of the DDI(I&S).

SPēD. The SPēD Program is part of the DoD initiative to professionalize the security workforce. This initiative is intended to ensure that there is a common set of competencies among security practitioners that promotes interoperability, facilitates professional development and training, and develops a workforce of certified security professionals.

SF 86. The standard form that the DoD uses for most national security background investigations. The automated version of the SF 86 is the e-QIP. As used in this manual, includes SF 86C and related forms.

(Added) (AF) Standard Form 312 (SF 312) Classified Information Nondisclosure Agreement (NdA). An agreement between an individual and the United States that an individual must sign before being given access to classified information.

supporting counterintelligence organization. The MDCO, as defined in DoDD 5240.06, supports CI issues involving military and civilian personnel. CI issues involving contractor personnel are referred to the FBI.

unfavorable national security determination. A denial or revocation of eligibility for access to classified information and or to occupy a sensitive position.

valid passport. A passport that is current (i.e., has not expired and has not been cancelled or revoked).

waiver. See "exception."

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(Added) (AF) AFI 90-201*, The Air Force Inspection System,* 21 April 2015

(Added) (AF) AFI 38-101, *Air Force Organization,* 31 January 2017

(Added) (AF) DoD Instruction 1400.25, Volume 731, *DoD Civilian Personnel Management System: Suitability and Fitness Adjudication For Civilian Employees,* 24 August 2017.

(Added) (AF) AFMAN 14-304, *The Security Use, and Dissemination of Sensitive Compartmented Information (SCI),* 23 December 2016

(Added) (AF) AFI 71-101, Volume 4, *Counterintelligence,* 1 August 2000

(Added) (AF) Executive Order 13764, *"Amending the Civil Service Rules, Executive Order 1388, and Executive Order 13467 To Modernize the Executive Branch-Wide Governance Structure and Processes for Security Clearances, Suitability and Fitness for Employment, and Credentialing and Related Matter*," 17 January 2017

(Added) (AF) AFGM2017-36-04, "Air Force Guidance Memorandum Establishing Suitability/Fitness for Civilian employees", 4 October 2017

Added) (AF) Office of the Under Secretary of Defense, Intelligence, *"Implementation of Security Executive Agent Direct 4: National Security Guidelines*," 12 January 2018

(Added) (AF) Office of the Under Secretary of Defense, Personnel and Readiness, *"Military Service Suitability Determinations for Foreign Nationals Who are Lawful Permanent Residents*," 13 October 2017

(Added) (AF) DoD Instruction 5210.87, "*Selection of DoD Military and Civilian Personnel and Contractor Employees for Assignment to Presidential Support Activities (PSAs),"* 30 November 1998

(Added) (AF) DOD Instruction 5210.42, "*DoD Nuclear Weapons Personnel Reliability Assurance,"* 27 April 2016

(Added) (AF) United States Security Authority for NATO Affairs (USSAN) Instruction 1-07, 5 April 2007

(Added) (AF) Office of the Director of National Intelligence, "*Security Executive Agent Directive 3, Reporting Requirements for Personnel With Access to Classified Information or Who Hold a Sensitive Position*," 12 June 2017

(Added) (AF) DoDM 5205.07, Volume 2," *Special Access Program Security Manual: Personnel Security*," 24 November 2015.

(Added) (AF) AFI 16-701, *Management, Administration and Oversight of Special Access Programs*, 18 February 2014

(Added) (AF) AFI 65-601, Volume 1*, Budget Guidance and Procedures,* 16 August 2012

(Added) (AF) DoD 5400.7-R_AFMAN 33-302*, Freedom of Information Act Program,* 26 April 2018

(Added) (AF) AFI 36-2645*, Security Professional Certification and Development,* 2 February 2017

(Added) (AF) AFI 33-332*, Air Force Privacy and Civil Liberties Program,* 12 January 2015

(Added) (AF) AFH 33-337*, Tongue and Quill*, 27 May 2015

Enclosures

(Added) (AF) Enclosure 1

Sample: Request to submit an incident report

MEMORANDUM FOR: Servicing IP Activity

FROM: Commander
Full Address

SUBJECT: Request to submit an incident report, re**: (Last Name, First, Middle, Rank, SSN)**

I request submission of an incident report on **(individual)** IAW DoDM5200.02_ AFMAN16-1405, *Air Force Personnel Security Program.*

I have become aware of an individual's involvement in (specify situation). Based upon a review of DoDM5200.02_ AFMAN16-1405, it is determined that further evaluation is needed to determine the subject's eligibility to retain access to classified information or unescorted entry to restricted areas.

List the applicable action which has occurred:

(Individual) has been removed from the position and all access to classified information or unescorted entry to restricted areas has been **withdrawn (suspended)** in accordance with DoDM5200.02_ AFMAN16-1405.

Or

(Individual) is allowed to have **continued access** to classified information/unescorted entry to restricted areas in accordance with DoDM 5200.02_ AFMAN 16-1405.

Please notify DoD CAF of the suspension (or continued access to classified information) and the following: (*check below if applicable)*

_____There is a Report of Investigation (Date).
_____Name of agency conducting the investigation: (FBI, AFOSI, CIA, etc.)
_____Subject has been referred to (when applicable)
_____Mental Health for an evaluation (Date of referral):
_____Subject was given disciplinary action for this incident. List type (e.g., Article 15)
_____A Court-Martial is projected for this individual: (Date)
_____Subject was placed in appellate leave status: (Date)
_____The subject's present Date Eligible Retirement or Separation (DEROS) date is:

I **(do/do not)** intend to discharge the individual in accordance with AFI 36-3206, *Administrative Discharge Procedures for Commissioned Officers*, or AFI 36-3208, *Administrative Separation of Airmen.* I will provide your office with status updates.

Our POC is (name and telephone).

Commander's Signature Block

Attachments (or as Applicable):
1. Adverse Security Determination
2. AF Form 2587
3. Supporting Documentation

(Added) (AF) Enclosure 2

Sample: Commander's notification to individual for continued access or suspension to classified information

MEMORANDUM FOR: (individual concerned)

FROM: Commander
Full Address

SUBJECT: Notification to Individual (Continued Access or Suspension to Classified Information)

You are hereby notified that an incident report must be reported to DoD CAF IAW DoDM5200.02_ AFMAN16-1405, *Air Force Personnel Security Program*. This action is being taken because of your alleged actions, conduct and/or behavior involving (be as specific as protection of sources allows and national security permits.) I have determined your current access to classified information (check applicable response):

_____May continue until further notice.

_____May NOT continue until further notice.

If you wish to provide a written rebuttal reply to this determination, a written response must be returned to me no later than 72 hours (unit establishes time frame) after receipt of this notification.

When all final actions in this case have been completed, I will evaluate the incident(s) and make a security recommendation. The DoD CAF will make the final security determination concerning your security clearance eligibility.

Our POC is (name and telephone number).

Commander's Signature Block

cc:
Servicing IP Activity
1st Ind, (Individual Concerned)
TO: (Individual's Commander or Staff Agency Chief)

Receipt acknowledged (Date).
I (do/do not) intend to submit a written reply within 72 hours. (unit establishes time frame)

Individual's Signature Block

(Added) (AF) Enclosure 3

SAMPLE: Notification to DoD CAF when individual maintains access

MEMORANDUM FOR: Department of Defense Consolidated Adjudications Facility
600 10th Street, Fort George G. Meade MD 20755-5115

FROM: Chief, Servicing Information Protect Office Activity
Full Address

SUBJECT: Incident Report, re: (name of individual and SSN)

The commander of (identify unit) has submitted an incident report on (name), list effective date, due to (specify issue as outlined in the adjudication guidelines) IAW the DoDM5200.02_ AFMAN16-1405, *Personnel Security Program*.

At this time, the commander has authorized the individual to maintain current access to classified information, to include Sensitive Compartmented Information access.

Our Point of Contact is (name and telephone number).

Chief, Servicing IP Activity
Signature Block

(Added) (AF) Enclosure 4

Sample: Incident report custodian checklist

1. Identifying Data: NAME, RANK, SSN, OFFICE SYMBOL.

2. Establishment Date: Date, by (authority), reason, source: (If appropriate).

3. Review JPAS (or successor system) Data: clearance, investigation, type, special access.

4. Notification to installation servicing IPO (**Note:** Ensure incident report submission will not compromise any ongoing investigation.)

5. Evaluation letter to unit commander based on unfavorable information developed within channels, e.g., incident reports, blotters, suspension/decertification, etc.

6. Adverse action determination letter presented.

7. Immediately moved to non-sensitive position, access to classified/unescorted entry to restricted areas suspended, peers/supervisors briefed.

8. Incident report initiated in JPAS (or successor system) to the DoD CAF.

9. Wing or senior mission Commander notified of incident report submission.

10. Subject will relinquish applicable badges and entry accesses IAW applicable AF physical security guidance.

11. Complete Air Force Form 2587, *Security Termination Statement*.

12. Ensure subject is aware of assistance and counseling as necessary from such agencies as mental health, chaplains, etc.

13. Provide status reports, via JPAS (successor system).

14. Judicial/administrative actions complete.

15. Obtain written reports, from the commander, related to the unfavorable action from appropriate staff agencies, e.g. AFOSI, A1, Security Forces, Judge Advocate, Surgeon General, etc

16. Completed file with any written response from subject transmitted to the DoD CAF.

17. Maintain all documentation necessary to complete the files.

(Added) (AF) Enclosure 5

SAMPLE: Commander's recommendation (incident report closure)

FOR OFFICIAL USE ONLY

MEMORANDUM FOR: DoD CAF

FROM: Organization Commander

SUBJECT: Recommendation for incident report closure for (name)

The attached memorandum on (name and SSN of subject) is forwarded for your final adjudication. All final actions have been completed as outlined below:

a. Mental health evaluation:

b. Completed alcohol and/or drug rehabilitation program:

c. Received financial counseling from:

d. Administrative action taken:

e. Judicial action: (An opinion from staff judge advocate regarding factors used in determination of withdrawal or dismissal of charges when there is evidence the individual engaged in the misconduct. For example, positive urinalysis, but found not guilty through court-martial. Was the finding based on technicalities or evidence?)

f. Add any additional pertinent information.

This individual will be returned to duty and or cross trained/separated/placed in appellate leave status.

The commander's point of contact information is (name, organization, telephone number.

Commander's signature block

Attachment: